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FOREWORD

The year 2023 was marked by my honorable election as Vice-President of the European Data Protection Board (EDPB) for a five-year term, during the elections held on the anniversary of the five years of implementation of the General Data Protection Regulation, that is, on May 25, 2023. This election sends many messages, including that small-sized Supervisory Authorities, such as my Office, can play a decisive role in European affairs through hard work and dedication.

At the same time, the Vice-Presidency automatically entails more and demanding obligations both within and outside Cyprus, as representing an institutional body of the European Union requires focus, as well as continuous and substantial presence and participation.

In carrying out my duties as Vice-President of the EDPB, I chaired a session of the EDPB Plenary, five sessions of the EDPB Strategic Advisory expert subgroup, and handled 20 requests received by the EDPB for public access to EDPB documents. In addition, I actively participated in all EDPB sessions, while the officials of my Office had uninterrupted participation and presence in the meetings of expert subgroups and special teams of the EDPB.

However, apart from European obligations, the demands for overseeing compliance with the legal framework for data protection in our country are becoming increasingly pressing. In 2023, my Office received 448 complaints and 110 notifications of personal data breach incidents. A total of 67 Decisions were issued, of which 11 resulted in an administrative fine totaling €120,250.

The new data necessitate the strengthening of my Office with technical means, as well as with human resources trained to meet the tireless effort of safeguarding the personality and privacy of citizens.

Eirini Loizidou Nikolaidou

Commissioner for the Protection of Personal Data

Vice-President of the European Data Protection Board

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1. INTRODUCTION

1.1. The legal framework for the protection of personal data in the EU – General Data Protection Regulation, (EU) 2016/679

On May 25, 2018, the General Data Protection Regulation, (EU) 2016/679 (hereinafter referred to as the "Regulation"), came into effect, establishing an enhanced data protection framework across all member states of the European Union and the European Economic Area. The Regulation is also

designed to address the technological and social changes that have occurred over the past two decades, particularly due to the continuous evolution of the internet and the new services it provides, the development of the digital economy, and the widespread use of social media.

The Regulation also applies to organizations based outside the EU if they offer goods or services to EU citizens or monitor the behavior of EU citizens. It is noted that many organizations, particularly online businesses, which were not subject to the European Directive 95/46/EC on data protection that was repealed with the implementation of the Regulation, are now subject to the Regulation.

The Regulation promotes transparency, strengthens the rights of data subjects, introduces the principle of accountability in the sense of proving compliance with the provisions of the Regulation to the competent Supervisory Authority (Data Protection Commissioner), enhances the security of personal data, and introduces strict and deterrent administrative penalties.

1.2. The Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018

On July 31, 2018, the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018, was published in the Official Gazette of the Republic. This Law was enacted for the more effective implementation of certain provisions of the Regulation.

1.3. The Data Protection Commissioner

The Data Protection Commissioner is an Independent Administrative Authority, responsible for overseeing the implementation of the Regulation and national legislation on personal data and other regulations concerning the protection of individuals from the processing of personal data. The Commissioner exercises the powers conferred upon them by the Regulation and national legislation or any other Law.

The Commissioner represents the Republic of Cyprus in the relevant Bodies and Committees of the European Union, the Council of Europe, as well as other International Organizations.

Key Responsibilities of the Data Protection Commissioner

- Monitors and enforces the implementation of the Regulation.
- Is a member of the European Data Protection Board.
- Promotes public awareness and understanding of the risks, rules, safeguards, and rights related to processing. Special attention is given to activities specifically targeting children.
- Advises the national parliament, government, and other bodies and organizations on legislative and administrative measures related to the protection of the rights and freedoms of individuals against processing.
- Provides information to data subjects regarding the exercise of their rights under the Regulation.
- Investigates complaints lodged by the data subject or by an entity or organization or association active in the field of protecting the rights and freedoms of data subjects concerning the protection of personal data.
- Conducts inquiries regarding the implementation of the Regulation.
- Maintains internal records of violations of the Regulation and the measures taken.
- Approves certification criteria and approves or reviews certificates.
- Provides accreditation to certification bodies.
- Issues opinions on drafts of codes of conduct and approves them.
- Approves binding corporate rules.
- Approves standard contractual clauses.
- Imposes administrative penalties, including administrative fines.
- Collaborates with other Data Protection Authorities.

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Additional Responsibilities of the Commissioner for the Protection of Personal Data

□

In the context of harmonizing Cypriot legislation with Community law, the provisions of Directive 2002/58/EC regarding the processing of personal data and the protection of privacy in the electronic

communications sector have been transposed into Part 14 of the Law on the Regulation of Electronic Communications and Postal Services of 2004, Law 112(I)/2004, as amended.

According to the provisions of Article 107 of Part 14 of this Law, additional responsibilities are granted to the Commissioner beyond those provided by the Law.

Specifically, the Commissioner has the authority to handle cases and complaints regarding potential violations of Articles 99, 100, 101, 105, and 106, which concern the confidentiality of communications, traffic and billing data, location data, subscriber directories, and unsolicited calls (for the purpose of direct commercial promotion). Additionally, for the implementation of Article 98A, the Commissioner collaborates with the Commissioner for Communications.

Law 112(I)/2004 has been amended by Law 23(I)/2022, which was published in the Official Gazette of the Republic with No. 4876, Annex (I) on March 4, 2022. Part 14 of Law 112(I)/2004 transposes the provisions of the well-known e-Privacy Directive, Directive 2002/58/EC, regarding the processing of personal data and the protection of privacy in the electronic communications sector. For the purposes of legislative consistency, the amending Law 23(I)/2022 updated every reference in the Law to the repealed Law on the Processing of Personal Data (Protection of the Individual) of 2001, Law 138(I)/2001, and replaced all relevant references with references to the Regulation, as well as to the implementing Law 125(I)/2018.

With the passage of the amending Law 23(I)/2022, the actual content of Articles 99 - 106 of Law 112(I)/2004 was not altered. However, a significant change lies in the fact that the responsibilities and powers granted to the Commissioner, as well as the prescribed sanctions, were specified and explicitly mentioned.

In the context of the implementation of Article 98A, a memorandum of understanding and joint action was signed in 2017 by the Commissioner and the Commissioner for the Regulation of Electronic Communications and Postal Services (the previous title of the Commissioner for Communications). On July 25, 2023, a new Memorandum of Cooperation was signed regarding matters related to the joint or separate responsibilities of the Commissioner for the Protection of Personal Data and the Commissioner for Communications, in accordance with the existing and new legislation, and came into immediate effect.

□

In December 2017, the Law on the Right of Access to Information from the Public Sector, Law 184(I)/2017, was passed, which came into effect in December 2020. The purpose of this Law is to enhance the principles of Transparency and Accountability in the Public and broader public sector. Based on Article 35, the supervision of the implementation of this Law is entrusted to the Commissioner for the Protection of Personal Data, who also acts as the Information Commissioner. This Law enshrines the right of citizens to request and receive, under certain conditions, information held by Public Authorities for the purpose of monitoring the Acts and Decisions of the Administration. At the same time, it creates an obligation for these Authorities to publish certain information on their websites, so that citizens do not need to submit requests to obtain this information.

For the actions of the Information Commissioner, a separate Annual Report is prepared, which, pursuant to Article 37 of this Law, is submitted to the Council of Ministers and communicated to the Minister of Justice and Public Order and the House of Representatives. Additionally, this Report is made public on the website of the Office of the Information Commissioner.

1.4. The Office of the Commissioner

In carrying out her duties, the Commissioner has an Office, the staff of which consists of officials who are members of the public service.

The Office of the Commissioner was established in May 2002, and as of December 2023, it had the following staffing:

- 6 Data Protection Officers
- 1 Senior Administrative Officer
- 1 Permanent Administrative Officer
- 1 IT Officer

- 1 Secretarial Officer
- 5 Assistant Secretarial Officers
- 1 Assistant Secretarial Officer with duties of an Officer
- 1 Fixed-term Employee – Assistant Secretarial Officer
- 1 Hourly-paid Porter / Messenger
- 1 Hourly-paid Cleaner

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2. UPDATED LIST OF HARMONIZED AND NATIONAL LEGISLATIONS FALLING UNDER THE COMPETENCE OF THE COMMISSIONER'S OFFICE, UNTIL 31 DECEMBER 2023

No.

Harmonizing Act

National Legislation

Comments

1

REGULATION (EU) 2016/679
of 27 April 2016 on the
protection of natural
persons with regard to the
processing of personal data
and on the free movement of
such data, and repealing
Directive 95/46/EC (General
Data Protection Regulation).
The Law on the Protection of
Natural Persons Against the
Processing of Personal Data
and on the Free Movement of
Such Data of 2018, Law No.
125(I)/2018.

The Regulation was published
in the Official Journal of the
EU on 4 May 2016 and
entered into force on 25
May 2018. The Law for the
effective implementation of
certain provisions of the
Regulation was published in
the Official Journal of the
Republic on 31 July 2018. Law
125(I)/2018 repeals Law
138(I)/2001.

2

DIRECTIVE (EU) 2016/680 of
27 April 2016 on the
protection of natural
persons with regard to the
processing of personal data
by competent authorities for
the purposes of the
prevention, investigation,
detection or prosecution of

criminal offenses or the execution of criminal penalties and on the free movement of such data, and repealing Framework Decision 2008/977/JHA.

The Law on the Protection of Natural Persons Against the Processing of Personal Data by Competent Authorities for the Purposes of Prevention, Investigation, Detection or Prosecution of Criminal Offenses or the Execution of Criminal Penalties and on the Free Movement of Such Data of 2019, Law No. 44(I)/2019.

The Law designates the Commissioner for the Protection of Personal Data as the competent supervisory Authority.

3(a)

Convention 108 of the Council of Europe for the protection of individuals against automatic processing of personal data. Ratifying Law 28(III)/2001.

The Committee of Ministers of the Council of Europe adopted an Amending Protocol, which was opened for signature. The Council of the EU called on Member States to sign and ratify the Amending Protocol of Convention 108.

3(b)

Amending Protocol to the Convention for the Protection of Individuals from Automatic Processing of Personal Data (ETS No. 108).

The Ratifying Law of the Amending Protocol to the Convention for the Protection of Individuals from Automatic Processing of Personal Data of 1981, Law of 2020, Law No. 6(III)/2020.

Article 4 of the Ratifying Law designates the

Commissioner for the
Protection of Personal Data
as the competent supervisory
Authority.

4

REGULATION (EU) 2016/794
of 11 May 2016 on the
European Union Agency for
Law Enforcement Cooperation
(EUROPOL) and repealing
and replacing Council
decisions 2009/371/JHA,
2009/934/JHA, 2009/935/JHA,
2009/936/JHA and
2009/968/JHA.

The Law on the Establishment
and Operation of the National
Europol Unit of 2018, Law
No. 126(I)/2018.

Regulation (EU) 2016/794
was amended by Regulation
2022/991. The Ministry of
Justice prepared a Bill to
amend Law No. 126(I)/2018,
in compliance with the
amending Regulation of
EUROPOL.

5

REGULATION (EU) 603/2013
of 26 June 2013 on the
establishment of "EURODAC"
for the comparison of
fingerprints for the
effective application of
Regulation (EU) No. 604/2013
establishing the criteria and
mechanisms for determining
the Member State responsible
for examining an application
for international protection
submitted to a Member State
by a third-country national
or by a stateless person and
on requests for comparison
with EURODAC data submitted
by the law enforcement
authorities of the Member
States and EUROPOL for law
enforcement purposes and
amending Regulation (EU) No.
1077/2011 on the
establishment of a European

Agency for the Operational Management of Large-Scale IT Systems in the Area of Freedom, Security and Justice (recast).

The Refugee Laws of 2000 to 2020, Law No. 6(I)/2000.

Regulation (EU) 603/2013 was repealed by Regulation (EU) 2024/1358.

Law No. 6(I)/2000 has not yet been amended, in compliance with the new EURODAC Regulation.

6

REGULATION (EU) 2018/1727 of 14 November 2018 concerning the European Union Agency for Cooperation in Criminal Justice (Eurojust) and repealing and replacing Council Decision 2002/187/JHA.

The Commissioner for the Protection of Personal Data is a Member of the JPC (Joint Supervisory Body) of the Coordinated Supervision Committee (CSC) of the EDPB, for EUROJUST.

7

REGULATION (EC) 515/97 of 13 March 1997 on mutual assistance between the administrative authorities of the Member States and the cooperation of those authorities with the Commission to ensure the correct application of customs and agricultural regulations, as amended by Regulations (EC) 807/2003 and 766/2008 and Regulation (EU) 2015/1525 of 9 September 2015.

The Regulation had direct effect from 1 May 2004, with the accession of the Republic to the EU. Regulation (EU) 2015/1525 applies from 1 September

2016 while points 5, 8, 9, 17 and 18 of Article 1 apply from 8 October 2015.

Regulation (EC) 515/97 was amended by Regulation (EU) 2021/785.

8(a)

REGULATION (EC) 767/2008 of 9 July 2008 on the Visa Information System (VIS) and the

The Republic of Cyprus has not yet harmonized

The Commissioner for the Protection of Personal Data participates as an observer in the
22

Exchange of information between Member States for short-stay visas (VIS Regulation).

The Regulation entered into force 20 days after its publication in the Official Journal of the European Union (13/08/2008).

fully with the provisions of the VIS Regulation.

Working Group for the Coordinated Control of the VIS, established under Article 43 of Regulation 767/2008.

8(b)

DECISION 2008/633/JHA of 23 June 2008 regarding access to the Visa Information System (VIS) by the competent authorities of Member States and EUROPOL for the purpose of searching data for the prevention, verification, and investigation of terrorist acts and other serious criminal offenses.

This decision takes effect from the date to be determined by the Council, as soon as the Commission informs the Council that Regulation (EC) 767/2008/EC has entered into force and is fully applied.

Article 8 provides that the processing of personal data under this decision enjoys the protection of Convention 108. Article 8(5) provides that the Commissioner supervises the processing carried out by the competent authorities and checks its legality.

9

REGULATION (EU) 1024/2012 of 25 October 2012 on administrative cooperation through the Internal Market Information System and repealing Decision 2008/49/EC ("IMI Regulation"). The Regulation entered into force 20 days after its publication in the Official Journal of the European Union.

The Commissioner for Personal Data Protection is the competent Supervisory Authority, based on Article 21(1) of the IMI Regulation. The Commissioner is a Member of the Working Group for the Coordinated Control of the IMI, established under Article 21(4) of the IMI Regulation.

10(a)

DIRECTIVE 2002/58/EC of 12 July 2002 concerning the Regulation of Electronic Communications and Certain provisions of Part 14 of the Law, which

23

concern the processing of personal data and the protection of privacy in the field of electronic communications (Directive on privacy protection in electronic communications), as amended by Directive 2009/136/EC and Regulation (EU) 611/2013. Postal Services Law of 2004, N.

112(l)/2004, as amended.

falling under the responsibilities of the Commissioner for Personal Data Protection.

A Proposal for an e-Privacy Regulation is under discussion to replace Directive 2002/58/EC.

10(b)

Regulation (EU) 2021/1232 on a temporary derogation from certain provisions of Directive 2002/58/EC regarding the use of technologies by providers of interpersonal communication services irrespective of numbers for the processing of personal and other data, to combat child sexual abuse online.

According to Article 6 of the Regulation, the supervisory authorities designated under Chapter VI Section 1 of Regulation (EU) 2016/679 monitor the processing that falls within the scope of this Regulation in accordance with their powers and authorities under that Chapter.

11(a)

DECISION 2008/615/JHA of 23 June 2008 regarding the enhancement of cross-border cooperation, particularly concerning the fight against terrorism and cross-border crime.

A Proposal for a Regulation on automated data exchange for police cooperation ("Prum II") was presented, amending Decisions 2008/615/JHA and 2008/616/JHA of the Council and Regulations (EU) 2018/1726, 2019/817, and 2019/818 of the European Parliament and the Council.

It was transposed into national legislation by the Council of Ministers Decision No. 73.662

of 6 June 2012.

Article 25 of the Decision provides that each Member State ensures at the national level a level of protection at least equivalent to that derived from Convention 108 and its additional protocol and takes into account, for this purpose, Recommendation R (87) 15.

11(b)

DECISION 2008/616/JHA of 23 June 2008 on the Implementation of Decision 2008/615/JHA regarding the enhancement of cross-border cooperation, particularly concerning the fight against terrorism and cross-border crime.

A Proposal for a Regulation on automated data exchange for police cooperation ("Prum II") was presented, amending Decisions 2008/615/JHA and 2008/616/JHA of the Council and Regulations (EU) 2018/1726, 2019/817, and 2019/818 of the European Parliament and the Council.

It was transposed into national legislation by the Council of Ministers Decision No. 73.662 of 6 June 2012.

The Supervisory Authority is the Commissioner for Personal Data Protection.

12(a)

FRAMEWORK DECISION 2009/315/JHA of 26 February 2009 on the organization and content of the exchange of information from the criminal record between Member States. It was transposed into national legislation by the Council of Ministers Decision No. 71.068 of 8 October 2010.

On 26 July 2022,

the Law on the Participation of the Republic of Cyprus in the European Criminal Records Information System (ECRIS) was published in the Official Journal of the Republic, Law No. 123(I)/2022.

The Commissioner for Personal Data Protection is designated as the competent Supervisory Authority.

12(b)

Directive (EU) 2019/884 of 17 April 2019 amending Framework Decision 2009/315/JHA of the Council regarding the exchange of information on third-country nationals and concerning the European Criminal Records Information System (ECRIS), and for the

See comment 12(a)

25

Replacement of Decision 2009/316/JHA of the Council.

12(c)

Regulation (EU) 2019/816 of the European Parliament and of the Council of 17 April 2019 establishing a centralized system for the identification of member states holding information on criminal convictions against third country nationals and stateless persons (ECRIS-TCN) for the purpose of complementing the European Criminal Records Information System, and amending Regulation (EU) 2018/1726.

See comment 12(a)

13

FRAMEWORK DECISION 2006/960/JHA of 18 December 2006 on the simplification of the exchange of information and data between the law enforcement authorities of the member states of the European Union. Transposed into national

Legislation by the Decision
of the Council of Ministers
No. 65.597 of 31 May
2007.

Article 8(2) of the Decision
provides that each member state
ensures in its national
law a level of protection
at least equivalent to
that arising from
Convention 108 and its
additional protocol and
takes into account, for
this purpose, Recommendation R
(87) 15.

14

DIRECTIVE 2004/82/EC of
the Council, of 29 April
2004, regarding the
obligation of carriers
to communicate passenger data.

The Aliens and
Immigration (Carrier's
Liability) Law of 2007,
Law 146(I)/2007, as
amended.

Article 9 of Law 146(I)/2007
sets rules for the processing
of passenger data.
According to Article 9(6),
these data may also
be used for
law enforcement purposes.

15

DIRECTIVE (EU) 2015/413 of
11 March 2015 for the
facilitation of cross-border
exchange of information on
traffic offenses related
to road safety.

The Law on Extrajudicial
Settlement of Offenses of 1997,
Law 47(I)/1997, as
amended.

Article 11(A) of the Law
regulates the exchange
of information between the
Republic of Cyprus and
other Member States, which
is carried out in accordance with
Decisions 2009/315 and

2009/316 (Prum Decisions).

26

16

DIRECTIVE 2006/24/EC of 15 March 2006 on the retention of data generated or processed in connection with the provision of publicly available electronic communications services or public communications networks and amending Directive 2002/58/EC.
(repealed)

The Law on the Retention of Telecommunications Data for the Purpose of Investigating Serious Criminal Offenses of 2007, as amended, Law 183(I)/2007.

Relevant is the Decision of the Supreme Court dated 21 October 2021 in the Civil Applications concerning Telecommunications Data No. 97/18, 127/18, 140/19-143/19, 154/19, 169/19, 36/20 and 46/20.

The Directive was annulled in 2014 following a Decision of the CJEU (case Digital Rights Ireland C-293/12 and C-594/12).

Article 15(1) of the Law designates the Commissioner for the Protection of Personal Data as the competent supervisory Authority.

17

DIRECTIVE (EU) 2016/681 of 27 April 2016 regarding the use of data contained in Passenger Name Records (PNR) for the prevention, detection, investigation, and prosecution of terrorism and serious crime.

The Law on the Use of Data Contained in Passenger Name Records (PNR) for the Prevention, Detection, Investigation, and Prosecution

of Terrorism and Serious
Crime of 2018,
Law 141(I)/2018.
Published in the Official
Gazette of the Republic
on 14 December 2018.
Article 19 of the Law designates
the Commissioner for the Protection
of Personal Data as the
competent Supervisory Authority.

18
DIRECTIVE 2019/1024 of 20
June 2019 on open
data and the reuse of
public sector information.
The Law on the Reuse
of Public Sector Information of 2015,
Law 205(I)/2015.
For the purpose of harmonization with
the Directive, the Law on
Open Data, the Reuse of
Documents and Public Sector
Information and Related
Matters of 2021, Law
143(I)/2021, was enacted.

19
REGULATION (EU) 2018/1807
of 14 November 2018
on a framework for the
free flow of non-personal data
in the European Union.
Published in the Official
Journal of the European

According to the Regulation, the
European Commission shall
publish informative
Guidelines regarding the interaction
between this Regulation and
Regulation (EU) 2016/679.

27

Union on November 28, 2018.

20

REGULATION (EU) 2017/1939
of the Council of October 12, 2017, concerning
the implementation of enhanced cooperation for the establishment
of the European Public Prosecutor's Office.

The Law on the Implementation of
Regulation (EU) 2017/1939 of the Council, of October 12, 2017, concerning
the Implementation of Enhanced Cooperation for the Establishment
of the European Public Prosecutor's Office,
Law of 2021, No. 2(I)/2021.

Article 8 of the Law designates the
Commissioner for the Protection of
Personal Data as the competent Supervisory Authority.

21

The Law on the Right of Access to Public Sector Information of
2017, No. 184(I)/2017.

The Commissioner for the Protection of
Personal Data is responsible for
the implementation of this Law.

The Law came into effect on December 22, 2020.

22(a)

REGULATION (EU) 2018/1860

of November 28, 2018,

regarding the use of the

Schengen Information System for the return
of illegally residing third-country nationals.

The Regulation entered into force

20 days after its publication

in the Official Journal of the European Union (December 7, 2018).

The Law on the Operation and

Use of the Second Generation Schengen Information System (SIS II) in
the Republic, Law of 2022,

No. 12(I)/2022.

According to Article 28(1), the
Commissioner for the Protection of
Personal Data is designated as the national
Supervisory Authority.

22(b)

REGULATION (EU) 2018/1861

of November 28, 2018,

regarding the establishment,

operation, and use of the

Schengen Information System (SIS) in the area of
border checks, the amendment of the

implementing agreement of the Schengen

Agreement, and the amendment and repeal of

Regulation (EC) No. 1987/2006.

The Regulation entered into force

20 days after its publication

in the Official Journal of the European Union (December 7, 2018).

The Law on the Operation and

Use of the Second Generation Schengen Information System (SIS II) in
the Republic, Law of 2022,

No. 12(I)/2022.

According to Article 28(1), the
Commissioner for the Protection of
Personal Data is designated as the national
Supervisory Authority.

28

of the European Union (December 7, 2018).

22(c)

REGULATION (EU) 2018/1862
of November 28, 2018,
regarding the establishment,
operation, and use of the
Schengen Information System (SIS) in the area of
police cooperation and
judicial cooperation in criminal matters, the
amendment and repeal of Decision 2007/533/JHA
of the Council and the
repeal of Regulation (EC) No. 1986/2006 of
the European Parliament and the Council and Decision 2010/261/EU of
the Commission.

The Regulation entered into force
20 days after its publication
in the Official Journal of the European Union (December 7, 2018).
The Law on the Operation and
Use of the Second Generation Schengen Information System (SIS II) in
the Republic, Law of 2022,
No. 12(I)/2022.

According to Article 28(1), the
Commissioner for the Protection of
Personal Data is designated as the national
Supervisory Authority.

23

REGULATION (EU) 2018/1240
of September 12, 2018, for
the establishment of a European
Travel Information and Authorization System
(ETIAS), and for the
amendment of Regulations
(EU) No. 1077/2011, (EU)
No. 515/2014, (EU) 2016/399,
(EU) 2016/1624, and (EU)
2017/2226.

The Regulation entered into force
20 days after its publication
in the Official Journal of the European Union (September 19, 2018).

A Bill titled
the Law on the Implementation of
Regulation (EU) 2018/1240
of the European Parliament and the Council, of September 12, 2018, for the
establishment of a European
Travel Information and Authorization System
(ETIAS), Law of 2022.

24

REGULATION (EU) 2017/2226
of November 30, 2017,
regarding the establishment
of an Entry/Exit System (EES) for the registration

Since the Republic of Cyprus
is not a member of the Schengen area, it must

initially implement only the provisions of the

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data on entry and exit
and data on the refusal of
entry of third-country nationals crossing the
external borders of member states, the
determination of the conditions for access to the EES for
law enforcement purposes, and the amendment of the
implementing agreement of the Schengen Agreement and
Regulations (EC) No. 767/2008 and (EU) No.
1077/2011.

The Regulation entered into force
20 days after its publication
in the Official Journal of the European Union
(December 9, 2018).
Regulations apply to member
states that have not yet joined the Schengen area.

25(a)

REGULATION (EU) 2019/817
of May 20, 2019, for the
establishment of a framework
for interoperability between
the EU information systems in the area of
borders and visas and
the amendment of Regulations
(EC) No. 767/2008, (EU) 2016/399, (EU)
2017/2226, (EU) 2018/1240,
(EU) 2018/1726, and (EU)
2018/1861 of the European
Parliament and the Council, and Decisions
2004/512/EC and 2008/633/JHA of the Council.
The Regulation entered into force
20 days after its publication
in the Official Journal of the European Union (May 22, 2018).

This Regulation
applies in relation to
EURODAC from the date
on which the implementation of the
recast of Regulation (EU) 603/2013 begins.

25(b)

REGULATION (EU) 2019/818
of May 20, 2019, for the
establishment of a framework
for interoperability between
the EU information systems in the area of

30

of police and judicial cooperation, asylum and migration, and for the amendment of Regulations (EU)
2018/1726, (EU) 2018/1862, and (EU) 2019/816. The Regulation entered into force 20 days after its
publication in the Official Journal of the European Union (22 May 2019).

26

REGULATION (EU) 2022/868

of 30 May 2022 on European data governance and amending Regulation (EU) 2018/1724 (Data Governance Act). The Regulation entered into force 20 days after its publication in the Official Journal of the European Union and applied from 24 September 2023.

27

REGULATION (EU) 2022/2065

of 19 October 2022 on the single market for digital services and amending Directive 2000/31/EC (Digital Service Act). The Regulation entered into force 20 days after its publication in the Official Journal of the European Union and will apply from 17 February 2024, except for specific articles that apply from 16 November 2022.

28

REGULATION (EU) 2022/1925

of 14 September 2022 on contestable and fair markets in the digital sector and for the amendment of Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act). The Regulation entered into force 20 days after its publication in the Official Journal of the European Union and applied from 2 May 2023.

29

REGULATION (EU) 2023/2854

of 13 December 2023 on harmonized rules regarding fair access to data and fair use thereof and for the amendment of Regulation (EU) 2017/2394 and Directive (EU) 2020/1828 (Data Act). The Regulation entered into force 20 days after its publication in the Official Journal of the European Union and will apply from 12 September 2025.

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3. COMPLAINTS

Summaries of the main complaints from data subjects that occupied my Office during the year 2023 are provided, which are not included in Chapter 5 Commissioner Decisions. It is noted that where it is not specified against which entity the complaint was directed, this means that my Office did not communicate with that entity or that the complaint was directed against a natural person.

3.1. Rights of Data Subjects

Right of Access

3.1.1. Complaint regarding the non-satisfaction of the right of access by the Department of Population and Migration Records

The complaint concerned the non-satisfaction of the right of access to an employee's personal file by the Department of Population and Migration Records. As was evident from the investigation I conducted, the employee had never requested access to his personal file and, therefore, the Department had never refused to satisfy his request. Based on the above, the complaint was deemed unfounded. The complainant contacted my Office again, forwarding a relevant response received from the Department regarding his request for a copy of his file. Among other things, I explained to the complainant that if the Department follows a specific procedure regarding the right of access, then that procedure must be followed. I also mentioned that under Article 15 of the Regulation, justification for the request for access and provision of a copy is not necessary, while any positions and opinions he may have should first be submitted to the Department for consideration and then to my Office. Furthermore, I noted that in the case of a refusal to provide or a finding of a violation, my Office would examine the incident taking into account the positions of the Department. The complainant did not follow up.

3.1.2. Complaint regarding the non-satisfaction of the right of access by the Liopetri Community Council

A complaint was submitted to my Office against the Liopetri Community Council for non-satisfaction of the right of access. Specifically, the Council did not respond within the stipulated timeframe, nor did it inform the complainant of the reasons for not satisfying her request. My Office sent an email to the

data protection officer of the Council, and the complainant's request was satisfied without the need for any further action on my part.

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3.1.3. Complaint regarding the non-fulfillment of the right of access by the Electricity Authority of Cyprus

A complaint was submitted to my Office by an employee of the Electricity Authority of Cyprus regarding the non-fulfillment of the right of access to his personal file.

According to the information I received, the employee, following a relevant arrangement with the EAC, had conducted an inspection of his personal file. Since the complainant identified certain deficiencies, he notified the Authority in writing of these deficiencies, initially requesting a complete copy of his personal file and subsequently its correction.

Following the above, the complainant filed an appeal in Court against the Authority's decision to promote another person instead of himself. While the judicial process was pending, the employee submitted a request to the Authority for an inspection of his administrative file, for the purpose of preparing his written plea. In this context, the Authority informed the complainant that a meeting would be arranged promptly for this purpose.

Regarding the correction request submitted by the complainant, the Authority, after the intervention of my Office, proceeded to correct data included in the complainant's personal file.

Taking into account the above fact, as well as the filing of an appeal by the complainant against the Authority, and the Authority's intention to arrange a meeting for the inspection of the complainant's administrative file, I concluded that the Authority had taken all necessary actions to satisfy the complainant's requests (access and correction).

Furthermore, I informed the complainant that any other request for access to content of the administrative file pending the appeal did not fall within the jurisdiction of my Office, as it is regulated by other specific legislative provisions (*lex specialis*) and that any further intervention on my part could be considered as interference in the judicial work of the Court.

3.1.4. Complaint regarding the non-fulfillment of the right of access to personal file by the Cyprus Broadcasting Corporation

The complainant was an employee of the Cyprus Broadcasting Corporation and exercising the right of access, requested that his personal file be provided to him. However, the Corporation did not respond within the timeframe set by the Regulation, nor did it inform the complainant of any obstacles in providing his personal file.

My Office sent an email to the data protection officer of the Corporation, and the complainant's request was fulfilled. The complainant was informed accordingly, and since he did not follow up, I considered the case closed.

3.1.5. Complaint regarding the non-fulfillment of the right of access by the Bar Association Pension Fund

A complaint was submitted to my Office against the Bar Association Pension Fund regarding the non-fulfillment of the right of access. The complainant, through her lawyers, exercised the right of access to the minutes of specific meetings that concerned her.

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After the submission of the complaint to my Office and the sending, on my part, of a letter to the data protection officer of the Fund, the request of the complainant was satisfied. Therefore, I considered that it was not appropriate to take further action.

3.1.6. Complaint regarding the non-satisfaction of the right of access by a company

Based on the information included in the complaint received by my Office, there was a registered lawsuit against a company. However, this lawsuit was pending and had not yet been adjudicated. One of the contentious issues was the recorded telephone conversations between the complainant and the company's representatives, which included verbal instructions for the purchase/sale of bonds from other companies with foreign interests. The complainant requested that the company provide him with the recorded conversations; however, the company responded negatively to his request. I informed the

complainant's lawyer that based on Recital 20 of the Regulation and with full respect for the independence of the Judiciary, my Office could not engage in and rule on processing actions that were or would later become the subject of judgment in the context of judicial proceedings. I also added that in light of the judicial proceedings, which at that time were ongoing, documents that would be used before the Court could be requested within the framework of the judicial process. That is, a request for the disclosure of documents could be made.

3.1.7. Complaint regarding the non-satisfaction of the right of access by the Cyprus Insurance Company Ltd

An individual was struck by a vehicle driver, which was insured with the Cyprus Insurance Company Ltd. Subsequently, through a lawyer, they requested from the insurance company a copy of the information form and the photographs of the traffic accident. However, the insurance company rejected their request, and they submitted a complaint to my Office. During the investigation of the complaint, I received a letter from the Hellenic Bank Public Company Ltd and was informed that the requested documents could not be sent to the complainant, as they did not contain any personal data of theirs, but rather included personal data of the company's client. The accident information form and the photographs were communicated to my Office, and I found that indeed, the specific documents did not contain any personal data of the complainant. As a result, I informed the complainant that, since the documents did not include their personal data, the right of access they had exercised could not be satisfied.

3.1.8. Complaint regarding the non-satisfaction of the right of access by Themis Portfolio Management Limited

A complaint was submitted to my Office by an individual against the company Themis Portfolio Management Limited regarding the non-satisfaction of the right of access. Specifically, the complainant requested from the company to provide them with detailed statements of all bank and/or other accounts in which they were involved as a primary debtor and as a guarantor.

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For the investigation of the complaint, I sent a letter to the company, requesting its positions regarding the complaint and the reason for the non-fulfillment of the complainant's request. According to the company's positions, the right of access had been partially satisfied; however, the detailed account statements for accounts that were terminated following Court Decisions were not sent. After the above update to my Office, the company proceeded to satisfy the complainant's access request and sent relevant evidence to my Office. Therefore, I considered the case closed.

3.1.9. Complaint regarding the non-fulfillment of the right of access by a banking institution

In the complaint submitted to my Office through a law firm, it was stated that the complainant held a joint loan with her husband at the said banking institution. To secure this loan, the complainant mortgaged one of her properties. However, the complainant's husband sold the mortgaged property without the complainant's knowledge and used the proceeds from the sale to secure the aforementioned loan. The complainant requested from the banking institution to provide her with all relevant loan documents, as well as documents related to the sale of her property. However, as stated in the complaint, there was excessive delay in providing these documents to the complainant by the institution. In the attached forms of the complaint, there was an authorization-declaration, according to which the complainant authorized the law firm that submitted the complaint to my Office to request and receive on her behalf and for her account, documents, information, agreements, letters, and account statements regarding any bank loans the complainant had, either as the primary debtor or as a guarantor, from the banking institution and from other companies, whether they concerned personal accounts or joint accounts with other persons, or whether the complainant was a guarantor. The above request aimed at discussing, settling, and/or resolving any matters of the complainant out of court. Evaluating the authorization-declaration, I found that the said authorization-declaration did not pertain to the representation of the complainant before my Office. For this reason, I informed the law firm that a power of attorney document should be submitted to my Office, which would pertain to the representation of the complainant before my Office. However, on the day these actions were taking

place, the law firm informed my Office that certain documents had, in fact, been provided that day by the banking institution to the complainant, and for this reason, it was requested that the investigation of the complaint not proceed. Based on the above, I did not take any further action.

3.1.10. Complaint regarding the non-fulfillment of the right of access by Altamira Asset Management (Cyprus) Limited

According to the complaint, a request for access submitted to Altamira Asset Management (Cyprus) Limited was not fulfilled, even though the identification of the complainant had been previously conducted via videoconference.

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Following my communication with the company's data protection officer, the company conducted an internal audit of its systems and found that, due to human error, the relevant electronic message from the company to the complainant, which concerned her request, had not been successfully sent. Therefore, the company proceeded to resend the message to the complainant. The complainant did not respond, and thus, I considered the matter closed.

3.1.11. Complaint regarding the non-fulfillment of the right of access by Altius Insurance Ltd

The complainant submitted a complaint against the insurance company Altius Insurance Ltd, regarding the non-fulfillment of an access request. The complainant was insured with this company and accused the insured doctor of medical negligence. Specifically, the complainant, exercising the right of access, submitted a request for a copy of the medical report prepared by an independent doctor, at the request of the insurance company, based on which the company concluded that there was no evidence of any medical negligence.

My Office informed the insurance company that according to the applicable legal framework for the protection of personal data, the complainant, as the data subject, has the right to access his personal data. This data includes data that arose from other data, rather than being provided directly by the data subject itself. According to the Guidelines 01/2022 of the European Data Protection Board regarding the right of access, the data controller must provide such data to the data subject, such as the results of the assessment of his health, subject, however, to Article 15(4) of the Regulation, which states that "The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others."

Therefore, I requested that the insurance company provide the said medical report to the complainant, which it did.

3.1.12. Complaint regarding the non-fulfillment of an access request by EXT LTD (Exante)

A complaint was submitted against the company EXT LTD (Exante) regarding the non-fulfillment of an access request. Specifically, the company was asked to inform the complainant about the names of the data protection officer and the complaints management officer, as well as the departments of the company that had access to and processed his personal data. Although the company is not obliged to disclose the names of its employees, I deemed that for transparency purposes, the relevant information should be provided to the complainant.

Regarding the second part of the complainant's request, I found that it related to the company's request for the submission of his source of income. However, there was concern from the complainant about the existence of company departments outside the Union. The company assured the complainant that this was not the case, and for that reason, I concluded that the complainant's request was based on assumptions that I would not examine in any case.

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After my response, and after the request of the complainant was satisfied by the company to the degree and extent that I deemed appropriate, the complainant submitted a new access request to the company. However, this request was not satisfied and, for this reason, the complainant submitted a new complaint to my Office. Following a relevant investigation, I found that the company failed to satisfy the complainant's new request due to confusion, as the communication from my Office regarding the complainant's first request and the new request from the complainant was sent on the same day. Ultimately, the company, after the intervention of my Office, promptly proceeded to satisfy

the complainant's second request.

3.1.13. Complaint regarding the non-satisfaction of the right of access and information by the company Cognism Ltd

The complainant submitted a complaint against the company Cognism Ltd based in the United Kingdom, for the non-satisfaction of the right of access and information. Specifically, the complainant requested to know where the company obtained her personal data and with whom it shared them. My Office contacted the data protection officer of the company and received a response that the rights of access and information were not satisfied because a deletion request from the complainant had preceded, which was satisfied. As I was informed, the company, in compliance with its obligations under the Regulation and the relevant legislation of the United Kingdom, implemented technical procedures to allow data subjects to request the deletion of their data from its systems, by sending an email or through its website.

With the submission of a deletion request and within the timeframe provided by the Regulation, the personal data of the data subject in question are deleted, including information regarding where they were obtained from, to whom they were disclosed, and where that data was stored. It was also noted to my Office that the only information retained after a deletion request is a record related to the deletion request, in order to demonstrate the company's compliance with the request.

The complainant was informed of the above, and as she informed my Office, she had also submitted a complaint to the Supervisory Authority of the United Kingdom, from which she received a response with similar content.

3.1.14. Complaint regarding the non-satisfaction of the right of access by the company Reliantco Investments LTD

The complainant reported the investment company Reliantco Investments LTD for failure to provide all data concerning him, following the submission of a relevant access request. From the investigation, it became clear that due to the termination of the company's operations, as well as the termination of the client relationship, namely the complainant's relationship with it, the stored data that were retained were limited. All documents that were available to the company at the time of the submission of the access request and concerned the complainant were sent to him.

I informed the complainant that since the company provided him with a copy of all the data it held, in accordance with Article 15 of the Regulation, my Office could not take any further action.

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3.1.15. Complaint regarding the non-satisfaction of the right of access by the company EshopWedrop Cyprus Ltd

A complaint was submitted to my Office against EshopWedrop Cyprus Ltd. The complainant stated that he exercised his right of access by requesting a copy of his personal data. However, as he mentioned, he did not receive a response from the company.

I requested the company's positions, which provided my Office with two electronic links through which the complainant could access his data. Additionally, the company informed my Office that it had sent a form to the complainant, which listed the requested personal data. The company also apologized for any inconvenience, stating that there was a heavy workload.

I informed the complainant accordingly, also mentioning that, as it appeared, his request had been satisfied and further intervention from my Office was not indicated. The complainant thanked my Office for the "assistance" it provided.

3.1.16. Complaint regarding the non-satisfaction of the right of access by TechSolutions (CY) Group Ltd

Within the framework of the cooperation and consistency mechanism, a complaint was submitted to my Office by the Austrian Supervisory Authority regarding a request for access to the personal data of the complainant processed by TechSolutions (CY) Group Ltd. The complainant stated that his lawyer contacted the company via email, requesting information about all data concerning the complainant. However, the complainant's lawyer did not receive any response.

I requested the company's views, which stated that due to ongoing exchanges of messages with the

said lawyer, regarding other clients of his, the complainant's access request was lost in the chain of exchanged messages. Nevertheless, as soon as the company received the first letter from my Office, it provided the complainant with the requested information, as confirmed by the complainant's lawyer. Considering that the company complied with the complainant's request immediately upon receiving my Office's letter, I deemed that the simple delay was a minor issue, which minimally affected the rights and freedoms of the data subject, namely the complainant, and for this reason, I did not take any further action.

3.1.17. Complaint regarding the non-satisfaction of the right of access by Axlebolt Ltd

According to the complaint, the complainant was a player of a game developed by Axlebolt Ltd. Due to the fact that the complainant's account in the game had been blocked, the complainant requested from the company his personal data, as well as the reactivation of his account, since the ban, as he stated, was not fair. However, the company did not respond to the complainant's request.

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Since the complainant had not submitted sufficient information to my Office for the investigation of the complaint, I initially requested further information from the complainant, as well as relevant evidence. Subsequently, I approached the company and requested its position regarding the complaint. Due to its lack of response, I sent a new letter to the company and then a third letter to another email address of the company. However, my Office received automated responses in the Russian language. Furthermore, I sent a postal letter to the company's office, which was returned.

Considering that my attempts to communicate with the company were unsuccessful, I informed the complainant that my Office could not take further action regarding his complaint. However, I mentioned that he had the option to take legal action against the said company. The complainant did not return to my Office.

3.1.18. Complaints regarding the non-satisfaction of access rights by the companies Neo Premium Investments (NPI) Ltd – BROKERE0, Naxex Invest Ltd, and MCA Intelifunds Ltd

Separate and independent complaints were submitted to my Office against the investment companies Neo Premium Investments (NPI) Ltd – BROKERE0, Naxex Invest Ltd, and MCA Intelifunds Ltd. Each complainant had exercised the right of access to the company of which they were a client. These rights concerned, in each case, access to emails and/or other types of written messages and/or phone calls that the investment companies maintained.

I informed the complainants that according to Article 17 of the Investment Services and Activities and Regulated Markets Law of 2017, Law 87(I)/2017, Cypriot investment companies are required to keep records of all services they provide, as well as for the activities and transactions they carry out. Additionally, I mentioned that any refusal by the company must be reported to the company's supervisory authority, namely the Cyprus Securities and Exchange Commission, as there is a *lex specialis* regulating this matter. Therefore, I informed the complainants that these complaints should be submitted directly to the Cyprus Securities and Exchange Commission.

Right to Rectification

3.1.19. Complaint regarding the non-satisfaction of the right to rectification by the Hellenic Bank

The complainant stated that, while updating his personal information at the Hellenic Bank, he requested both by phone and by email a change of his email address. He then found that the banking institution continued to send some notifications to the email address he previously held. Furthermore, the complainant reported to my Office that the banking institution informed him that it could not rectify the problem and that only he, through his account on the institution's online platform, could correct his details.

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In the context of investigating the complaint, the banking institution reported to my Office that the contact details of the complainant included the email address that he had provided during the update

of his account. However, upon further investigation, it was found that the complainant was receiving notifications at his previous email address, which he had maintained, based on an alert instruction that he had registered through his account on the institution's customer platform. It is noted that the institution's customers had the option to add and update on the platform, instructions for automatic notifications for specific transactions, by entering the email address they wished. Ultimately, the institution intervened in the complainant's alert instruction and changed his email address, as per his request.

Due to the actions taken by the institution, I informed the complainant that further actions from my Office were not warranted, as his right had ultimately been satisfied.

Right to Deletion

3.1.20. Complaint regarding the non-satisfaction of the right to deletion from a website

According to the complaint, the complainant submitted a deletion request on a specific website, asking for the deletion of all her personal data, without, however, receiving any response. Taking into account all the information contained in the complaint, I deemed it necessary to request further clarifications and updates from the complainant, in order to proceed with the investigation of the complaint. The complainant never submitted the requested information, nor did she respond to the email I sent. As a result, the investigation of the complaint was discontinued.

3.1.21. Complaint regarding the non-satisfaction of the right to deletion and restriction of processing by Google LLC

A complaint was submitted to my Office regarding the non-satisfaction of the request for deletion/restriction of the processing of the complainant's personal data by Google LLC. Specifically, the complainant had requested that certain links not appear in the search results conducted based on his name, through the Google search engine. The links in question referred to publications regarding sexual offenses committed by the complainant and included his full name, the facts of the case, the offenses for which he had been convicted, as well as the penalties imposed on him.

Regarding the deletion/restriction of the processing of the complainant's personal data, for users in the United Kingdom and taking into account, primarily, the seriousness of the information in question, as well as the inclusion of the complainant in the United Kingdom's sex offenders register at least until 2029, along with the issuance of a relevant order against him for the same period, I concluded that in balancing the right to the protection of the complainant's personal data and the right of internet users to information, the scales tipped in favor of the latter. Therefore, the company's decision not to satisfy the request within the jurisdiction of the United Kingdom was deemed justified.

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Regarding the request for the non-display of links to internet users outside the United Kingdom, in order to properly balance the right to privacy and the right to the protection of personal data of the complainant against the public interest in information, the legislations regulating the limitation periods for the offenses of the complainant in each country should be taken into account. My Office was unable to know these legislations in order to determine whether the balance leaned in favor of the complainant or the company.

As for Cyprus, the complainant stated that, according to the Rehabilitation of Offenders Law of 1981, Law 70/1981, his sentence had been rehabilitated and he had obtained a clean criminal record. With the information I had before me, this could not be confirmed. I advised the complainant to send the clean criminal record directly to the company, with my notification.

3.1.22. Complaint regarding the non-satisfaction of the right to erasure by an insurance company

The complainant requested an insurance company to insure her vehicle, submitting her personal data to it. However, she did not proceed with the conclusion of a contract and, as she stated to my Office, the insurance company retained her identity in its records. Subsequently, the complainant requested the company to delete her data, both by phone and via email. However, in a subsequent communication she had with the company, she was informed that since she had provided the company with her data, they could be retained. Despite the above response from the company, considering that at the time of submitting the complaint to my Office, the one-month time limit provided

for in Article 12 of the Regulation for the satisfaction of the rights of data subjects had not expired, I could not investigate the said complaint.

However, I requested the complainant to inform my Office whether the company responded to her request. However, she did not follow up, and therefore, the complaint was archived.

3.1.23. Complaint regarding the non-satisfaction of the right to erasure by Dogn Limited

A complaint was submitted to my Office against Dogn Limited regarding the non-satisfaction of the request for the deletion of the complainant's email address, which was inadvertently included in the company's records, as it was provided by a third party and not by the complainant. In the course of the investigation, the company informed my Office that the complainant's account had been canceled. However, my Office clarified to the company that the cancellation of a customer/user account does not entail the deletion of the data, therefore, I requested that the complainant's request be satisfied. Due to the intervention of my Office, the company proceeded to satisfy the complainant's right.

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3.1.24. Complaint regarding the non-satisfaction of the right to erasure by Senira Limited

A complaint was submitted to my Office against Senira Ltd regarding the non-satisfaction of the right to erasure. Specifically, the complainant requested the deletion of a comment from a platform managed by the company, due to the inclusion of his name in that comment. I sent a related update to the company requesting their position on the complaint and the reason for the non-satisfaction of the request. Following that letter, the company promptly proceeded to satisfy the request for the deletion of the complainant's data, a fact that was also confirmed by the complainant himself.

Taking the above into account, there were no grounds for me to take further action, and I considered the case closed.

3.1.25. Complaint regarding the non-satisfaction of the request for deletion by Reddit Inc.

A complaint was submitted against Reddit Inc. regarding the non-satisfaction of a request submitted by the complainant for the non-deletion of the content of his account. Specifically, the complainant stated that according to the company's positions, before a user's account is deleted, the user must delete all their posts and/or comments if they wish to do so. While the complainant repeatedly attempted to delete the content of his account, certain comments and posts reappeared after a few days.

According to the company's response, real names or other data leading to the identification of users were not collected, but only the pseudonym used by the users was collected. Furthermore, as mentioned, the company is only responsible for the deletion of the account. In the event that an account is deleted, its content ceases to be linked to the pseudonym of the account. However, some of the complainant's comments and posts could not be deleted, as they pertained to subreddits that had been banned for violating the company's policies.

Considering that the complainant's posts and comments did not include any information that could lead to his identification, the complainant was informed that these did not constitute personal data and, therefore, there was no right to delete them. My Office clarified to the complainant that he had the option to exercise the right to deletion regarding his account and was directed to request the deletion of his account. However, I asked the complainant that, in case any comments or posts remained linked to his account, he should inform my Office accordingly.

Nevertheless, the complainant did not follow up.

3.1.26. Complaint regarding the non-satisfaction of the right to erasure from a taxi platform

A complaint was submitted to my Office by an individual against a private taxi platform due to the non-satisfaction of the right to erasure exercised by this individual. Specifically, the

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The complainant requested the platform to delete all of his personal data that he had submitted. From the investigation of the complaint, it was found that the one-month period, as provided in Article 12(3) of the Regulation, had not yet elapsed, during which the data controller is obliged to comply with the request of the data subject or to provide information regarding the actions taken. Therefore, I urged the complainant to wait for the stipulated time to pass and, in case his request was not fulfilled, to inform my Office accordingly. However, the complainant did not follow up, and thus, the complaint was

archived.

3.1.27. Complaint regarding the non-fulfillment of the right to erasure and portability

A law firm representing twenty-two natural persons and two companies reported an incident where its clients, through written letters, requested that the management of their companies be transferred to another administrative services provider, while also requesting the destruction of their electronic files/data. Despite repeated requests for the deletion and transfer of the clients' data, as mentioned in the complaint, these had not been fulfilled. I informed the law firm that, on one hand, the issue of handing over the physical/electronic files could be addressed within the framework of management, as the manager might be called to account for this. On the other hand, the data subjects (clients) could exercise their right to portability in writing and request that their data, which did not affect the management, be transferred. Additionally, any issues arising or related to the management had to be raised and examined by the Court. I deemed that at that stage, my Office could not get involved. As I informed the law firm representing the complainants, after the conclusion of the said process, if matters within my jurisdiction had not been addressed, then they could be brought before me.

Various

3.1.28. Complaint regarding the non-fulfillment of rights and the loss of a file by the Cyprus Youth Organization

The complaint was submitted against the Board of Directors and employees of the Cyprus Youth Organization. The complaint concerned the temporary loss of a personal data file, deprivation of the right to access personal files within a reasonable time, deprivation of the right to rectify personal information and data, inaction in investigating complaints, and inadequate implementation, as mentioned, of relevant Regulations and legislation. For the investigation of the complaint, the positions of the Organization were requested, which were examined by my Office. Based on what was presented to me, I deemed it necessary to request clarifications and appropriate documentation from the complainant regarding the claims she brought to my attention. The complainant did not submit to my Office the requested information, thus the investigation of the complaint was halted due to lack of evidence.

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3.1.29. Complaint regarding the non-fulfillment of rights and receiving calls and messages from a law firm

The complaint submitted to my Office against a law firm concerned the non-fulfillment of the complainant's rights, as well as the receipt of phone calls and email messages from a lawyer who worked at the law firm. Furthermore, according to the complainant, the incident had already been reported to the Central Police Station of Limassol. Therefore, there was an ongoing investigation by the Police. As I informed the complainant, the Police may directly apply the provisions of the implementing Law 125(I)/2018 regarding personal data issues that may arise and, consequently, there was no justification for any involvement of my Office at that stage. However, I added that upon the conclusion of the Police investigation, the complainant could return to my Office if she believed that the issue of personal data had not been addressed by the Police. The complainant stated that she did not wish to pursue her complaint further and, therefore, I considered the matter closed.

3.2. Notification – Publication – Leakage of personal data

3.2.1. Complaint regarding a request for data notification from the Department of Land and Surveys

The subject of the complaint submitted to my Office was a request from the Cyprus Asset Management Company (KEDIPEs) to the Director of the Department of Land and Surveys for information regarding properties registered, including any encumbrances, in the name of the complainant, without her consent. This request was submitted in order to facilitate the recovery of a debt from a non-performing loan.

The complainant informed my Office that the alleged debt and/or its amount was disputed, with a lawsuit filed by her against the Cooperative Cyprus Bank / KEDIPEs. However, this lawsuit had not, at that time, become final.

My Office informed the complainant that it does not have jurisdiction to examine any case that is in the

midst of judicial proceedings, as such matters fall under the jurisdiction of the Court itself. Nevertheless, I informed the complainant to take into account that according to Article 51A of the Immovable Property (Possession, Registration and Valuation) Law (Cap. 224), the notification of the requested data may potentially be based on the legal obligation of the data controller, namely the Director of the Department of Land and Surveys (Article 6(1)(c) of the Regulation) and, therefore, her consent may not be required as a legal basis for processing.

3.2.2. Complaint regarding data notification from the Social Insurance Services

A complaint was submitted to my Office against a natural person for obtaining the detailed payroll statements of the complainant from the Social Insurance Services, without the

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consent and/or authorization and/or agreement. It is noted that, as mentioned in my Office, these situations had been submitted as evidence to the Family Court. I informed the complainant that, according to Article 55(3) of the Regulation, the Supervisory Authorities are not competent to oversee processing activities carried out by Courts within the scope of their jurisdiction. Therefore, the complainant was directed to present her claims before the Court.

3.2.3. Complaints regarding the disclosure of personal data in the context of a disciplinary investigation

Four complaints were submitted regarding the violation of personal data in the context of a disciplinary investigation by the Police. The complaints raised questions, among others, regarding the legality of the data collection, its disclosure by the Police to a disciplinary body of the Police, whether this collection was proportionate to the purpose for which it was collected, and what measures were implemented to safeguard the said data. I responded to the complainants' inquiries, stating that the disclosure of personal data by the Police to a disciplinary body of the Police, the establishment of which is provided by Law and/or Regulations, does not constitute a violation of the Regulation. Furthermore, whether some of the information submitted to a disciplinary body of the Police was necessary or not was a matter that should be addressed to that disciplinary body and judged by it, and not to be raised and judged by my Office. Additionally, regarding concerns about data security, I mentioned that the disciplinary process is provided by the K.D.P. 53/89 (the Police (Disciplinary) Regulations of 1989), as amended from time to time, and that the safeguarding and destruction of disciplinary files were also regulated by a Police Directive. As a result of the above, I concluded that there were no grounds for further investigation of the complaints.

3.2.4. Complaints regarding the disclosure of personal data by Themis Portfolio Management Limited

Two complaints were submitted to my Office against Themis Portfolio Management Holdings Limited regarding the leakage of personal data. Specifically, the complainants stated that the company sent a registered letter to a third party, which included the financial obligations of the complainants towards it, as well as their personal data. During the investigation of the complaint and after written communication that my Office had with the data protection officer of the company, I was informed that the disclosure of the letters was made within the provisions of the Transfer and Mortgage of Property Law of 1965, Law 9/1965, as amended, specifically under Article 44(Z)(2) thereof, according to which the notice of auction is served to the mortgagor and to any other interested party within a period of not less than forty-five days from the specified auction date. Furthermore, according to Article 44(IE) of the same Law, in the Interpretative Provisions, "interested party" means any person who has a right to any part of the proceeds of the sale at auction, as evidenced by a search of the Land Registry records and includes any guarantors in relation to the mortgaged debt.

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To support its position, the company attached to my Office the research conducted at the Land Registry, which confirmed that the name of the third party who received the letters was registered as an applicant for the property. Considering the provisions of the aforementioned Law, I informed the complainants that the letters had been sent for the company's compliance with a legal obligation and that their personal data had not been unlawfully disclosed to third parties. That is, there was no violation of the complainants' data.

3.2.5. Complaint regarding the disclosure of banking data of another person by the Bank of Cyprus
In the complaint submitted to my Office, it was stated that during a visit by the complainant to a branch of the Bank of Cyprus Public Company Ltd, after her request for a printout of her account's IBAN certificate, she was mistakenly given a certificate for another customer's account. After realizing the mistake, she called and reported the incident to the bank's call center. From the investigation of the incident, it became clear that the risks arising from the nature, sensitivity, volume, and context of the personal data involved in this specific incident were not high. Therefore, I recommended to the banking institution to examine the factors that caused the incident and to take additional technical and organizational measures (e.g., establishing control mechanisms, frequent reminders of instructions to staff, written instructions to staff, etc.) in order to prevent and hinder future similar erroneous actions.

3.2.6. Complaint regarding the disclosure of personal data by a banking institution

A complaint was submitted by a natural person concerning the disclosure of information related to her credit facilities by a banking institution with which she had a loan to her close relatives, who were not related to that loan. Upon reviewing the complaint, I found that it was closely related to the Notification of a personal data breach incident that the banking institution had previously submitted to my Office. Therefore, I informed the complainant that the incident had already been investigated by my Office as part of the Notification and informed her of the corrective measures that the banking institution had subsequently taken to prevent a similar incident in the future. Consequently, since the case had already been investigated within the framework of the Notification and taking into account the relevant information I had received, but mainly the corrective measures taken by the banking institution, I concluded that there were no grounds for taking additional administrative measures.

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3.2.7. Complaint regarding the disclosure of personal data by a banking institution

A complaint was submitted to my Office by a natural person regarding the disclosure of his personal data by an employee of a banking institution. Specifically, according to the complainant's allegations, the employee disclosed the complainant's personal data to the complainant's daughter. However, the complaint submitted to my Office did not contain further information, and for this reason, I informed the complainant that in order for his case to be investigated, he would need to complete the type B complaint form, which is posted on my Office's website. I also requested that he provide my Office with more information and evidence regarding his allegations. The complainant did not follow up, and the case was considered closed.

3.2.8. Complaint regarding the disclosure of medical examination results by a doctor

According to a complaint submitted to my Office, a doctor provided the complainant's sister with the medical examination results of their mother. This result was used in a Court lawsuit as evidence of the latter's cognitive impairment. I informed the complainant that there was the possibility to raise in Court whether the medical examination result had been lawfully given to her sister and whether it could be accepted by the Court as evidence. I also mentioned that it is exclusively up to the Court to determine whether the above issues were raised and if so, whether the Court accepted the medical examination result as evidence. I could not proceed with any further investigation, since a document has been allowed by the Court to be submitted as evidence within its jurisdiction, with all the consequences this has regarding the legality of obtaining that evidence and the necessity for prior notification or not, in this case, to the complainant. My Office could only conduct such an investigation if this document had not been submitted as evidence in Court. Moreover, the admissibility and evidentiary value of the elements submitted to the Court as evidence, based on established case law, is an exclusive matter and jurisdiction of the Court. As a result of the above, my Office did not take any further action.

3.2.9. Complaint regarding the disclosure of personal data by AlphaMega Supermarkets

As stated in the complaint, the complainant complained to AlphaMega Supermarkets about a specific product. Subsequently, she received a phone call from a supplier of the product she complained about, who informed her that he had been made aware of her complaint and that he wanted to personally apologize.

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In the context of the investigation, the supermarket reported to my Office that the supplier contacted the complainant on his own initiative, as he had the contact details of the complainant from their previous collaboration and not from the supermarket. I found and informed the complainant that the supermarket acted within the framework of its privacy policy, which contains provisions regarding the legality of data processing. I also informed that lawful processing is not always determined solely by the existence of consent or not, but also by other legal bases. Therefore, there was no violation of the complainant's data by the company.

3.2.10. Complaint regarding non-disclosure of personal data by the insurance company Atlantic

A lawyer requested from the insurance company Atlantic to provide him with the details of a specific client of the insurance company, who had been involved in a traffic accident with the lawyer's client, for the purpose of filing a lawsuit against him. However, the insurance company refused to provide the requested data, omitting the client's data from the accident information form. The lawyer submitted a related complaint to my Office. I informed the lawyer of the complainant that it was not my duty to compel the insurance company to disclose third-party information. It was up to the discretion of the data controller, namely the insurance company, whether to disclose any personal data of its clients. My Office's jurisdiction would be to investigate any complaint from the data subject whose data would have been disclosed and to review the specific processing action by the insurance company.

I also informed the complainant that, based on Article 16A of the Motor Vehicles (Third Party Liability Insurance) Law of 2000, Law 96(I)/2000, "the injured party [...] acquires a direct right of action against the insurer covering the civil liability of the liable party, who in such cases is substituted in the position of the insured against the injured party, without the injured party being obliged to also take action against the insured [...]". Finally, I noted that in the case of filing a lawsuit, he could obtain the requested documents as part of document disclosure during the judicial process, without any omissions.

3.2.11. Complaint regarding the disclosure of personal data by Orthodoxou Travel LCC

A complaint was submitted to my Office, according to which the company Orthodoxou Travel LCC informed, via electronic messages to a specific email address, the wife of the complainant, who resided in a third country, regarding the complainant's flight dates to that country, as well as that another person would be traveling with him.

In the context of the investigation, the company informed my Office that it did not have the contact details of the complainant's wife, nor had it communicated with her, and that the said email address was provided by the complainant to the company.

From the examination of the electronic messages that the company provided to my Office, it appeared that the email address in question was being used by the complainant's wife.

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Despite my findings, which I presented to the complainant's lawyer, he stated that the email address used by the company to communicate with the complainant was not used by him and was never provided by him to the company. However, following further communication from my Office with the company, the company stated that the complainant supplied them with the email address in question and that he did not inform them that it was being used by a third party.

Therefore, conflicting positions were presented to my Office regarding whether the complainant provided the company with the email address in question. Consequently, my Office could not further investigate the complaint. I informed the complainant's lawyer that if the complainant believed that another person provided the company with an email address using his details (name and surname), impersonating him, he could report this to the Police with a relevant complaint.

3.2.12. Complaint regarding the disclosure of tenant's phone number by the property owner

A complaint was submitted against the property owner by the tenant of the property regarding the disclosure of the tenant's mobile phone number and the exact address of the property to a third party without the tenant's consent. The third party called the complainant - tenant in order to visit the property.

During the investigation of the complaint, it became apparent that there was a dispute between the

owner and the tenant regarding the amount of rent, while the rental agreement had expired. The property owner was repeatedly trying to set a date for a meeting/visit to the property without success. Considering the information presented to my Office, I concluded that the processing of the complainant's data was carried out by the owner based on his legitimate interest, namely Article 6(1)(f) of the Regulation, and therefore, I did not identify any violation.

3.2.13. Complaint regarding the disclosure of personal data by the management company Blue Orange Property Management

A complaint was submitted by an individual against the management company Blue Orange Property Management, which took over the management of the complex where the complainant resided. Specifically, the complainant alleged that the company unlawfully disclosed her financial debts to the complex to the other tenants.

During the investigation of the complaint, I found that the company had signed a contract with each of the tenants, according to which the company performed the duties of the management committee for the complex, which included, among other things, the collection of common expenses. I informed the complainant that, according to the Immovable Property (Tenure, Registration and Valuation) Law (CAP.224), tenants have the right to be informed about the common expenses and the debts of other tenants in the complex. I also noted that the company only disclosed the necessary data, namely the apartment numbers and not the names of the respective tenants.

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Although entering into a contract with each of the tenants was not the usual practice, it did not appear that the personal data of the complainant had been disclosed to unauthorized persons and, therefore, I considered the case closed.

3.2.14. Complaint regarding the disclosure of data to an email address

The complainant reported an individual for the illegal disclosure of email correspondence to an unauthorized person. The correspondence concerned the management of the apartment building, in which the complainant was the owner of an apartment.

In the course of the investigation, I contacted the person against whom the complaint was directed, namely the sender of the message. This person submitted to my Office a screenshot, which showed the name of the complainant's company as well as the email address to which the sender sent the email. However, the complainant submitted to my Office another screenshot, which, while showing the same company, indicated that the complainant maintained a different address from the one used by the sender. I note, however, that these two addresses differed by only one letter.

Therefore, through the investigation, it was not proven, nor could it be established, whether the email address to which the email was sent was active, to whom it belonged, and who the actual recipients of the correspondence sent to it were. That is, the complainant's claim of unauthorized disclosure/sending could not be substantiated, and thus, no violation could be supported.

Consequently, taking into account the facts, the evidence, and the relevant legal provisions, I found no violation under the provisions of the Regulation.

3.2.15. Complaint regarding the disclosure of personal data by the company A.I. Motokinisi LTD

A complaint was submitted to my Office against the company A.I. Motokinisi LTD (hereinafter referred to as the "company") for processing personal data without consent.

The complainant visited a seller of E-Cars Cyprus (hereinafter referred to as the "seller") for the sale of his vehicle. In the presence of the complainant, the seller called an employee of the company. The complainant alleged that the employee of the company provided the seller with information regarding the purchase of the vehicle from the company, such as purchase cost, discount, and suggested selling price estimate. The complainant, as stated to my Office, did not give consent for the phone call, nor did he consent to the disclosure of information regarding the purchase of the vehicle from the company.

Following a letter from my Office, the company, in a response email, categorically denied any processing of the complainant's personal data. During the conversation between the seller and the employee, no personal data was mentioned, but only the brand of the vehicle and its registration date were referred to. The seller asked the employee to inform him about the current estimated value of

vehicles of that brand and registration date, but not for the specific vehicle of the complainant. As mentioned, this practice is common, as the company has price lists with the values of its vehicles based on their brand and registration date. This price list is also posted on the...

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The company's website allows anyone who wishes to learn the value of a vehicle to study this price list. Furthermore, in any case, the employee could not disclose to the seller any personal data of the complainant, as he did not have access to such data. The complainant purchased his vehicle from a store in a different province than the one where the company's employee is employed. Moreover, according to the company's accessibility policy, the personal data of its customers, as well as invoices, are stored in its accounting system, and access to this system is granted only to authorized individuals. Sales consultants, such as the employee, are authorized persons but have limited access to the data of customers in the province where they work and do not have access to final invoices that include any discounts.

According to what was presented to me, both from the complainant's side and from the company's side, there were contradictions regarding what exactly was said and what data was used during the telephone communication between the seller and the company's employee. Additionally, there was no evidence that supported one position more than another.

Therefore, my Office informed both the complainant and the company that if no new evidence was provided to support one of the two positions, I could not conclude any investigation on my part. Neither the complainant nor the company followed up.

3.2.16. Complaint regarding the publication of personal data by a property management company
The complainant submitted a complaint against a property management company for posting the title of ownership of his property on a Google Drive link, which was accessible to the other owners of the apartment building.

After the complaint was submitted to my Office, I provided guidance to the complainant, and the management company complied, that is, it deleted the complainant's title of ownership from the relevant link.

3.2.17. Complaint regarding the publication of personal data without consent
The complainants submitted a complaint claiming that the individual against whom the complaint was directed requested information—data concerning them, as well as their photographs—for a specific event organized in 2019. However, the complainants discovered that the aforementioned data and photographs were used for another purpose and published in a book, without the complainants being informed.

Following an email sent from my Office, the individual against whom the complaint was directed stated that he informed the complainants that the data and photographs collected would be used for both the event and for the publication of a book concerning the genealogy of the residents of their village and that the complainants had verbally consented. However, he did not consider it appropriate to request written consent due to their long-standing acquaintance and that most of the information and material about their family was provided by their sister before she passed away. Additionally, he mentioned that only thirty-five copies of the book were circulated, which were selectively given for comments and opinions before a larger edition of the book was produced.

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After the update received from my Office, the author of the book removed all material referring to the family of the complainants, and therefore, this material would not be included in the publication of the book. The complainants were informed accordingly, and they did not respond.

3.2.18. Complaint regarding the publication of personal data by the company RocketReach
According to the complaint submitted to my Office, the complainant had identified her personal data on the website <https://rocketreach.co>, which may have obtained it from the social media platform LinkedIn or from an individual who registered using the complainant's name. The complainant requested the

company to delete her personal data. The company took this action and sent a response to the complainant, stating that it would inform its third-party providers/partners regarding the deletion. After correspondence exchanged between my Office and the company, the company informed me, among other things, of the following:

(a) the company collects professional information from publicly available sources, which pertains only to professional life and not to private/family life. Data subjects can request access, correction, or deletion of their data,

(b) the provider companies mentioned in the company's response to the complainant provide the company with data for companies and individuals in the United States of America only. Therefore, it clarified that these companies had been mistakenly mentioned in the response sent to the complainant, as the company does not receive data for individuals in the Union from these companies. Additionally, the company stated that it had retrained its staff to prevent the mistake from recurring. Due to the fact that the company is based in the U.S., there were practical and legal difficulties in verifying certain points from what the company stated to my Office. In any case, considering that the complainant's data had been deleted and had not been purchased from the provider companies, I informed the complainant that my Office would not take any further action at that time. I also mentioned to the complainant that if the company reposted her data again, she could inform me so that I could reconsider the case.

3.2.19. Complaint regarding the publication of a video on social media

A complaint was submitted by a member of the Police regarding a video that was posted, without his consent, on social media, which showed the complainant, in the context of performing his duties, informing protesters about their rights and obligations. Additionally, his name was mentioned in the video by the person who posted it. The complainant requested that the video be removed from the specific social media platform, as well as from other platforms where it was reposted/shared. He also requested that the possibility of violations of other rights arising from the comments resulting from the post be examined and that malicious and defamatory statements made by the person who uploaded the video be investigated.

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Considering that the complainant informed my Office that a similar complaint was also submitted to the Police, I deemed it more appropriate to suspend the investigation of the complaint until the completion of the investigation of the case by the Police. I also suggested to the complainant to proceed with a report regarding the content of the post, as stipulated and provided for in the policy of the respective social media platforms. Furthermore, I informed that the examination of the defamatory statements contained in the video, as well as the comments published in connection with the post, did not fall within my jurisdiction.

3.2.20. Complaint regarding the publication of videos of minors on a social media platform

Complaints were submitted to my Office by two parents whose children appeared in a video of an incident of assault after school hours, which was posted on the social media platform Facebook. Following communication from one of the parents with the CyberSafety Helpline and Complaints, the video was deleted. Additionally, one of the two parents reported the case to the Police. After communication from my Office with the Police, I was informed that the case was under investigation by the Police Station within whose territorial jurisdiction the incident was alleged to have occurred. However, I requested the Police to inform me of the actions taken and the outcome of the complaint once the investigation of the incident was completed, so that I could assess whether further actions were warranted by my Office.

3.2.21. Complaint regarding the sharing of videos by the Nekatomata group on social media

A complaint was submitted to my Office by an individual who appeared in two videos that were posted on the accounts of the "Nekatomata" group on the social media platforms Facebook, Twitter, and Instagram. In these videos, the complainant's face and the registration number of their vehicle were clearly visible. Following an email from my Office to the group in question, the videos were deleted. Consequently, I considered that the matter had been resolved and that no further action was

warranted on my part. Therefore, I informed the complainant accordingly.

3.2.22. Complaint regarding the publication of a screenshot on a social media platform

A complaint was submitted to my Office by a citizen regarding the publication of a screenshot of their personal profile on the Facebook page "TAXI PARANOMOS," accompanied by unfounded and false statements. After an investigation by my Office on the said page, it was found that both the personal details and the photograph of the complainant had been altered and could not, in any case, lead to their identification. Therefore, I informed the complainant that my Office would not proceed with any further investigation of their complaint.

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3.2.23. Complaint regarding the publication of photographs on social media

The complainant submitted a complaint regarding the publication of her photographs on social media accounts (Facebook and Instagram).

According to Recital 18 of the Regulation, concerning social media, as well as Article 2(2)(c) of the Regulation, it is evident that the Regulation does not apply when the processing of personal data is carried out by an individual in the context of personal or household activities and is not related to any professional or commercial activity. In cases of exemption for household activities, the Regulation applies to data controllers or processors who provide means for such personal or household activities (e.g., online platforms, social media platforms).

Additionally, in the Judgment of the Court of the European Union, C-73/07, Satakunnan Markkinapörssi and Satamedia, dated December 16, 2008, it was stated that processing that is exposed to an indeterminate number of persons does not fall under personal or household activities. Following an investigation by my Office, it was found that the two accounts maintained on Facebook by the individual against whom the complaint was directed were private, meaning that beyond the profile picture, users who were not friends could not see other photographs. Regarding the accounts maintained by this individual on Instagram, one of them was private, therefore someone who did not follow this user could not see what was posted, while the second account had no posts.

I took into account the data before me, as well as the fact that the photographs were posted in the context of household activities and concerned private and closed accounts (i.e., someone could only see the posts if they were friends or followers of this individual), and I did not discern valid reasons for further action.

I informed the complainant accordingly, who did not respond.

3.2.24. Complaint regarding the publication of photographs on social media

A complaint was submitted to my Office against a private kindergarten for posting photographs of the complainant's child on social media.

Specifically, the kindergarten posted photographs of the complainant's child on social media without his consent. The complainant informed my Office that parental responsibility for the child is shared with the mother.

In the context of the investigation, I communicated in writing with the kindergarten, requesting their position on the complainant's allegations. I also requested that they immediately remove the relevant posts.

The kindergarten informed my Office in writing that the photographs of the child had been removed from social media and clarified that the posting was made because they had received the mother's consent. It is noted that the complainant confirmed that the photographs had been removed.

Taking into account the immediate cooperation and compliance of the kindergarten with the instructions of my Office, as the photographs were removed promptly, as well as the assurance provided...

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the kindergarten that a similar incident would not be repeated, I considered that no further action was necessary and deemed the matter closed.

3.2.25. Complaint regarding the posting of data on a social media platform

Two complaints were submitted against the same individual regarding a post on a social media

platform: (a) false, malicious, and vulgar accusations against the complainants, (b) sensitive personal data of the minor son of one of the complainants, and (c) the names and addresses of the complainants. Initially, my Office informed the complainants that they could proceed with reporting the content of the said post, as defined in the relevant policy of the social media platform. Regarding the complainants' claim of false, malicious, and vulgar accusations against them, the complainants were informed that the examination of such evidence does not fall within my jurisdiction. Subsequently, the complainants informed my Office that due to the seriousness of the situation, they proceeded with a related complaint to the Crime Detection Department. Therefore, I informed them that I could not proceed with the investigation of their complaint until the completion of the investigation of the case by the Police.

3.2.26. Complaint regarding the publication of personal data on a social media platform

The complainant submitted a complaint regarding the publication of a video on a specific account on the social media platform TikTok.

I informed the complainant that regarding the public post concerning her, on the profile of the individual against whom the complaint was directed, the complainant could proceed with reporting this content, as defined in the relevant policy of the platform. In the event that she did not receive a response from this platform and/or received a response that did not satisfy her, then my Office could proceed with an investigation after the submission of a related complaint. Furthermore, in order for my Office to proceed with the investigation of the complaint, it required the necessary contact details (address, email, or phone number) of the person who made the publication/post, which in this case were not included in the complaint submission form filled out by the complainant. I note that for the purposes of accurate recording of the facts and monitoring of each case, my Office communicates in writing with the parties involved in the complaint, either by mail or via email. In exceptional cases and/or in cases where there is no mailing and email address, my Office may contact the parties by phone. Therefore, in the absence of all the aforementioned contact details, my Office was unable to communicate in any other way with the involved parties.

The complainant was informed of the above and did not follow up. For this reason, I considered the matter closed.

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3.2.27. Complaint regarding the publication of a photograph and data on a social media platform

The subject of the complaint was a public post of a photograph on the social media platform Facebook. In this photograph, which had previously been published in the media, the complainant was depicted, and there was also a screenshot from the website of the office where the complainant worked, containing his name and professional contact details. The complainant had submitted to my Office the phone number of the user who made the post. My Office attempted to contact this individual, but without success. As a result, I informed the complainant that my Office could not proceed with further investigation due to the lack of any other contact information.

3.2.28. Complaint regarding the leakage of employee data from the Social Insurance Services

A complaint was submitted regarding the leakage of employee data from the Social Insurance Services. The complainants had already contacted the Services, which conducted a relevant investigation to assess the validity of the claims regarding the leakage of personal data. Upon completion of this investigation, I was informed in detail about the actions taken by the Services. Specifically, the officials of the Services who had accessed the personal data of the individuals concerned during specified time periods were identified, and the necessity of each individual's access was evaluated based on their roles and duties. However, it was not found that there was any unauthorized access, nor was any data leakage proven. Given that upon completion of the investigation, the Services had not identified any leakage of personal data and that no different evidence had been presented to support suspicions of data leakage, I concluded that there were no grounds for further examination of the case.

3.2.29. Complaint regarding data leakage from the Registrar of Associations and Foundations

The complainant submitted a complaint against the Registrar of Associations and Foundations for

sending an email in which the email addresses of the recipients were incorrectly placed in the carbon copy (cc) field instead of the blind carbon copy (bcc) field, as is the proper procedure when sending mass emails. My Office contacted the sender of the message and drew attention to the incident. Immediately, there was an apology, and it was stated that it was an isolated incident that occurred inadvertently. Additionally, my Office was informed that an email was sent to the officials of the Department as a reminder of the correct procedure. I note that this reminder email was also shared with my Office. The complainant was informed accordingly, and he did not follow up.

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3.2.30. Complaint regarding the leakage of personal data by an investment company

A complaint was submitted to my Office against an investment company, according to which the complainant, while being an active client, was contacted by a third party who claimed to act as its commercial director and convinced the complainant to invest a large sum of money. After the complainant filed a related complaint with the company, he discovered that he was a victim of fraud. The company informed the complainant that the said individual had never worked for them and that they had not recognized any breach in their systems, while also providing the complainant with instructions on how to protect himself from fraud.

Taking into account all that the complainant stated in his complaint and, in particular, that the email address and the phone calls he received were considered fraudulent, I informed the complainant that the competent authority for examining his complaint was the Police.

3.2.31. Complaint regarding the leakage of personal data by Terra Santa College

A complaint was submitted to my Office by a natural person, concerning the disclosure of personal data by the administration of Terra Santa College.

Specifically, according to the complainant's allegations, the school director maliciously used material that was recorded on video, resulting in the leakage of personal data of the complainant's child within the school unit.

In the context of investigating the complaint, I contacted the school director and requested his positions regarding the complainant's allegations.

The school director informed me that following an incident that occurred at the school, which was recorded on another student's device and within the framework of the responsibilities and duties of the school administration regarding the investigation of a student's complaint, it was deemed necessary to process the personal data of the subjects appearing in the video. The individuals at the school who had access to the data were the director and the administrative officer. These individuals categorically denied having disclosed or allowed any information or data to leak.

Taking into account that the director acted within the scope of his duties regarding the investigation of a complaint and based on the evidence before me, I concluded that no violation of the Regulation arose.

3.3. Collection – Use – Unauthorized access – Data retention / excessive data

3.3.1. Complaint regarding the use of identity card number in tax enforcement notifications by a Community Council

A complaint was submitted against a Community Council regarding the use of the complainant's identity card number as an account number in the tax enforcement notifications sent to him.

Additionally, the complainant reported to my Office that, as he had perceived, the Community Council had not appointed a data protection officer.

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The complainant was informed by my Office that the property details concerning the charges imposed on him are extracted from the Department of Land Registry and Survey, in whose system the identification number of each owner is their identity card number. Therefore, in the taxation sent by the Community Councils and Municipalities, the account number consists of the identity number of each owner.

Beyond the owner, to whom the tax imposition notice is delivered, no third party is expected to have access to the content of this notice. Consequently, the use of the identity card number in these notices

does not constitute a violation of the provisions of the Regulation and, as I informed, no actions were required on this matter from my Office.

Regarding the appointment of a data protection officer, I informed the complainant that the Community Council is a member of the Union of Communities of Cyprus. Therefore, taking into account the size of this community, and based on Article 37(3) of the Regulation, according to which "If the data controller or the processor is a public authority or public body, a single data protection officer may be designated for multiple such authorities or multiple such bodies, taking into account their organizational structure and size," I pointed out to the complainant that the data protection officer of the Community Council may be designated by the Union of Communities of Cyprus and not by the Community Council.

3.3.2. Complaints regarding the use of identity card numbers by the Cyprus Electricity Authority

Two complaints were submitted to my Office against the Cyprus Electricity Authority regarding the use of the identity card numbers of its employees as employee numbers in a design program of the Authority.

In the context of the investigation, the Authority informed my Office that the identity card number was used as an employee number for non-permanent staff, but there was no possibility of identifying the employee who created and/or modified an item in the said system by other users of the system. Specifically, for identification to occur by another user of the system, that user would have to already know the identity card number of the creator of an item or assume that the user with that specific number is the person to whom that identity corresponds.

Despite the above, the Authority, following consultation with my Office, proceeded to replace the identity card numbers on all items in the system with another unique number and terminated the practice of using identity card numbers by its non-permanent staff for access to systems.

3.3.3. Complaint regarding the collection of personal data by Epic Ltd

According to the complaint received by my Office, representatives of the sales department of Epic Ltd visited the complainant's residence and were aware of his personal data. Specifically, they knew his name, surname, and the names of his relatives, while he had never provided his personal data to the company, nor had he or any other family member been a customer of the company.

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In the context of the investigation, the company confirmed that the complainant was not its customer, thus it did not possess his personal data and was not aware, nor was it in a position to know whether members of his family and/or relatives were its customers. Furthermore, the company did not provide any personal data to the collaborating company to which it had entrusted the home promotion of its products and services. The sellers conducted door-to-door sales in areas chosen by the collaborating company, without being given any information and/or personal data by the company.

In this particular case, prior to the seller's visit to the complainant's residence, the seller had visited a neighboring property, where the residents indicated that their relatives resided at the complainant's house and might be interested in the company's products and services. The complainant's details were also mentioned to the seller.

I requested from the complainant, twice, to comment on the company's positions. However, the complainant did not respond, nor did he contact my Office again. Therefore, the complaint was archived.

3.3.4. Complaint regarding the collection of personal data by the management committee and management company Adonis Village

A complaint was submitted to my Office against the management committee and the management company Adonis Village. The complaint concerned the recording of the annual general meeting of the owners, without their consent.

The position of the management was that before the start of the annual general meeting, consent was requested and obtained from all individuals present. It was also stated that the complainants explicitly and freely consented.

However, in this case, no evidence was presented to my Office that substantiated the position of the management committee. Therefore, I informed that as it appeared from the company's claims, the

consent for the processing of the data used as the legal basis for the recording was deficient, which was not sufficiently supported by the management committee and was disputed by the complainants. Furthermore, regarding the right of access to personal data, I added that this could be exercised under Article 15 of the Regulation. However, if legal proceedings were pending before a Court, access to personal data could be exercised within the context of the judicial process and the disclosure of documents.

3.3.5. Complaint regarding data collection via unmanned aerial vehicle (Drone) by the restaurant Nava Seaside Lounge and Restaurant

According to a letter which was communicated to my Office, the complainant, while at the restaurant Nava Seaside Lounge and Restaurant, was injured by an Unmanned Aerial Vehicle (UAV-Drone), which, according to the complainant, was illegally photographing and/or video recording the patrons of the restaurant.

During the investigation of the complaint, I requested from the manager of the restaurant to inform me about the legal basis on which the collection and possible storage of the audiovisual material was based.

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and to what extent the relevant permits had been secured from the Department of Civil Aviation for the use of the UAV. In response, the restaurant manager claimed that, during the time he was managing the restaurant, he had never employed or collaborated with any individual or company that provided UAV services. Subsequently, I informed the restaurant about the content of the complainant's letter, highlighting the contradiction observed between her claims and those of the restaurant. I requested again the restaurant's positions. However, the deadline I had initially set, as well as the extension I provided, had passed without receiving any response. Therefore, due to the fact that, based on Article 33(b) of the Implementing Law 125(I)/2018, non-cooperation with the Commissioner constitutes a criminal offense, I exercised the authority granted to me by Article 25(h) of the same Law and notified the case to the Attorney General of the Republic, deeming his contribution essential and necessary. In this context, I requested from the Attorney General to be informed accordingly after the conclusion of the investigation.

3.3.6. Complaint regarding the processing of personal data incompatible with the specified purposes
A complaint was submitted to my Office by a citizen regarding further processing of her personal data in a manner incompatible with the specified purposes. According to the complainant, documents containing her personal data were submitted in the context of a lawsuit being examined by the Court. Therefore, I informed the complainant that there might not be a legal basis for the processing of her personal data according to the Regulation, something that could not be determined at that stage, as the case was pending before another independent Authority, namely the Court. In light of the above, I informed the complainant that my Office would not proceed with further investigation of her complaint and suggested that she present her claims before the Court, so that they could be evaluated by it.

3.3.7. Complaint regarding data processing incompatible with the original purpose by a management committee

A complaint was submitted to my Office against a management committee, which concerned the establishment of an illegal management committee and the sending of an email. I informed the complainant that the legality or otherwise of the committee did not fall within the jurisdiction of my Office. Additionally, the content of the email concerned the election of a temporary committee, that is, a matter related to the management of the complex and for which the owners of the units in the complex should be informed. I added that the Regulation states that further processing of personal data must be compatible with the purposes for which the personal data were initially collected. In this case, a separate legal basis from that which allowed the collection of the personal data is not required. Furthermore, to ascertain whether the purpose of the further processing is compatible with the purpose of the initial collection of the personal data, the data controller must take into account, among other things, any links between these purposes and the purposes of the intended further processing, the context in which they have...

the personal data was collected, the consequences of the intended further processing for the data subjects, and the existence of appropriate safeguards for both the initial and the intended acts of further processing. However, in the case under investigation, the data was used for the same purpose for which it was originally collected, as it pertained to a matter connected and relevant to the management of the entity.

3.3.8. Complaint regarding the processing of personal data without legal basis and for the non-satisfaction of the right of access by Sodexo LTD

A complaint was submitted to my Office against Sodexo LTD, claiming that the employer was not entitled to request the complainant to undergo and subsequently present a rapid coronavirus test in order to be able to enter their workplace in August 2021. Additionally, the complaint concerned the non-satisfaction of the right of access. The documents provided to my Office by the complainant did not assist in proving the alleged violation, and they included a copy of an indictment for document forgery related to a specific rapid coronavirus test. My Office informed the complainant that the decrees concerning the coronavirus were issued by the Ministry of Health, taking into account the epidemiological situation at any given time. Similarly, that is, taking into account the epidemiological situation, was the contribution of my Office regarding the personal data processed by entities, services, businesses, and organizations. According to Article 55 of the Regulation, each Supervisory Authority is competent to perform the duties and exercise the powers assigned to it within the territory of its member state, while it is not competent to oversee processing operations carried out by Courts within their jurisdiction. Therefore, since a procedure had already been registered before a Court, respecting the independence of the Judicial Institutions, I could not proceed with any investigation of a complaint for which judicial proceedings were pending before a Court, so that any investigation on my part would not be considered a direct or indirect interference in the work of the judicial authority. As I also informed the complainant, they could raise issues of personal data during the judicial process, with the aim of the Court deciding on their claims. The complainant did not return.

3.3.9. Complaint regarding the processing of personal data without legal basis by Minerva Public Insurance Company LTD

A complaint was submitted to my Office against the insurance company Minerva Public Insurance Company LTD, for the provision of the complainant's data by the company to a third party, without the existence of a legal basis. Documents and claims were presented before my Office from both parties regarding the complaint. In the said documents, I found contradictory statements regarding the manner in which information concerning the complainant was obtained. Specifically, the complainant, who taught at a tutoring center, believed that the insurance company contacted her students to ascertain whether the complainant was absent from her work. However, the insurance company stated that

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The complainant's student independently contacted the insurance company when she learned from a third party that the complainant was claiming compensation for injuries. As a result of the above, since I did not have the necessary documentation and conflicting/different positions were presented before me, I could not conclude whether there was a violation or not. I could have leaned towards one position or the other if I had the required evidence. Given these circumstances, there was no room for further investigation of the complaint. Both the complainant and the insurance company were informed accordingly and did not follow up.

3.3.10. Complaint regarding the processing of personal data without consent by MPM Distributors Ltd

A complaint was submitted to my Office against MPM Distributors Ltd and against an employee of the company for the processing of personal data without consent. During the investigation of the complaint and according to what was presented before me, both the complainant and the company and its employee, it was found that there were contradictions regarding what exactly happened. I requested additional written evidence to substantiate the claims so that I could continue the investigation. However, such evidence was not provided. Both the complainant and the company and its employee were informed accordingly and did not follow up.

3.3.11. Complaint regarding the processing of biometric data by Voici La Mode (Cafe La Mode) Ltd
A complaint was submitted against a company regarding the use of a biometric data processing system for monitoring the time of arrival and departure of its employees in the workplace through facial recognition. During the investigation of the case, it became clear that the company that had installed the said system was Voici La Mode (Cafe La Mode) Ltd, and not the company against which the complaint was directed. In the context of my responsibilities, I informed the company that the processing of biometric data for the purposes of monitoring the time of arrival and departure of employees is prohibited. Since the company assured me that it had deactivated the system and deleted any biometric data that had been collected, I considered that there were no grounds to proceed with further actions.

3.3.12. Complaint regarding the recording of a conversation by a natural person

As reported by the complainant to my Office, unbeknownst to her and without her consent, a natural person proceeded to record a private conversation she had with the complainant. During this conversation, the complainant referred to her personal, family, and financial details. The person against whom the complaint was directed sent the recording of the conversation to third parties, for which, however, there was no evidence. In fact, as the complainant stated, one of these third parties was a member of the complainant's family.

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In Recital 18 of the Regulation, it is clarified that "This Regulation does not apply to the processing of personal data by a natural person in the course of purely personal or household activities and thus without a connection to any professional or commercial activity. Personal or household activities could include correspondence and the maintenance of address books or social networking and online activities carried out in the context of such activities. However, this Regulation applies to data controllers or processors who provide the means for processing personal data for such personal or household activities." Similarly, Article 2(2)(c) of the Regulation states that the Regulation does not apply to the processing of personal data by a natural person "in the course of purely personal or household activities."

Therefore, according to the above, the Regulation does not apply when the following conditions are cumulatively met: (a) the processing of data is carried out by a natural person, (b) in the context of personal or household activities, and (c) which is not connected to any professional or commercial activity. Regarding the above, in the Judgment of the Court of the European Union, C-73/07, Satakunnan Markkinapörssi and Satamedia, dated December 16, 2008, it was stated that personal or household activities do not include processing that is exposed to an unlimited number of persons.

Taking the above into account, as well as the evidence I had before me, I informed the complainant that it did not appear that the recorded conversation under investigation had been disclosed to an unlimited number of persons, but rather to a specific number of contacts determined by the individual against whom the complaint was directed. As a result of the above, the said processing fell within the exception of Article 2(2)(c) of the Regulation and, therefore, I could not proceed with the investigation of the complaint.

3.3.13. Complaint regarding the video recording of a patient

According to the complaint submitted to my Office by a Hospital employee, the daughter of a patient exhibited inappropriate behavior towards the nursing staff and other patients and, according to another patient's claim, was video recording and photographing the latter, keeping personal data that could identify him on her mobile phone. Additionally, the individual against whom the complaint was directed was taking photographs from the Hospital premises, which contained personal data. Due to her actions, and her admission of possessing images and videos on her mobile device, she was informed of the violations and potential offenses by the incoming complaints management officer of the Hospital.

Regarding the representation of the data subject for submitting a complaint to a Supervisory Authority, Article 80, paragraph 1 of the Regulation provides that:

"The data subject has the right to mandate a not-for-profit body, organization, or association that has

been duly constituted under the law of a Member State, has statutory objectives that are of general interest, and is active in the field of protecting the rights and freedoms of data subjects in relation to the protection of their personal data to lodge the complaint on their behalf and to exercise the rights referred to in Articles 77, 78, and 79 on their behalf and to exercise the right to compensation referred to in Article 82 on their behalf, as long as it is provided for by the law of the Member State."

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Therefore, I informed the complainant that the complaint submitted to my Office could not be accepted, as for the specific incident, a complaint should have been submitted by the data subject, for whom there was a claim that their personal data had been violated.

3.3.14. Complaint regarding video recording, photography, and audio recording without consent

A complaint was submitted to my Office by an individual regarding their video recording and photography without their consent. Specifically, the complainant was repeatedly subjected to video recording, photography, and audio recording by a person who resided with them in the same household, without their consent. Although these specific processing activities pertain to personal/domestic activity and, therefore, do not strictly fall within the jurisdiction of my Office, I informed the complainant that I would draw the attention of the individual conducting the recordings to the seriousness of these actions. Consequently, I contacted the individual who was conducting the video recording within the complainant's residence, stating that if the complainant's claims were valid, then these actions (video recording, photography, and audio recording) constituted acts of personal data processing, and I urged them to cease any such processing and destroy the data that had been collected and/or disclosed unlawfully.

3.3.15. Complaint regarding the photography of cars by an individual

A complaint was submitted to my Office regarding the photography of cars parked at the complainant's residence by a third party with whom they had no relationship. As reported to my Office, these photographs had been submitted as evidence in the Family Court. I informed the complainant that, according to Article 55(3) of the Regulation, the Supervisory Authorities are not competent to oversee processing activities carried out by Courts within the scope of their judicial authority. Therefore, guidance was given to the complainant to present their claims before the Court.

3.3.16. Complaint regarding unauthorized access to a beneficiary's account in the General Health System

A complaint was submitted against two doctors regarding unauthorized access to the complainant's beneficiary account in the General Health System (GeSY). In the context of investigating the complaint, I contacted the Health Insurance Organization, requesting that the complaint be investigated and that I be informed about the outcome of the case, so that I could exercise any of my corrective powers, should I deem it necessary. After the completion of the administrative investigation and the issuance of relevant Decisions by the Organization, I proceeded with an independent investigation of the complaint.

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Regarding the first doctor, he had previously operated on the complainant and had been reported by the complainant for medical negligence. The said doctor claimed that he had gained access to the complainant's file in the General Health System (GeSY) after receiving a letter from the complainant regarding medical negligence, in order to respond as thoroughly as possible to the complaint. It was found that the date of access to the complainant's file was the same as the date the doctor received the said letter. Considering that the complainant should have expected the doctor to take such actions to respond to the complaint of medical negligence, as well as the fact that the doctor's action did not seem disproportionate to the intended purpose, I concluded that there was no violation of the provisions of the Regulation by him.

Regarding the second doctor, he had gained access to the complainant's file at the request of the first doctor, in order to discuss the letter that the first doctor had received regarding medical negligence. As I was informed, the second doctor participated in the entire process on the day of the complainant's

surgical operation. In light of the above, I considered that there was a basis for the second doctor to gain access to the complainant's beneficiary account in the GeSY system. Regardless of the above, I advised both doctors that in future similar cases, they should inform the patient of their intention to access their file in GeSY and/or their intention to disclose personal data.

3.3.17. Complaint regarding unauthorized access to the email of a former employee

A complaint was submitted by a Cypriot citizen against a foreign former associate/partner in a company in the United Arab Emirates, for accessing his email mailbox and using it without his consent. My Office, in order to investigate the complaint, requested additional information from the complainant. Based on the information provided by the complainant, my Office found that the complainant was a former employee of the said company and not an associate/partner of the person against whom the complaint was directed. For this reason, I referred the complainant to Opinion 1/2019, which I issued on May 17, 2019, regarding access to the email accounts of employees/former employees and the processing of personal data stored therein. It is noted that this Opinion is posted on my Office's website. Due to the fact that the access and use of the complainant's email and the personal data stored therein was carried out by a data controller not established in the Union and none of the cases mentioned in Article 3(2) of the Regulation applied, I informed the complainant that the investigation of the complaint did not fall within my jurisdiction.

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3.3.18. Complaint regarding unauthorized access to data by a postal agent

According to the complaint submitted to my Office, a citizen went to the store of the spouse of a postal agent in a specific community to collect a registered letter. However, after leaving, he realized that the envelope he received was open, a fact denied by the postal agent and another employee of the store. For this reason, the complainant reported the incident to a Police Station, requesting that the Closed Circuit Television (CCTV) of the store be checked.

In the course of the investigation, I requested and received responses from the Department of Postal Services regarding the incident, as well as the operation of the postal agency in the said community. However, after communicating with the Police, I was informed that the Police were investigating the incident and that from the examinations conducted by the Police up to that point, it appeared that there was no installed CCTV at the referenced establishment. Taking into account the investigation by the Police, I deemed it more appropriate to suspend the investigation of the case by my Office, in order to preserve the integrity of the investigation by the Police. Since a related complaint was pending with the Police, my Office would only be involved when assistance was requested from it.

3.3.19. Complaint regarding the retention of data of a former employee by a company

A complaint was submitted by a former employee of a news company regarding the retention of his journalistic identity by the company, even after the termination of their collaboration. The journalistic identity contained personal data of the complainant.

During the investigation of the complaint, I learned that there was an ongoing court case between the company and the complainant. Therefore, I informed the complainant that my Office would not examine a case that was pending before the Court and which, even if it did not concern the subject of the complaint, could potentially affect any decision of the Court.

3.3.20. Complaint regarding unlawful access to personal data held by the Department of Land Registry and Surveying

The complainant alleged that the person against whom the complaint was directed obtained unlawful access to personal data concerning her, through the Department of Land Registry and Surveying, and used this data to file a complaint against her.

I informed the complainant that, in any case, it was possible for me to investigate any complaint, provided that all documentation/evidence supporting and substantiating her position was submitted. In this case, I advised the complainant to address the data protection officer of the Department of Land Registry and Surveying, bringing to his attention her claims, along with all the necessary evidence so that he could proceed substantively with the examination of her case.

The complainant did not follow up.

3.3.21. Complaint regarding data interception from a social media platform

The subject of the complaint submitted to my Office was the personal data of the complainant that were posted on social media and which, according to the complainant's claims, were intercepted to be presented as evidence in Court.

According to Article 55(3) of the Regulation, the Supervisory Authorities are not competent to oversee processing activities carried out by Courts within the scope of their jurisdiction. Therefore, I informed the complainant that I could not act on their complaint. However, guidance was provided to the complainant to present their claims before the Court.

3.3.22. Complaint regarding the collection of excessive data by the Welfare Benefits Management Service

In the complaint submitted to my Office, it was stated that the complainant's daughter had applied for a minimum guaranteed income for a person with a disability, while previously, her related benefit had been cut off. The complainant received a letter from the Welfare Benefits Management Service of the Ministry of Social Welfare, requesting that he provide specific information, which the complainant considered excessive.

In the context of investigating the complaint, the Service informed my Office that the reason for requesting the additional information was that the Service had reasonable grounds to believe that the complainant's daughter was not residing in the Republic of Cyprus. However, the Service ultimately confirmed that the complainant's daughter was residing in the Republic and for this reason proceeded with the approval of the application.

After considering the positions of the Service and the relevant justification, I concluded that the request for the collection of the additional information was relevant to the purpose of examining and assessing the submitted application. Therefore, the information requested for the examination of the application was not considered excessive.

The complainant was informed accordingly, and did not respond further.

3.3.23. Complaint regarding the collection of excessive data by transport companies

According to the complaint, the complainant was asked by two transport companies to provide, via email or by phone, her identity card number or passport number for customs purposes. In one case, when the complainant refused to provide her personal data, the company's representative accepted her approval via email and sent the package without any issue. In the second case, the company stated that customs required this information for clearance purposes and that if her details were not submitted, her package would remain at customs.

Following my communication with the Customs Department, it was clarified that according to the Customs Code Law of 2004, Law No. 94(I)/2004, and the circulars of the Department EU – “Θ” (72) and EU – “Θ” (73), in cases of non-commercial imports by individuals and provided that the customs value of the imported goods exceeds €150 or the imported goods are subject to prohibitions or restrictions, the Customs Department requires the customs agent to declare the details of the importer, including the identity card number of the individual in question. In the cases

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In other cases, namely non-commercial imports by natural persons, the Customs Department retains the right to require the customs agent to declare the identification number of the importer. I informed the complainant accordingly, who did not follow up.

3.3.24. Complaint regarding excessive data collection by Cyprus Public Transport

A complaint was submitted to my Office against the company Cyprus Public Transport for excessive collection of passenger data during the process of data exchange for providing free wireless internet access. For this reason, in the context of the investigation, I examined the data collected for obtaining free wireless access and the legal basis for their processing. I determined that within the framework of the principle of minimization and purpose limitation, the collection of personal data was not necessary and did not serve the purpose that the company presented to my Office. The company appeared willing to follow my recommendations for compliance. Specifically, it ceased the collection of personal

data from bus passengers using the free wireless connection and proceeded to simplify/correct the Policy Statement and the Terms and Conditions of Use of the wireless internet connection.

3.3.25. Complaint regarding excessive data collection by Sea Chefs Ltd

The subject of the complaint submitted to my Office was the processing of health data by the company Sea Chefs Ltd, as part of the recruitment process. The question was raised as to whether this processing was in accordance with the Regulation. After investigating the complaint, I found that the processing carried out by the company was based on Articles 9(b) and 9(h) of the Regulation. Furthermore, the data being processed satisfied the principle of proportionality. Therefore, there was no violation of the personal data of the complainant or other job applicants.

3.3.26. Complaint regarding excessive data collection by a banking institution

The complaint submitted to my Office related to the requirement for excessive data collection by a banking institution. Specifically, the complainant stated that he was asked by the banking institution to send a scanned copy of a lease, as a beneficiary of the rents of a property (office), and that if he did not send the copy, future payments from the specific tenant would not be accepted. During the investigation of the complaint and taking into account the Central Bank of Cyprus Directive on the Prevention and Combating of Money Laundering and the provisions of Article 58 of the Prevention and Combating of Money Laundering Law of 2007, Law 188(I)/2007, I informed the complainant that credit institutions are required to examine transactions in detail that, by their nature, may be linked to money laundering activities.

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Therefore, I informed the complainant that the specific provisions of Law 188(I)/2007, as *lex specialis* legislation, as well as the specific Directive of the Central Bank of Cyprus, justified the action of the banking institution to request the rental document for the verification of the specific remittances made to the complainant's account.

3.3.27. Complaint regarding excessive data collection by a medical center

A complaint was submitted to my Office regarding excessive data collection during the initial visit to a medical center. Upon examining the requested data, it appeared that they served to identify the complainant as a patient and to record her medical history. Furthermore, this data would certainly be collected during the complainant's first visit to the medical center. As I informed the complainant, in the event of cancellation of the first visit, the medical center, as the data controller, was obliged to delete the data it had collected. I further informed the complainant that if she wished to pursue her complaint further, she would need to provide the name of the medical center she approached. However, the complainant did not follow up.

3.4. Closed Circuit Television (CCTV)

3.4.1. Complaint regarding the installation and operation of CCTV by the Armenochoiri Community Council

A complaint was submitted to my Office by a citizen against the Armenochoiri Community Council regarding the installation of Closed Circuit Television (CCTV), which, as the citizen informed me, recorded part of the road. According to the information I received from the Community Council, the CCTV was installed on its own property, where the water supply pump was located, following breaches of the area and damage caused. After reviewing the recording material, I found that some of the cameras recorded areas outside the property of the Community Council, while one of them recorded part of the road. Following my suggestions, the Community Council proceeded to uninstall the cameras that recorded areas outside its property, leaving only two cameras operational. Subsequently, my Office received further information from the same citizen that the cameras had been reinstalled on an adjacent building, and there was no appropriate signage indicating that the area was being monitored. My Office intervened again, while the Community Council confirmed once more that there were only two cameras in the area, sending evidence that the required signage was in place. The citizen was informed of the above.

3.4.2. Complaint regarding the installation and operation of CCTV in a medical office

A complaint was submitted regarding the installation of Closed Circuit Television (CCTV) in a medical office, by an individual who visited the office. The complainant, during the

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During her examination, she noticed that there was a camera installed in the examination room. The complainant had initially approached the Limassol Police, which, after visiting the clinic, found no recording of the complainant's personal data, while assuring that the CCTV system only recorded at night. From the evidence before me, there was no violation of the complainant's personal data; however, I made certain recommendations to the clinic regarding the installation of the CCTV system. I mentioned that, even if the CCTV system did not record during the clinic's operating hours, the possibility could not be excluded, either of accidental recording of a patient's image or of the CCTV system operating, at a future stage, during the clinic's operating hours. Furthermore, even if no immediate issues of personal data arose, ethical issues might emerge, as the cameras gave the impression of recording and created reasonable concerns, as well as grounds for legal claims. Specifically, in such places as the clinic, where patients enter daily, the matter is particularly sensitive due to the nature of the sensitive personal data, which gave (even if falsely) the impression of being recorded.

3.4.3. Complaint regarding the installation and operation of CCTV and non-satisfaction of access rights by CMT Processing Limited

The first part of the complaint concerned the installation of Closed-Circuit Television (CCTV) at the premises of CMT Processing Limited, which recorded employees during working hours. During the examination of the complaint, it became clear that the installation of the CCTV was not in accordance with the guidelines of my Office, and therefore, I called on the company to remove certain cameras included in the CCTV system, while I provided directions for the other cameras. Regarding this matter, the company complied, and I considered the case closed. The second part of the complaint concerned the non-satisfaction of the right of access by the company. Specifically, the complainant requested from the company a copy of the recorded material collected from an online meeting that the complainant had with the company. The company had sent the material to the complainant; however, due to technical problems, the complainant was unable to access it. Although she requested the company to resolve the issue, she did not receive any response. Following the intervention of my Office, the material was sent to the complainant, and considering the immediate cooperation of the company, I did not proceed with further actions.

3.4.4. Complaint regarding the installation and operation of CCTV in a kindergarten

A complaint was submitted regarding the installation of Closed-Circuit Television (CCTV) in a kindergarten, which recorded part of the complainant's home. During the investigation of the complaint, I learned that a temporary order had been issued between the kindergarten and the complainant. Therefore, I informed the complainant that, according to Article 55(3) of the Regulation, my Office did not have jurisdiction to examine the case, which was in the midst of judicial proceedings, as for such matters, the Court itself was designated as the competent authority.

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However, I made certain recommendations to the kindergarten regarding the processing of personal data, which arose from the installation of CCTV.

3.4.5. Complaint about the installation and operation of CCTV in a residence that recorded the kindergarten playground

A complaint was submitted by the director of the kindergarten regarding the placement of Closed Circuit Television (CCTV) on the balcony of a residence, which recorded the kindergarten playground. After learning that a decree had been issued between the kindergarten and the owner of the specific residence, as well as the content of this decree, I considered that the installation of the CCTV might potentially violate the said decree. Therefore, I informed the complainant that my Office does not have jurisdiction to examine a case that is in the midst of judicial proceedings, as the competent authority for examining such a case is the Court itself, and thus, I considered the matter closed.

3.4.6. Complaint about the installation and operation of CCTV at a construction site

A citizen submitted a complaint against a company regarding the installation of Closed Circuit Television (CCTV) at a construction site for the erection of an apartment building in the Municipality of Germasogeia, which recorded, as I was informed, images from the street as well as from an adjacent green area. During the examination of the complaint, the company informed me that the installation of the CCTV was carried out by a second company that was entrusted with the exclusive responsibility of the construction site. Nevertheless, according to the information I received, the CCTV was fake and the installation was made for intimidation purposes. Regarding the use of fake cameras, I informed the companies that although they do not directly pertain to personal data issues, other ethical issues may arise and create impressions and grounds for legal claims. Furthermore, it cannot be ignored that, at any time, the fake cameras could be replaced with functional cameras. As a result of the above, I recommended to the companies that they remove the cameras that were installed, an action they undertook.

3.4.7. Complaint about the installation and operation of CCTV in the fencing of a residence

A complaint was submitted by the Municipality of Geri regarding the placement of Closed Circuit Television (CCTV) in the fencing of a residence, which recorded the public road. During the examination of the complaint, I learned that there were pending judicial proceedings, which, although not related to the subject of the complaint submitted to my Office, were nonetheless interconnected with the installation of the said CCTV. Therefore, since any Decision I made might affect any Decision of the Court, I suspended the investigation of the case.

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3.4.8. Complaint about the installation and operation of CCTV in a residence

A complaint was submitted to my Office regarding the installation of Closed Circuit Television (CCTV) in a residence, which was directed towards the public road and the sidewalk. Within the scope of my duties, I informed the owner of the CCTV that the recording range of the CCTV should be limited within the perimeter of his residence, without recording common/shared or publicly accessible areas, so as not to affect the privacy of third parties, e.g., owners of neighboring houses and/or passersby. I also requested his positions on the claims of the complainant. Following correspondence I had with the owner of the residence, he proceeded to reposition the camera so that its recording range would comply with my recommendations. Due to the immediate cooperation and compliance with my recommendations, I deemed that there were no grounds for further investigation of the complaint.

3.4.9. Complaint about the installation and operation of CCTV in an apartment building

A complaint was submitted regarding the installation of Closed Circuit Television (CCTV) in an apartment building, which recorded outside the boundaries of the apartment building. In the course of investigating the complaint, I contacted the management committee of the apartment building, which provided my Office with a screenshot showing the recording range of the camera. I found that the camera indeed recorded a public sidewalk and called upon the management committee to limit the recording range. Due to the immediate compliance by the management committee, I deemed that there were no grounds for me to take further action and considered the matter closed.

3.4.10. Complaint about the installation and operation of CCTV in an apartment building

A complaint was submitted by the management committee of an apartment building regarding the installation of Closed Circuit Television (CCTV) in a kiosk operating on the ground floor of the apartment building. I informed the management committee that if the common area being recorded belonged within the perimeter of the apartment building, that is, was private, then my Office did not have jurisdiction to examine the complaint, and I recommended that the management committee address the Police. The management committee of the apartment building did not respond, and I considered the matter closed.

3.4.11. Complaint about the installation and operation of CCTV in an apartment building

A complaint was submitted to my Office by a citizen regarding the installation of cameras by another tenant in the apartment building where his office is located, which recorded images of the entrance to

his office.

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As I was informed by the complainant, the matter in question had already been reported to the Police. I informed the complainant that according to the announcement from my Office, dated October 26, 2021, when a CCTV system installed by a tenant of an apartment building affects the private life of other tenants, the relevant complaints are examined by the Police, as my Office does not have the authority to enter private residences and, therefore, is not in a position to examine the images recorded by the CCTV system. Consequently, the resolution of the issue did not fall within the responsibilities of my Office and, for this reason, I did not take any further action.

3.5. Various

3.5.1. Complaint regarding violation of organizational measures for the protection of personal data at a Primary School in the Larnaca District

A complaint was submitted to my Office by the Sectoral Council of Auxiliary Secretarial Staff of the Pancyprian Trade Union of Equality, based on which I was informed of an incident that occurred at a Primary School, involving the auxiliary secretarial staff of the school and an officer from the Ministry of Education, Sports and Youth. Due to the incident, a violation of the terms of the Personal Data Processing Agreement signed between the Ministry and all School Boards may have occurred. I informed the Sectoral Council of Equality that my Office intended to notify the data processor responsible for the Agreement, namely the Ministry, which is the competent authority for investigating the incident in question. I also requested that additional details regarding the incident be forwarded to my Office, so that the Ministry would have a complete picture of the incident. I also informed that in case of a desire to avoid further involvement of my Office, the facts of the incident in question should be presented verbatim to the data protection officer of the Ministry and my Office should be informed accordingly. Since my Office did not receive any additional updates from the Sectoral Council of Auxiliary Secretarial Staff of the Pancyprian Trade Union of Equality, I informed that I would not take any further action regarding the incident.

3.5.2. Complaint regarding the submission of a medical document to the Court

The complaint was submitted against a doctor and concerned the submission of a document containing the results of a medical examination to the Court, as evidence in a lawsuit that had been filed, without prior relevant notification to the data subject. As I explained to the complainant, once a document has been permitted by the Court to be submitted as evidence within its jurisdiction, according to Article 55(3) of the Regulation, my Office is not allowed to make any further comments and/or investigations on the matter. I also mentioned that the issue of the legality of obtaining the evidence should be raised before the adjudicating Court.

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3.5.3. Complaint regarding the installation of monitoring software

A complaint was submitted to my Office by an individual working at a company as an external collaborator, stating that the company installed software on his computer, which the company presented as antivirus software, but according to the complainant, it was software for recording his personal data and monitoring his activities. The complainant reported that when he requested to terminate their collaboration, the company remotely uninstalled the software from his computer secretly.

Due to the fact that the complaint involved potential deception regarding the installation of monitoring software, which could possibly constitute a criminal offense, I called upon the complainant to report the matter to the Police.

I note that the Police, during the investigation of potential violations of the legislative framework for the protection of personal data, may seek guidance from my Office if deemed necessary.

3.5.4. Complaint regarding the non-disclosure of contact details of the data protection officer by the Limassol District Administration

A complaint was submitted to my Office, according to which the Limassol District Administration refused to provide a citizen with the contact details of the data protection officer, as well as a copy of

the privacy policy of the District Administration.

In the context of investigating the complaint, I called upon the District Administration to disclose to both the complainant and my Office the contact details of the data protection officer of the District Administration and to publish the privacy policy of the District Administration online.

The District Administration responded to my Office that it considered the question posed by its officer to the complainant, asking him to disclose the reason for requesting the contact details of the data protection officer, to be appropriate. The position of the District Administration was that this question should not be construed as a refusal by the District Administration to provide information, as it would be preferable to know whether the specific individual was a data subject in relation to a matter concerning the processing of data within the framework of the services provided by the District Administration.

Despite this position, due to my intervention, the District Administration disclosed to the complainant the contact details of its data protection officer, and for this reason, the complainant withdrew his complaint. Due to the withdrawal of the complaint, I deemed it more appropriate for the completeness of the privacy policy and the relevant obligations to be checked outside the framework of the complaint.

3.5.5. Complaint regarding data disclosure, appointment of a data protection officer, and website malfunction

In January 2023, a complaint was submitted to my Office against a law firm for excessive use of personal data, failure to appoint and publish the details of a data protection officer, and malfunction of the law firm's website.

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From what was noted in the complaint, I found that the delivery of documents containing personal data of the complainant to the client of the law firm served the purpose of their initial collection, namely the informing and obtaining the signature of the client, and did not constitute excessive processing.

Similarly, the complainant's email address appeared to have been shared with the client of the law firm for the purpose of informing them about the actions taken by the law firm as their legal representative. Therefore, I concluded that there was no excessive use of the complainant's data and informed them accordingly. Regarding the other issues raised by the complainant, I explained that, as indicated by the Regulation, the designation and publication of contact details for the data protection officer is not always mandatory for law firms and that the functionality of the law firm's website is not a matter within my jurisdiction for examination.

3.5.6. Complaint regarding data deletion from FIX2GO store

A complaint was submitted to my Office concerning the deletion of data from a mobile phone device that was given for repair at the FIX2GO store. The complainant stated that a few days after delivering the device to the store, they were informed that the device had been repaired. After a period of five months had passed, the complainant went to collect their device but was informed that the company had sent the device for recycling because it had not been collected in time. The recycling of the device resulted in the loss of personal data that was stored on it. I requested the views of the store manager, who informed me, among other things, that the repair did not concern the phone's software but its external casing and that several reminders had been sent to the complainant to collect the device. Additionally, as reported to my Office, the complainant had been informed that after three months, devices that are not collected are sent for recycling, according to the store's policy. After considering all the information I had before me, I determined that the store was not responsible for the security of the data that may have been retained on the device in question and, therefore, found no violation of the Regulation.

3.5.7. Complaint regarding data deletion from an online casino

A complaint was submitted to my Office by an individual against an online casino registered in Cyprus. Specifically, the complainant stated that a result of a winning game had been deleted from the gaming history of their account maintained at the online casino, without them being informed. I informed the complainant that the subject of the complaint did not concern personal data issues and encouraged

them to contact the Cyprus Gaming and Casino Supervision Authority.

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4. CASES (QUESTIONS / OPINIONS)

Summaries of the main cases concerning questions and opinions that occupied my Office during the year 2023 are presented below.

4.1. Memorandum of Cooperation between the Commissioner for Personal Data Protection and the Commissioner for Communications on matters related to their joint or separate responsibilities
In 2023, the consultation between the two Commissioners was completed for the revision of the 2017 Memorandum of Cooperation. On Tuesday, July 25, 2023, the new Memorandum of Cooperation on matters related to the joint or separate responsibilities of the two Commissioners was signed, in accordance with the existing and new legislation, and came into immediate effect. The purpose of the new Memorandum is to establish a framework of procedures and to adopt and implement appropriate mechanisms for the more efficient and effective cooperation of the two Commissioners in the receipt and/or processing of:

(a) Notifications of personal data breach incidents from providers of publicly available electronic communications services, and

(b) incidents from operators of essential services, critical infrastructure entities, and providers of digital services that lead to personal data breaches.

A relevant announcement dated July 26, 2023, is available in subsection 8.14.

4.2. Reform of Local Government

In order to initiate all the work related to my Office that needed to be completed by July 1, 2024, the date of commencement of the new legal framework for Local Government, in November 2023, I convened a meeting attended by the Director General of the Ministry of Interior and representatives of the Association of Municipalities, the Association of Communities, and the Provincial Councils of Water Supply and Sewage. During the meeting, issues concerning the unification of the systems of the Councils that, from July 1, 2024, will constitute the Provincial Self-Government Organizations (PSGOs) were discussed. Issues concerning the operation of the Evagoras and Hippodamos systems, which will be used by the Municipalities and the Provincial Self-Government Organizations, respectively, were also discussed. Furthermore, I provided guidance on handling issues related to my Office and to make the problems faced by the involved parties more understandable; after the meeting, I sent out a questionnaire in order to initiate the resolution of the problems before July 1, 2024, the date of implementation of the new local government framework.

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4.3. DPIA - Platform for Cypriots in the Diaspora

In 2023, the final round of consultations between my Office and the Office of the Commissioner for the Presidency regarding the Data Protection Impact Assessment (DPIA) for the Platform for Cypriots in the Diaspora was completed.

The purpose of the Platform for Cypriots in the Diaspora is to collect data and establish/create a registry of expatriates. That is, the platform will be used as the means/tool for data collection. The said registry will be maintained locally in an electronic system/database of the Commissioner for the Presidency or under the responsibility of the Commissioner for the Presidency.

The legal basis for the establishment of the registry of Cypriot expatriates and the operation of the platform as a means of data collection is constituted by the Decision of the Council of Ministers, and thus, the relevant processing activities are grounded in the provisions of Article 6(1)(c) and (e) of the Regulation.

By its nature, the relevant processing as data processing via the internet involved particular risks for the protection and security of personal data and the privacy of expatriates, which the data controller made every possible effort to mitigate and minimize by taking appropriate compensatory measures to address these risks. Positively, the constructive cooperation of the data controller with my Office and the adoption of my recommendations and suggestions at critical points of the consultation are noted, which, among other things, concerned the strict adherence to the principle of minimization, conducting

penetration tests, entering into a data processing agreement with the contractor, the data protection policy, and the cookies policy.

4.4. DPIA - Collection and recording of the qualifications of public servants for the purpose of data migration to ERP

The Department of Public Administration and Personnel submitted to my Office a draft Data Protection Impact Assessment (DPIA) for the implementation of a process for the migration and/or transfer of data concerning permanent and temporary employees of the public sector to the ERP (Enterprise Resource Planning) system. It also submitted the relevant data processing agreement with the contractor.

During the consultation stage with my Office, I submitted recommendations, observations, and comments aimed at optimizing the process in terms of safeguards and organizational security measures, adherence to the principle of minimization, by adopting common policies for maintaining personal files by Ministries/Departments/Services/Independent Offices, such as, for example, not recording health data in personal files, the preparation of personal files to ensure targeted access for the contractor only to the data that would be subject to transfer, and ensuring the establishment of strong security passwords with a proposed minimum length of eight characters consisting of lowercase and uppercase letters, numbers, and symbols.

I also submitted recommendations and comments regarding the data processing agreement, primarily aimed at ensuring the protection and security of personal data as well as maintaining control of personal data by the data controller.

However, due to the discontinuation of the ERP project, the consultation with my Office was not completed.

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4.5. Data Protection Impact Assessment (DPIA) - Creation of a Mechanism for Data Exchange of Customer Defaults for Telecommunications Companies in Cyprus

In 2023, a Data Protection Impact Assessment (DPIA) proposal was submitted to my Office by Artemis Credit Bureau Ltd, for the creation of a mechanism for the exchange of transactional behavior data of customers of telecommunications companies, specifically for the establishment of a customer default file within the Telecommunications Sector.

My Office, within 2023, conducted two rounds of consultations with the company, providing several comments and recommendations, with the ultimate aim of ensuring the legality of the intended processing of personal data by the company and participating providers, the correct assignment of roles and proper identification of risks, the adoption of a uniform procedure for informing/registering/accessing the mechanism, as well as satisfying requests/rights.

It is noted that the process of finalizing/approving the DPIA was not completed within 2023.

4.6. Body-Worn Cameras on Police Officers' Uniforms and Vehicles

In 2023, the Police and the Ministry of Justice and Public Order submitted to my Office a Bill amending the Police Law for the installation of body-worn cameras on police officers' uniforms and vehicles.

As part of the public consultation, among other things, I recommended that definitions of the terms "body-worn camera" and "high-risk operation" be introduced, that the circumstances under which the use of body-worn cameras would be permitted be specified, that a provision be removed which could be interpreted as allowing the activation of cameras during peaceful protests, and that a provision be introduced to make it clear to citizens when a body-worn camera is activated and when it is not.

The Bill was submitted to the House of Representatives, and in December 2023, I informed the Parliamentary Committee with a Note that I had reviewed the final text and found that all previous comments I had submitted to the Police and the Ministry of Justice and Public Order had been incorporated.

4.7. Opinion - Approval for the Provision of Electoral Lists for Conducting Elections in the Holy Metropolis of Paphos

A request was submitted to my Office for approval of the provision of the electoral lists of the Paphos electoral district by the Central Election Service to the Holy Metropolis of Paphos, for the purposes of

conducting the Metropolitan Elections and electing the Metropolitan of Paphos.

The sharing, distribution, or provision of the electoral lists of the Paphos electoral district, in whole or in part, constituted an act of processing, which would need to comply with the conditions and the fundamental principles governing lawful processing under the Regulation.

After considering:

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(α) the provisions of Article 27 of the Statute of the Church of Cyprus, according to which the preparation of the voters' list for the vacant Metropolis and the electoral process for the election of a tripartite is conducted by the analogous application of the procedure for the election of the Archbishop, (β) paragraph 3 of Article 23 of the Statute of the Church of Cyprus, which states: "For the preparation of the voters' list and the conduct of the electoral process, the Holy Synod may, for the smooth conduct of the elections, cooperate with the competent state services.", (γ) the Opinion I issued on November 15, 2022, regarding the Archiepiscopal Elections, (δ) the provisions of Article 6 (1)(γ) and (ε) of the Regulation, concerning simple data, and having taken into account that the relevant disclosure was based on a valid legal basis, specifically the Statute of the Church of Cyprus (principle of legality), the purposes of both data controllers were entirely compatible (since they concerned an electoral process) and served the public interest (principle of purpose), the data to be disclosed were relevant, appropriate, and absolutely necessary since data concerning subjects of other religious groups and data of refugees from the Paphos District would not be disclosed (principle of proportionality/minimization), the data to be disclosed were accurate and up-to-date (principle of accuracy), I concluded that the conditions and fundamental principles of lawful processing were met, in compliance with the provisions of Articles 6(1)(γ) and (ε), as well as the principles of Article 5(1)(α)-(δ) of the Regulation.

Regarding the other two principles of Article 5 of the Regulation, specifically the principles of Article 5(1)(ε) and (στ), namely the principle of storage limitation and the principle of integrity and confidentiality, I pointed out that both data controllers were required to ensure the establishment of: (α) a secure method of transferring the data in printed or electronic form, as well as taking appropriate technical and organizational measures for the security of the data, both during transfer and processing, which included, by virtue of the proportional application of the provisions of Article 23(2) of the Statute of the Church of Cyprus, their posting in the Holy Churches of the Holy Metropolis of Paphos, for the purpose of submitting objections, (β) a process for the return or, as the case may be, destruction of the data after the completion of the transfer process and/or fulfillment of the purposes of processing by the Church of Cyprus. Based on the above, I concluded that the disclosure of the electoral lists/personal data by the Central Election Service of the Ministry of Interior to the Church of Cyprus (Holy Metropolis of Paphos), for the purposes of conducting elections in the Holy Metropolis of Paphos was in accordance with the provisions of the Regulation and, therefore, was lawful.

Consequently, based on the above reasoning, I set as a condition for the legality of the said processing the provisions of Article 21(1) of the Regulation, according to which the Central Election Service was obliged to provide the right to object to the data subjects, whose data was to be disclosed for the purposes of conducting elections in the Holy Metropolis of Paphos, and I called upon the relevant Service to ensure the easy, timely, and smooth exercise of the aforementioned right, after first adequately and sufficiently informing the data subjects regarding the impending disclosure of their data.

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4.8. Disclosure of Personal Data of Permanent Public Employees to the Statistical Service

The question submitted to my Office by the Public Service Commission concerned a request from the Statistical Service for the disclosure of personal data of public employees for the purposes of a European salary survey, which was conducted based on Regulation (EC) No. 1738/2005 of the Commission, amending Regulation (EC) No. 1916/2000 regarding the definition and transmission of information on the structure of salaries.

The Statistical Service supported the validity of the request on the provisions of Article 6(1)(c) of the

Regulation, namely that the relevant processing was necessary for compliance with a legal obligation. However, upon examining all the elements and details, and insofar as the public sector does not fall within the scope and/or subject of the said survey and/or is excluded from it according to the relevant Regulation (EC) 1738/2005, I concluded that the provisions of Article 6(1)(c) of the Regulation could not constitute a valid legal basis for the relevant processing, namely the disclosure of data by the Public Service Commission and the collection of data by the Statistical Service. I also noted that the data requested by the Statistical Service went beyond the mandatory variables of the relevant Regulation and, therefore, in such a case, it would need to justify the necessity of their collection and carry out the necessary balancing to ensure the principles of necessity, proportionality, and minimization.

In light of the above, directions were given to the Statistical Service that in order to extend the scope of the salary survey to the Public Sector, it would need to support another legal basis within the framework of the Regulation and, furthermore, to limit the content of the survey to the mandatory variables defined by Regulation 1738/2005.

For this purpose, I specifically pointed out certain aspects for compliance with the principle of minimization, e.g., instead of the year of birth, the Statistical Service appeared to be collecting and processing the date of birth, which is a personal data that can directly identify a natural person, even without combination with another element, a practice that did not seem to align with and/or contradicted the principle of data minimization. Additionally, the element of managerial or supervisory position constituted information that is not a mandatory variable, despite the fact that this data was requested by the Statistical Service. Furthermore, considering that the Statistical Service already possessed data on the salaries of public employees from the General Accounting Office, which should not include both the identity card number and the social security number, but should be limited only to the latter, I deemed the scale of the position in the Public Sector as excessive information.

It was also significant to indicate that the Statistical Service could receive information/personal data, but not without limits, rather within the legal framework of the existing legislation for the protection of personal data.

Beyond the above, I incidentally addressed the role of data protection officers and the manner of exercising their duties, as points of contact with my Office, and emphasized that their positions and recommendations should not be submitted for validation to my Office, but should be accepted, respected, and taken into account by the respective data controllers, unless there are reasons that argue otherwise or if it constitutes a recommendation from the data protection officers.

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4.9. Rent Against Installment Scheme – Role Attribution

In the context of the Rent Against Installment Scheme, I addressed the attribution of roles and responsibilities during the processing of personal data. Specifically, I informed the Ministry of Finance that the attribution of the role of data controller to the Cyprus Asset Management Company Ltd (KEDIPEs) was incorrect and, in any case, did not seem to align with the interpretation of the term "data controller" according to the provisions of Article 4(7) of the Regulation.

To determine and attribute the role of the data controller, the following questions must be answered as criteria for its influence on decision-making regarding critical points of processing and the determination of purpose:

- For what reason is the specific processing being carried out?
- Who decided that the processing should be executed to achieve the specific purpose?

The answers to the above questions indicated that KEDIPEs could not be the data controller.

Supporting this reasoning are two other cases presented to my Office, one of which concerned the ESTIA scheme where the role of processor was assigned to the company ARTEMIS Banking Information Systems Ltd, while the role of data controller was held by the Ministry of Labor and Social Insurance. The second, and more recent, case concerned the OIKIA scheme, where KEDIPEs was designated as the processor and the General Accounting Office of the Republic as the data controller. In both cases, a processing assignment contract was drawn up in accordance with the terms of Article 28(3) of the Regulation, which was submitted to my Office for comments.

4.10. Cooperation Protocol of Social Welfare Services – KENTHEA within the framework of the European Program "Make the Difference"

In the context of providing advice to Public Authorities, my Office was called upon to comment on the draft cooperation protocol between the Social Welfare Services and the Center for Information and Treatment of Addicted Persons (KENTHEA). The implementation of the cooperation protocol would result in the collection and processing of personal data, including special categories of data by KENTHEA, that is, by a non-governmental organization.

The Services and KENTHEA participate in the European Program "Make the Difference," the implementation of which required the development of a Guide/Protocol for the cooperation of prevention and treatment services for addictions, as a result of which the relevant protocol was prepared and submitted to my Office. The aim of the program is to prevent factors that endanger the well-being of children living in households with addiction issues. Cooperation takes place in various ways, including multidisciplinary teams/coordinating meetings, where professionals from various public or private entities may be invited, and minutes will be prepared for each session, which will be shared with each participant.

Reasoning – Considerations – Comments:

The Services, acting as the data controller, collect and process the personal data of individuals/families, with the legal basis being the relevant primary and secondary legislative provisions or the ratifying laws of international treaties.

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The KENTHEA, as a non-governmental organization of a voluntary nature operating in the field of prevention and treatment of addictions, has the ability, acting as the data controller, to collect and process personal data of individuals who approach it, with the legal basis being their consent. Relevant are the provisions of Article 9 of the Regulation.

In any case, the cooperation protocol, as a non-legally binding document, did not constitute a legal act in itself and, therefore, could not serve as a valid legal basis, nor could it legally frame the collection and processing of personal data or sensitive personal data by KENTHEA, or the flow of personal data from the Services to KENTHEA or vice versa, or from KENTHEA to all participants of the multidisciplinary groups.

Under the circumstances, the only appropriate legal basis that could support the collection, processing, exchange, and sharing of personal data to and from KENTHEA could be considered consent, in the sense and under the conditions attributed to this term by the provisions of Article 7 of the Regulation.

However, consent does not generally constitute a valid legal basis for the processing of data by Public Authorities in the usual exercise of their duties as a result of the exercise of public authority, due to the imbalance of power in the relationships between public authority and the governed. Relevant is Recital 43 of the Regulation.

According to the provisions of Article 7 of the Regulation, for consent to constitute a valid legal basis, it must be the result of free and genuine will, following proper and thorough information of the data subjects. Additionally, it must be revocable at any time, relate to each of the separate processing operations, and the data controller must be able to demonstrate that the data subjects have consented.

Notwithstanding the above, explicit consent could potentially constitute a valid legal basis regarding the processing operations of the Services as a Public Authority, namely the sharing of personal data from the Services to KENTHEA, but also further for the collection and processing of personal data by KENTHEA and the maintenance of a relevant registry, as well as the flow of data / sharing of minutes with the participants of the multidisciplinary groups (provided that such was absolutely necessary for the purposes of the program).

Regarding the case of the Services concerning the sharing of personal data from the Services to KENTHEA, the Services, as the data controller, would need to prepare a consent form that describes in detail at least the purpose, the processing operations, the categories of data concerned, the

recipients (KENTHEA), the possibility of revocation at any time, the exercise of rights, the assurance that referral to KENTHEA was optional, and that in the event that individuals did not consent, they would not be deprived of an equivalent level of service from the Services. This form would need to be signed by both parents.

Therefore, the form prepared by the Services required appropriate modifications to serve as a satisfactory legal basis.

A similar consent form should also be prepared by KENTHEA, as it would be a new and separate data controller.

A serious issue that the parties were called upon to recognize is whether, in their case, the status of joint data controllers applied. Such cases occur when more than one party is involved, and the Regulation establishes specific rules and defines the framework governing their relationships. The primary criterion for the existence of joint processing responsibility...

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is the joint participation of two or more entities in determining the purposes and means of each processing activity. Joint participation may take the form of a common decision made by two or more entities or arise as a result of converging decisions by two or more entities. The provisions of Article 26 of the Regulation are relevant. In the event that this status were to be recognized, a necessary condition was the drafting of a relevant agreement that would duly reflect the respective roles and relationships of the jointly responsible processors towards the data subjects. Another important chapter was the security of data during the transfer of data to KENTHEA, as well as during the retention of data in a registry by KENTHEA, that is, by a private non-governmental organization, which would have to implement appropriate technical and organizational measures to ensure an adequate level of security against the risks associated with the sensitive categories of data that it would collect and process. This level, in any case, should not be lower than the level of security and data protection ensured by the Services. Therefore, KENTHEA would have to ensure strict compliance with the fundamental principles of lawful data processing (Article 5(1) of the Regulation), including the principle of data minimization, as well as that the storage of data takes place on servers in Cyprus. Beyond this, among the minimum measures that had to be taken by KENTHEA, in its role as the data controller, were the following: implementation of encryption, implementation of a security policy with organizational, technical, and physical security measures, audit trails/log files for detecting user access, changing passwords quarterly, passwords with a recommended minimum length of 8 characters consisting of lowercase letters, uppercase letters, numbers, and symbols, allocation of roles and access levels according to the need to know/tasks, implementation of firewalls and antivirus programs, establishment of procedures for satisfying the rights of data subjects, designation of a data protection officer whose details should be published on KENTHEA's website, provision of a data protection policy, and conducting penetration tests on KENTHEA's information systems, in the case that they are accessible from the internet.

4.11. Grant for the purchase of tablets and laptops – Data exchange between the Ministry of Education, Sports and Youth and the Deputy Ministry of Social Welfare The Ministry of Education, Sports and Youth intended to send to the Deputy Ministry of Social Welfare a list of individuals, specifically the parents of students, who applied for a grant for the purchase of tablets and laptops, and who were attending the 3rd grade of public primary schools or the 2nd grade of public gymnasiums. The list would include the full name and identity number/ARC, while the file in Excel format would be sent encrypted via email to the responsible officer of the Welfare Benefits Management Service, who would carry out the necessary checks and subsequently send the encrypted list via email to the responsible officer of the Ministry, with a YES/NO reference regarding whether the applicant was a recipient of the child benefit (with income up to €19,500). Initially, I considered that this case could fall within the scope of the provisions of Article 10 (Combination of filing systems of public authorities or entities) of the implementing Law 125(I)/2018, the observance of which would require the combination of filing systems.

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The large-scale exchange of data between two or more public authorities or bodies is permitted only for reasons of public interest, following the conduct of a Data Protection Impact Assessment (DPIA) and prior consultation with my Office and the relevant approval from my Office, under the terms and conditions that my Office may specify. In this case, I considered and took into account that:

- The only information that the Ministry would receive would relate to the confirmation, through affirmative or negative information (YES/NO) regarding the receipt of child benefit as a necessary criterion for the approval of the grant for the tablet or laptop (adhering to the principle of data minimization, Article 5(1)(c) of the Regulation),
- The exchange of information on both sides would take place via an encrypted electronic file (adhering to the principle of integrity and confidentiality, Article 5(1)(f) of the Regulation),
- The relevant application forms had already been posted on the Ministry's website and, possibly, related requests had already been submitted by parents.

I also took into account that the case under consideration did not constitute a processing activity that posed a high risk to the rights of data subjects, as both the Ministry and the Deputy Ministry already held the identification number of the applicants for the purposes pursued by each. Exercising the powers conferred upon me by the provisions of Article 10(4) of the implementing Law 125(I)/2018, I decided to allow the exchange of data between the Ministry and the Deputy Ministry, provided that the latter would delete the Excel file that would be transmitted to the Deputy Ministry by the Ministry, and would not combine, relate, or otherwise retain or allow the retention of such data in electronic or printed form, after receiving confirmation of their receipt from the Ministry.

4.12. GPS in vehicles transporting waste

Regarding the draft Decree of the Minister of Agriculture, Rural Development and Environment, which provided for the mandatory installation of a global positioning system (GPS) device in vehicles collecting - transporting waste on a professional basis, I consulted with the relevant Ministry. Since certain provisions of the Decree were very intrusive and not in accordance with the Regulation, granting the Chief Inspector and inspectors the authority to access the providers' systems that would record the locations of vehicles in real time, at any time and without a justified need, I submitted alternative texts to the Ministry, aiming to correct the above.

4.13. Visa Waiver with the U.S.A.

In 2023, I had extensive consultations with the Deputy Minister to the President, the Ministry of Foreign Affairs, the Ministry of Justice and Public Order, the Police, and the Legal Service regarding two Agreements with the United States of America, which were a prerequisite for lifting the requirement for Cypriots and American citizens to obtain a visa for travel to Cyprus and America.

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The first Agreement, which concerned the exchange of passenger data (Passenger Name Record - PNR), was initially submitted in the form of a non-binding Memorandum and, following my suggestion, was shaped into a binding Agreement, the text of which incorporated comments I had submitted during the consultation stage. This Agreement was submitted to the Parliament for ratification by Law.

The second Agreement was a result of the basic Agreement between Cyprus and the United States of America, which was ratified in 2017 by the Law on the Agreement between the Government of the Republic of Cyprus and the Government of the United States of America regarding the Enhancement of Cooperation for the Prevention and Combating of Serious Crime (Ratification) Law of 2017, Law No. 5(III)/2017, and concerned the automatic search of fingerprints and DNA data for individuals subjected to checks at the entry points of the two countries. The comments I had submitted, both regarding the format of the document (binding Agreement instead of a non-binding Memorandum) and its content, were accepted by the Ministries, the Deputy Ministry, and the Legal Service and were forwarded to the competent Authorities of the United States of America.

4.14. Exemption of reservists residing and working abroad

In 2023, I had correspondence with the General Staff of the National Guard (GSNG) regarding the documents requested to be submitted by reservists as proof that they reside and work abroad, in order

to be exempted from their reserve obligations.

As it came to my attention, some data requested by the GSNG were excessive in relation to the intended purpose. For example, in copies of employment contracts, rental documents, or social insurance contributions, the GSNG did not need to know the amount of the reservist's salary, rent, and contributions, respectively.

The GSNG agreed with my observation, modified the informational text that was posted on its website so that reservists could redact irrelevant information, and informed my Office of its compliance.

4.15. Request for the disclosure of personal data of Community Council members for the purpose of taking legal action

A Government Department requested from the District Administration to disclose to the Department personal data (identity card numbers and contact addresses) of members of a specific Community Council. The Department intended to proceed with taking legal action against the Council and/or its members. The said District Administration sought my Office's opinion on whether it could disclose the said data.

I informed the District Administration that if the existing legislation imposed criminal liability, then it had the obligation to provide the requested personal data to the Department.

4.16. Installation of CCTV in municipal properties

I received an inquiry from a specific Municipality regarding the installation of Closed-Circuit Television (CCTV) in key locations of municipal properties, following incidents of vandalism on the coastal front and in the Municipality's parks. Access to the CCTV would be granted only to the Police, for the purpose of protecting the Municipality's property.

I informed the Municipality that the processing that would be carried out with the installation and operation of CCTV in public spaces would be regulated legislatively by amending the Municipalities Law and that the relevant provisions would come into effect by Decision of the Council of Ministers, starting from January 1, 2024. However, until the amended provisions came into effect, the installation of CCTV by the Municipality in public spaces for the purposes of preventing and addressing incidents of vandalism lacked legality, unless it did not involve any processing of personal data.

4.17. Processing of biometric data at Larnaca Airport

An inquiry was submitted by an individual regarding the use, operation, and security level of the biometric data processing system for employees at Larnaca Airport, which is used for access control to security areas of the airport.

In the context of examining the inquiry, as well as the broader examination of the legality and operation of the specific system, I communicated in writing with the Department of Civil Aviation and the company Hermes Airports Limited, which manages the airport, requesting clarifications on specific questions, as well as relevant documents.

Following related correspondence and clarifications received, I informed the individual who submitted the inquiry to my Office about the following:

- (a) based on relevant European Union Regulations, access control to airport areas can also be conducted using biometric data (fingerprints),
- (b) the data controller in relation to the use of the access control system and, more generally, the processing of employees' biometric data was the Department, while the processing was carried out by the company,
- (c) the system was operational at Larnaca Airport and Paphos Airport,
- (d) fingerprints were stored only on the cards of authorized persons (airport identity cards) and not in the system.

Additionally, an impact assessment for the system in question, as well as the processing agreement between the Department and the company, was submitted to my Office. Evaluating the above, I concluded that the operation of the system met the requirements of the Regulation, both from a legal and technical perspective.

Summaries of the main Decisions I have issued during the year 2023 are presented below.

5.1. Complaint against the newspaper "Politis" for the publication of names and photographs of police investigators on duty at Larnaca Airport

A complaint was submitted by two police officers against the newspaper "Politis" for the illegal disclosure of their names and photographs in a publication dated 17/6/2018. I had decided on 9/1/2019 that the intended purpose could have been achieved by exposing fewer personal data of the data subjects, such as by referring only to the initials of their names and/or blurring the faces of the police officers, etc. I imposed an administrative fine of €10,000.

An appeal was filed against my Decision, which resulted in its annulment by the Administrative Court, although it was not judged on its merits. I decided to proceed with a re-examination of the case.

In the context of the re-examination and after considering all the facts that came to my attention again, I concluded with a Decision dated 16/1/2023 that there was a violation of the provisions of Articles 5(1)(c) and 6(1)(f) of the Regulation.

I took into account all aggravating and mitigating factors as they had been formed and imposed on the respondent of the complaint an administrative sanction of a fine of €7,000 for their violation of Articles 5(1)(c) and 6(1)(f) of the Regulation. The reduction of the administrative fine and differentiation from the first Decision of my Office was a consequence of the differentiation of the aggravating and mitigating factors, which were taken into account during the re-examination, such as the fact that the publication had been removed from the internet, that there was a written apology from the respondent of the complaint, and that there was cooperation in the context of the investigation. However, the existence of a violation and the long period during which the publication was posted online and accessible to an unlimited number of readers cannot be overlooked and/or neutralized.

My Decision dated 16/1/2023 has also been challenged and is pending before an Administrative Court.

5.2. Complaint regarding the operation of Closed Circuit Television (CCTV) in a store

A complaint was submitted to my Office against A&A; HOTEL SHOPS regarding the operation of Closed Circuit Television (CCTV) in one of its stores. The complaint concerned the monitoring of an employee and continuous surveillance of their movements in the area through CCTV. The complainant was dismissed from her job citing material from the CCTV.

To support her claims, the complainant provided relevant screenshots showing written communication between her and the respondent of the complaint, indicating surveillance of her movements during work.

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The recording of the employee throughout their working hours is deemed excessive as it significantly interferes with the employee's private life and does not comply with Articles 5 and 6 of the Regulation. Additionally, the recording through CCTV should be limited to entry and exit areas, cash registers, or areas with safes, electromechanical equipment, etc., provided that the cameras focus on the goods they protect and not on the employees' areas.

After conducting an investigation into the complaint and receiving the positions of the respondent company regarding the case under examination, I found a violation of Articles 5 and 6 of the Regulation. Based on this finding, I issued Orders with instructions to the respondent such as:

- (1) to position the cameras in a way that captures only the objects of value,
- (2) to delete recordings that were not obtained legally,
- (3) to place informative/warning signs, and
- (4) to send evidence of the respondent's compliance with the Orders.

The respondent complied with the Orders, and I informed the complainant accordingly.

5.3. Complaint regarding receiving unwanted calls

A complaint was submitted to my Office by a former holder of a telephone number from the company Epic Ltd. According to the complaint, the complainant received unanswered phone calls from the company's sales department at inappropriate hours, and if he managed to answer these calls, they were disconnected. During the investigation of the complaint, it became apparent that beyond the complainant, another 331 former customers of the company received similar calls.

I found that these calls were made without a legal basis, in violation of Article 6(1) of the Regulation. Based on the information submitted to my Office, the operation of the list, which included the telephone numbers that were called, was not clear. Furthermore, the retention of data was not prevented, but the data of the 332 former customers of the company were retained for a period exceeding what was provided for the purposes mentioned. It was therefore found that the then applicable data retention policy was not implemented, and that specific measures could have been taken to prevent the incident. As a result, the company additionally violated Articles 24(1) and 24(2), as well as Article 32(1) of the Regulation because it did not implement appropriate technical and organizational measures to ensure and demonstrate that processing is carried out in accordance with the Regulation, and to ensure an appropriate level of security against risks.

Taking into account mitigating and aggravating factors related to the incident, I imposed an administrative sanction of a fine of three thousand two hundred and fifty euros (€3,250) on the company Epic Ltd.

The administrative fine imposed on Epic Ltd has been paid.

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5.4. Complaint Against the Director of a Public Law Legal Entity

A complaint was submitted to my Office by an employee of a Public Law Legal Entity against the director of his Service, regarding the deletion of his official email account. Specifically, the complainant alleged that his official email address was terminated after a relevant notification while he was on a prolonged sick leave. During the investigation of the complaint, the director of the Service clarified that it was decided to transfer the complainant's official email address to a colleague of his, to avoid problems that would certainly arise due to his prolonged absence. He also stated that access was granted to the complainant to his official email after his return to the Service, in order for him to transfer his personal data to other files, but the complainant rejected this option. My Office has issued a relevant Opinion, on 17/5/2019, according to which access to the official email account of an employee and processing of personal data stored therein is permitted, if necessary, among other things, for the smooth operation of the organization.

Taking into account:

- (a) that the complainant received notification of the deletion of his official email,
- (b) that he was granted access for a period of time to his official email after his return to the Service to transfer his personal data to other files, and
- (c) the reasons that led to the deletion of his official email concerned the smooth operation of the Service and the protection of its interests,

I concluded that there is no violation of the Regulation and the national legislation N. 125(I)/2018.

5.5. Complaint Regarding the Non-Satisfaction of the Right of Access to Personal Data and Information of the Public Sector

On 1/11/2022, a complaint was submitted to my Office against the Consumer Protection Service regarding the non-satisfaction of the complainant's right of access to his personal data (Article 15 of the Regulation) and the non-satisfaction of his right of access to documents held by the Consumer Protection Service, which relate to his complaint and fall under the Right of Access to Public Sector Information Law of 2017 (hereinafter referred to as the "Law").

After completing the investigation, I decided that access should be granted to the complainant to the documents contained in his complaint file that concern him and fall under his personal data, and to the documents contained in his complaint file, which fall under his right of access based on Articles 3 and 8 of the Law, and do not fall under the absolute exemption of information provided under the condition of confidentiality and secrecy, as provided in Article 34.

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5.6. Complaint Against the Council of Registration of Hairdressers and Barbers of Cyprus

A complaint was submitted against the Council of Registration of Hairdressers and Barbers of Cyprus regarding the installation of Closed-Circuit Television (CCTV) inside the office and the recording of the entire space, as well as the corridor outside it, resulting in the continuous recording of employees and

third parties visiting the area.

During the investigation of the complaint, the Council provided my Office with consent forms, through which it had obtained the consent of the employees for the installation of the CCTV.

Considering that consent must be given freely and the existence of a power imbalance between the Council as the employer and its employees, I deemed it unlikely that the latter were in a position to express their refusal to the installation of the CCTV without fear of potential negative consequences. Therefore, the Council's staff was unlikely to have responded freely to the employer's request for consent. Consequently, the legal basis could not and should not be the consent of the employees, and thus, the consent forms could not constitute sufficient evidence of the employees' agreement to the processing of their personal data.

In light of the above, I concluded that the specific processing, namely the operation of the CCTV, lacked legality and constituted a violation of Articles 5(1)(a) and 6 of the Regulation.

Based on the above finding, I issued Orders to the Council of Registration of Hairdressers and Barbers of Cyprus, as follows:

Order 1: To permanently cease the operation of the CCTV and uninstall the camera, or in the case that the cost of its uninstallation is disproportionate, to cover it in such a way that it gives the impression that it is not operational,

Order 2: To immediately delete any recordings obtained from the CCTV, if applicable, and send me relevant proof,

Order 3: To notify my Office, within an exclusive deadline of 2 weeks from the receipt of this, of all actions taken to implement the Orders.

The Council of Registration of Hairdressers and Barbers of Cyprus has complied with the Orders of my Office.

5.7. Complaint Regarding the Disclosure of Personal Data Online

A complaint was submitted to my Office regarding the disclosure of personal data, specifically "public online disclosure of sensitive personal data."

The complainant stated that he maintains a Facebook account and uses a nickname rather than his real name; however, his friends know that this account belongs to him. The respondent to the complaint posted a message regarding the complainant, stating, among other things, that he is facing a health issue. Following updates from mutual friends and at the request of a mutual friend, the respondent deleted the post. The complainant provided my Office with relevant evidence.

Having received the positions of the respondent to the complaint, who argued that the complainant was not identifiable through the publication of the information, while his posts were in accordance with the

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In accordance with the regulations of the electronic platform, I have decided to issue a Warning to the Respondent of the complaint, instructing them to refrain from any actions in the future that contravene the provisions of the Regulation, as well as to exercise due diligence regarding the information they upload and/or post on the Facebook platform, which constitutes personal data of other individuals, particularly concerning special categories of data (health data). I have informed the complainant accordingly.

5.8. Complaint regarding the disclosure of personal data (email addresses)

A complaint was submitted to my Office against the company BAZARAKI BZRK LIMITED concerning the disclosure of personal data. The complainant stated that the Respondent sent an email to all business clients using the CC option instead of BCC. As a result, the email addresses were visible/public to over 200 individuals on that list. In my written communication with the Respondent, I requested to be informed about their position regarding the complaint. The lawyer of the Respondent stated that the Respondent sent an email to a number of their clients who, at the relevant time, maintained a business account on the Website in the 'Business' category to inform them about upcoming changes to the services provided by the Respondent. They added that the email was mistakenly sent using the CC option and that as soon as they realized the honest mistake, they took

corrective measures by sending an apologetic email asking the recipients to delete the relevant email from their records. They further stated that the usual practice of the Respondent regarding sending emails to multiple recipients is to use the BCC option based on the recorded internal policy of the Respondent. Based on Articles 4, 5, 6, 24, and 32 of the Regulation, I have decided to issue a Warning to the Respondent to ensure that a similar incident does not occur in the future. I have informed the complainant accordingly.

5.9. Complaint regarding the publication of personal data

A complaint was submitted to my Office against two individuals regarding the publication of a minor's details on a Social Media platform. In the course of investigating the complaint, the Respondents informed me that no photograph of the minor had been shared on a Social Media platform; however, the minor's name was mentioned in two posts. After evaluating all the evidence and considering mitigating and aggravating factors related to the incident, I imposed a Warning on the Respondents, instructing them to ensure in the future that they do not publish details of the minor without a legal basis.

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5.10. Complaint regarding audiovisual recording of seminar excerpts by participant

On 5/9/2021, a complaint was submitted to my Office against a natural person regarding the audiovisual recording of excerpts from a seminar. Two of these excerpts, during which the complainant was featured, were used to document another complaint against him, submitted to the relevant Ministry.

After evaluating all the evidence presented before me, I found a violation of Article 5 of the Regulation, as I did not identify any necessity for recording the complainant and for sending excerpts of the said material to various persons before and/or during the submission of the complaint to the relevant Ministry. Considering all the mitigating factors that the respondent submitted to my Office, I concluded to impose the administrative sanction of Reprimand on the respondent for the violation I identified.

5.11. Complaint regarding lack of information on personal data processing

A complaint was submitted to the Data Protection Authority of Poland against the company the Drivers Rent a Car LTD (hereinafter "data controller"), which was forwarded to my Office through the cooperation and consistency procedure of the Regulation.

The complainant had rented a car from the data controller and claims that he was not informed about the processing of his personal data under Article 13 of the Regulation. Additionally, he claims that he discovered the car was equipped with a surveillance camera and possibly with a GPS tracking system. After examining the complaint, it was found that the car had been imported from Japan and the device installed is one used in Japan for automatic toll payment. The device was inactive / not functioning. The data controller sent me the relevant information required under Article 13, to satisfy the complainant's request for information.

I imposed a Reprimand on the data controller for failing to provide the complainant with the required information at the time of data collection.

5.12. Complaint regarding incomplete satisfaction of access right against FXBFI Broker Financial Invest Ltd

A complaint was submitted to my Office against the company FXBFI Broker Financial Invest Ltd, which manages the online investment platform 101investing.com, regarding a request for access to the personal data of the complainant processed by the company. The complainant, in her request, asked for all correspondence and telephone recordings exchanged with the company's staff.

The respondent delayed in responding to the complainant's request and did not provide all the information requested. Specifically, the respondent claimed that the data processor responsible for processing and storing the telephone recordings was

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established in Ukraine and could not respond. Nevertheless, I found that the complainant's request had been submitted one year before the war in Ukraine and the delay was unjustified.

In the context of the investigation of the complaint, I found that the Respondent violated:

- (a) Article 12(3) of the Regulation, as more than one month had passed to respond to the complainant's access request,
- (b) Article 15 of the Regulation, for failing to satisfy part of the request for access to telephone recordings, and
- (c) Article 31 of the Regulation, for the delay in responding to my Office's letters.

Taking into account mitigating and aggravating factors related to the incident, I imposed on the Respondent the administrative sanction of a Reprimand for the violation of the aforementioned articles of the Regulation.

5.13. Complaint regarding the receipt of promotional telephone calls

As part of the coherence mechanism, a complaint was sent to my Office from the Polish Authority, on behalf of a complainant residing in Poland. The complainant had received two phone calls from a company in Poland, which, however, served a company registered in Cyprus. Consequently, Cyprus accepted the investigation of the complaint, as the Supervisory Authority of the Cypriot company. From the investigation of the complaint, it became clear that the complainant's objection to further telephone communication for promotional purposes had been satisfied within the time frame provided by the Regulation. Therefore, there was no need to issue any order for compliance or other corrective action.

5.14. Complaint regarding the publication and processing of personal data by Breikot Management Ltd

Five complainants reported that the company Breikot Management Ltd, a member of the Nikodea Media Group, violated their personal data in four publications of the printed newspaper 24h. The Commissioner found that there was a violation of the Principle of Minimization by the Respondent, as fewer data would have served the journalistic interest of the public.

After investigating the complaint, on 12/4/2019, the Commissioner issued a Decision and imposed an administrative fine of €3,000 on the Respondent.

The Respondent filed an appeal against the Decision dated 12/4/2019, before the Administrative Court. On 16/12/2022, the Administrative Court issued a Decision on the appeal, upholding the Decision of the Commissioner's Office dated 12/4/2019, to the extent that it concerned the violation, but annulled it to the extent that it concerned the amount of the administrative fine imposed.

According to the provisions of Law 158(I)/1999, the indications of the Court, the relevant case law, and the recommendations of the Legal Service, the Commissioner's Office had a duty to re-examine the complaint.

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to the extent indicated by the Court in its annulment Decision, specifically regarding the amount of the administrative fine imposed. The facts of the complaint upon re-examination did not differ from the initial Decision dated 12/4/2009 and were adopted in their entirety as they had been reported, and in any case, as they had been confirmed by the decision of the Administrative Court dated 16/12/2022.

After taking into account aggravating and mitigating factors, as they were shaped during the re-examination of the case, as well as the fact that photographs of three (3) out of the five (5) complainants were posted, an administrative sanction in the form of a fine of €3,000 was imposed on the Respondent for the violation of Articles 5(1)(c) and 6 of the Regulation.

5.15. Complaint regarding the receipt of unsolicited advertising emails

A complaint was filed against the company Mediacube Worldwide Ltd for the receipt of unsolicited advertising emails, despite the fact that I had previously issued a warning against the same company. In a previous complaint, the complainant alleged that he had received various advertising messages from the company, while he had no relationship with it and had responded to most of the emails he received, stating that he did not wish to receive any messages from them. The company had apologized and informed me that it would make changes to its internal procedures to prevent a similar incident from occurring again. On 8/7/2022, I issued a Warning to the company to ensure that it only sends advertising messages to its customers or to individuals from whom it has obtained prior consent for this purpose, and that the advertising messages sent should provide the recipient with an easy and cost-free option to object. The company was also informed that in the event of further similar

complaints being submitted to my Office, this Warning would be considered an aggravating factor.

Despite the above Warning, the complainant continued to receive messages. The company informed me, among other things, of the following:

- The complainant's email address was obtained from the complainant's website, where he refers to a potential commercial collaboration with interested parties.
- The company's business model does not include the sale of goods or services but indicates the possibility of mutually beneficial collaboration.
- It has taken measures to ensure that messages are not sent again to the complainant.

Despite what the company stated above, I considered that the messages it sent were advertising/promotional and that there was a violation of the provisions of the legislation due to the sending of unsolicited advertising emails, without satisfying the complainant's request to object. I imposed an administrative sanction in the form of a fine of €3,500 on the company.

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The administrative fine imposed on the company Mediacube Worldwide Ltd has been paid.

5.16. Complaint regarding the failure to satisfy the right of access by the company Kpax Marketing Online Ltd

A complaint was submitted against the company Kpax Marketing Online Ltd by a former employee. The complainant alleged unjustified dismissal from the company. He requested documents from the Respondent that, among other things, may have pertained to the reason for his dismissal. He believed he had the right to access these documents, as long as he was personally identified and/or they concerned him. Following an investigation of the complaint, I concluded that the Respondent had satisfied the complainant's right of access to the extent possible. If the Respondent had proceeded to satisfy the complainant's request to the extent he sought, it would have affected the rights of others, such as the company and/or former colleagues of the complainant. Nevertheless, I identified a prima facie violation by the Respondent of Article 12(4) of the Regulation, as it did not inform the complainant of the reasons for not acting and not fully satisfying his request from the outset, as well as the possibility of submitting a complaint to a Supervisory Authority and the right to judicial appeal. After the Respondent was given the opportunity to be heard regarding the violation of Article 12(4), an administrative sanction of a Reprimand was imposed on it.

5.17. Ex officio investigation regarding the Disclosure by the Ministry of Interior of personal data to the House of Representatives (HoR)

My Office decided to investigate ex officio the lawfulness of the processing actions of personal data by the Ministry of Interior, which proceeded to disclose documents containing personal data to the House of Representatives (HoR), following a relevant request from the Body. A parallel investigation, which is still ongoing, is being conducted by my Office following related submitted complaints regarding the unlawful processing of the aforementioned data by media outlets. The Ministry collected and disclosed lists/forms containing information and personal data of the Employees of the Turkish Cypriot Property Management Service, Members of the Advisory Committee, and the Special Committees on Turkish Cypriot Properties, as well as their relatives up to the second degree of kinship, to the House of Representatives using a specific form/declaration of responsibility. The Ministry admitted to its non-compliance with the legal framework for data protection and therefore there was no room for non-attribution of liability regarding the violation of the following Principles of the Regulation, namely the provisions of Article 5(1),(a),(c), and (f) of the Regulation. Under the circumstances and the facts surrounding the above case, including the hearing of the Ministry and the mitigating and aggravating factors that constitute it, I deemed the imposition of the administrative sanction of a fine, as provided in the provisions of Article 58(2)(θ) of the Regulation, in the amount of €8,000 (eight thousand euros) to be proportional and justified. The administrative fine imposed on the Ministry of Interior has been paid.

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5.18. Complaint for failure to satisfy the right of access by the International School of Paphos

A complaint was submitted against the International School of Paphos by a former employee. The

complainant alleged discrimination regarding equal pay between men and women for the same work or work of equal value, as well as unlawful dismissal. She requested from the respondent all documents related to her complaint concerning discrimination and unlawful dismissal. She believed she had the right to access these documents, as they personally identified her and/or concerned her. Following an investigation of the complaint, I found that the respondent had satisfied the complainant's right of access to the extent possible. If the request had been fulfilled to the extent she sought, it would have affected the rights of others, such as those of the company. Furthermore, the documents she requested were protected by privileged treatment.

Nevertheless, I identified a prima facie violation by the respondent of Article 12(4) of the Regulation, as she did not inform the complainant of the reasons for not acting and not fully satisfying her request from the outset, as well as the possibility of submitting a complaint to a Supervisory Authority and the right to judicial appeal. After granting the respondent the opportunity to be heard regarding the violation of Article 12(4), an administrative sanction of a Reprimand was imposed on her.

5.19. Notification of a personal data breach incident

In accordance with the provisions of Article 33 of the Regulation, the Nicosia Sewerage Council (hereinafter, "NSC") informed my Office of an incident that led to a breach of the confidentiality of an internal document, which referred to the outcome of the investigation of a complaint against an employee of the NSC, in a mass media outlet.

After considering the circumstances of the incident and noting that:

- (a) measures had been taken to prevent the recurrence of a similar incident,
- (b) it was the first time that the NSC activated the investigation mechanism and the deviation from the prescribed procedure did not alter the outcome,
- (c) the leak appeared to have originated from the recipients of the confidential documents and not from the staff, and
- (d) no personal data of affected subjects were disclosed in the publication (witnesses, staff, complainant, respondent),

I decided not to impose an administrative sanction of a fine. However, the administrative sanction of a Reprimand was imposed. In the event of a recurrence of a similar incident, following the additional measures that have been taken, my Office's response will be stricter.

5.20. Complaint for failure to satisfy the right to erasure

A complaint was submitted to the Federal Supervisory Authority of Germany against the company Freedom Finance Europe Ltd (hereinafter, the "Respondent"), regarding the failure to satisfy the right to erasure of the

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****Complainant.**** Considering that the Controller has its main establishment in Cyprus, my Office undertook the investigation of the complaint. The complainant stated that he had initiated a registration process on the Controller's website, which he did not complete, and requested the deletion of any data collected. After not receiving confirmation that his request had been fulfilled, he sent a reminder to which he also did not receive a response. My Office requested the Controller's positions regarding the above, which stated that although the complainant's deletion request was not sent to the correct email address, it confirmed that the complainant's personal data had been deleted and provided relevant evidence which was deemed satisfactory. The Controller also provided evidence that the complainant was informed of the deletion following my Office's letter. I took into account the facts and the positions of the Controller and found a violation of:

- (a) Article 12(3) as the requests were not fulfilled within a month and
- (b) Article 24(1) as the Controller had not implemented appropriate technical and organizational measures to ensure that all emails received by employees regarding the rights of data subjects are forwarded without further delay. I decided to issue a Warning to the Controller, due to the fact that there was no prior violation of the Regulation on its part.

****5.21. Complaint regarding the disclosure of personal data to a third party****

A complaint was submitted to me regarding the disclosure of personal data of the complainant to a

third party by GoGordian Real Estate, which operates under Gordian Servicing Limited. As a result of the disclosure, the third party visited the complainant's residence. The Controller of the complaint informed me that the third party expressed interest in purchasing a plot in which both the Controller and the complainant are co-owners and requested a copy of the title deed. The Officer who was tasked with handling the promotion of the specific property, inadvertently, did not proceed with the deletion of the personal details (name and residential address) of the co-owner, despite the Controller's instructions on the matter. According to the Controller of the complaint, the disclosure of personal data pertains to an isolated incident and was the result of improper application of existing instructions to the staff. I identified a violation by the Controller of Articles 5(1)(f), 24(1), and 32 of the Regulation and after considering:

- (a) the applicable legislative framework,
- (b) all circumstances and factors presented to me by the complainant and the Controller,
- (c) various mitigating and aggravating factors,

I concluded that, under the circumstances, the imposition of an administrative fine is not justified. Nevertheless, exercising the powers granted to me by Article 58(2)(b) of the Regulation, I decided to issue a Warning to the Controller for the violation of the above articles of the Regulation.

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5.22. Complaint for Non-Compliance with Right of Access

A complaint was submitted to the Dutch Supervisory Authority against the company Technius Ltd (hereinafter referred to as the "Controller"), which manages the website StripChat, regarding the non-compliance with the right of access and for failing to inform about the data breach resulting from a related incident. Considering that the Controller has its main establishment in Cyprus, my Office undertook the investigation of the complaint.

The complainant was informed via electronic media that the StripChat website had suffered a data breach. Following this, after a relevant inquiry in his email, he discovered that an unknown third party had created an account on StripChat using his personal email address. He then contacted the Controller to request a copy of his personal data held by the company and to inquire whether his data had been affected by the incident.

The Controller requested identification documents from the complainant and informed him that his account would be deleted as it was created fraudulently, and also referred him to the notification regarding the data breach in the relevant post on the website.

My Office requested the Controller's positions on the above, which stated that the complainant's access request was considered satisfied, as it provided all necessary information and explanations regarding the account opened with his email address, as well as all information that could be provided regarding the breach incident.

I took into account the facts and the positions of the Controller and found a violation of:

- (a) Article 5(1)(c), as the data controller had no reasonable grounds to request additional identification from the complainant; and
- (b) Article 34(1), since it did not notify the personal data breach in an appropriate manner,

I decided to issue a Reprimand to the Controller, due to the fact that there was no prior violation of the Regulation by the Controller and it complied with my instructions without delay.

5.23. Complaint for Non-Compliance with Right of Access

A complaint was submitted to the Data Protection Authority of Malta against the company Brivio Limited, which was forwarded to my Office through the cooperation and consistency process of the Regulation.

The complaint concerned the non-compliance with the complainant's right of access by the company. The complainant was a user of a website managed by the company. He requested the company to provide him with information regarding his personal data being processed, payments concerning him, as well as games in which he had participated.

However, the company did not respond to his request within the one-month period.

In the course of investigating the complaint, the company stated, among other things, that despite its policies and procedures, the complainant's request had not been communicated to the department

responsible for personal data. However, as soon as it became aware of the submission to the Office, 99

of my report, the company sent the requested information to the Complainant and proceeded with taking additional measures to prevent similar incidents in the future. After evaluating all the evidence presented to me, I found a violation of Article 12(3) of the Regulation, as the company did not satisfy the complainant's right of access, in accordance with the provisions of that article. For the violation of the aforementioned article, I imposed a Reprimand on the company, taking into account, among other things, the eventual satisfaction of the right of access and the fact that no serious damage had been caused to the rights and freedoms of the complainant.

5.24. Complaint regarding unsolicited commercial promotion call

A complaint was submitted to my Office by a natural person against the company EMC Giorgallos Homecare Systems Ltd, regarding the receipt of an unsolicited commercial promotion call. Specifically, the complainant received a phone call from the Respondent, in which they were informed that they had won some services offered by the company. The complainant claimed that they had no prior relationship with the Respondent and that they had never given their consent to receive commercial promotion calls. The Respondent informed me that the complainant was possibly referred to the company by a third party and that the call was informational in nature as it aimed solely to notify them of the provision of free services without any obligation and/or cost, and should not be construed as a promotion of any products or services. They also informed me that they did not have the opportunity to fully inform the complainant about the right to object because the complainant unexpectedly interrupted the conversation with their employee. After evaluating the incident, I found that there was a violation of Article 6 of the Regulation, due to the fact that the Respondent processed the complainant's personal data without their prior consent. Taking into account mitigating and aggravating factors related to the incident, I issued a Warning to the Respondent, instructing them to ensure that a similar incident does not occur in the future.

5.25. Violation of Personal Data at the Open University of Cyprus

On 30/3/2023, a Notification of Personal Data Breach was submitted to my Office on behalf of the Open University of Cyprus (hereinafter referred to as the "University"). A group of "hackers" (hereinafter referred to as the "intruder") announced via the social media platform Twitter that they were responsible for the attack and a deadline was given to the University for the payment of a ransom for the return/non-disclosure of the files that had been leaked from the attack. When the deadline for the payment of the ransom had passed, the stolen data was published by the intruder and made available on the dark web. After a thorough investigation of the incident, it was determined that the leaked data concerned students, graduates, and other subjects (contractual parties of the University) that were temporarily stored on an affected server and were used for processing tasks by the employees.

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For the incident, 11 complaints have been submitted to my Office by data subjects who report that their personal data has leaked due to the incident under investigation, which were taken into account during the examination of the incident. My University also sent a list of actions it will take to enhance the security of its systems. These actions will be implemented gradually based on a program that has been developed, starting from now, with a completion date set for 2026, depending on the criticality, cost, and prerequisites for their implementation. Following a legal and technical examination of all the above, a violation of the Regulation was found due to the non-implementation of appropriate security measures and a breach of the principle of "accountability." After considering all the facts of the case, the technical and organizational measures taken by the University prior to the attack, and the mitigating factors reported by the University, as well as the fact that the University is part of the broader public sector, an Administrative Fine of forty-five thousand (€45,000) euros was imposed on the University. An Order was also issued to the University, within six months:

(a) to appoint a responsible security officer, even temporarily/deputy, who will oversee the implementation of the measures that the University intends to take,

(b) to inform me about the progress of the implementation of the measures of which it has informed me that it intends to take. My Decision has been challenged and is pending before an Administrative Court.

5.26. Complaint regarding the collection of personal data

A complaint was submitted to my Office against the company CITIPOST PRIVATE CAPITAL COMPANY (hereinafter, "CITIPOST"), regarding the collection of personal data at the Green Point of Strovolos. At the relevant time, CITIPOST was the Operator of the Green Points of the Municipality of Nicosia, under a relevant Waste Management License (WML). Following a preliminary investigation, I found that the said company acted as a Contractor for the operation and management of the eight (8) Green Points in the province of Nicosia and one (1) mobile Green Point, providing services, under a relevant contract, to the Council for the Management of Household Waste Disposal and Utilization of Nicosia (hereinafter "the Council"), from 1/4/2019 until 31/3/2022. During the investigation of the case, I communicated with all entities involved in the processing of personal data conducted at the Green Points of Nicosia, namely the Council, the Ministry of Agriculture, Rural Development and Environment, and the Department of Environment of that Ministry, and I found that the said processing concerns the collection, registration, and retention/storage of (i) the name of the waste transporter, (ii) the registration number of the transport vehicle, and (iii) the Municipality of origin. The above data is processed for the purposes of (a) traceability of the original producer of a waste, (b) preventing abuse of the Green Points system by individuals who produce waste from professional use, and (c) statistical purposes.

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Considering all the elements and/or positions provided by the involved parties, and the applicable legislative framework, I found that the processing of personal data conducted at the Green Points is not in compliance with Article 5(1)(c) of the Regulation. Specifically, for the purposes pursued, the registration and retention of the data collected on a unified basis is not required. Taking into account that the terms in the relevant ADAs of the Operators are determined by the Department of Environment, I issued a Decision through which I directed the Department of Environment to, within two months:

- (α) Take all necessary actions, possibly through changes to the terms of the ADAs provided to Operators, in order to ensure that the processing of data at the Green Points complies with the principle of minimization, namely Article 5(1)(c) of the Regulation, and inform our Office accordingly.
- (β) Inform our Office, for each Green Point, about the data being processed for the purpose of each pursued goal separately.
- (γ) Inform our Office, for each Green Point, about the categories of data included in each database maintained.
- (δ) Establish a reasonable retention period for the chronological record data, through an appropriate term in the ADAs of the Operators, for both hazardous and non-hazardous waste, and inform our Office accordingly.
- (ε) Establish a reasonable retention period for the data maintained in the Electronic Waste Register for both hazardous and non-hazardous waste, and inform our Office accordingly.

5.27. Complaint regarding access to a beneficiary's account of the GHS by a doctor

I examined a complaint submitted to my Office regarding access by a doctor to the account of a former patient in the General Health System (GHS). The complainant underwent surgery by the doctor in 2018, that is, before the implementation of the GHS. After posting an evaluation and/or review of the doctor on the online platform Google Reviews, the doctor filed a lawsuit in the District Court against the complainant, claiming general and special damages for defamatory publications, and subsequently gained access twice to the complainant's beneficiary file.

Considering that there was a prior relationship between the complainant and the doctor and that the doctor had the necessary information to access the complainant's beneficiary file, the accesses to the file would be justified if they were in accordance with the relevant regulations of the Health Insurance Organization, for the purposes of Article 9(2)(e) of the Regulation. Even if the reasons for accessing

the file, which the doctor mentioned to my Office, were valid, such accesses could not be framed within any case of paragraph 2 of Article 9 of the Regulation, since at the material time the complainant was not receiving services from the doctor.

Taking into account aggravating factors related to the incident, as well as mitigating factors, including the fact that the doctor is no longer contracted with the GHS, I imposed a Reprimand on the doctor for the violation of Article 9(2)(e) of the Regulation.

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5.28. Complaint regarding the Statistical Processing Methods of the scores of candidates who participated in the Written Examinations 2019 for Registration and Ranking on the Lists of Appointable Candidates

I examined a complaint regarding the processing of personal data during the application of statistical processing methods of the scores of candidates who participated in the written examinations 2019 for registration and ranking on the lists of appointable candidates of the New Appointment System in Education.

Taking into account the Public Educational Service Law of 1969, Law 10/1969, I determined that the Examination Service (hereinafter referred to as the "Service") of the Directorate of Higher Education of the Ministry of Education, Sports and Youth is the data controller for the processing of personal data that takes place within the framework of the statistical processing of the Examination results.

For registration on the list of appointable candidates, it is required that candidates record their qualifications and submit certificates/evidence, so that they can receive relevant scoring. For a candidate to be included on the list of appointable candidates, success in the Examinations is required. In each specialty, a list of appointable candidates is created, which includes successful candidates from various years. At specified intervals, the list of appointable candidates for each specialty is updated, with the addition of successful candidates from the new Examinations and/or with the differentiation of the scoring of qualifications and/or the scores of each successful candidate. Therefore, comparability of Examination scores from various years is required. Consequently, statistical processing is applied for the purposes of a unified ranking of candidates.

The application of statistical processing methods aims to form the index that reflects the degree of difficulty of the 2019 Examination in relation to the degree of difficulty of the corresponding Examination of 2017. These methods include methods that require the processing of personal data. Beyond the existence of a relevant legal basis since statistical processing is provided for in the relevant Regulations, I determined that the application of such methods does not fall outside, but rather fits into actions aimed at achieving the intended purpose, namely the ranking of candidates on the lists of appointable candidates. Moreover, the submission of certificates/evidence for registration on the list of appointable candidates of the relevant specialty or for their scoring was carried out by the candidates themselves. That is, the application of statistical methods, which include the processing of personal data, does not fall outside the framework of legality.

However, the Service assigned the application of statistical processing to a data processor without conducting a relevant assignment contract, as provided in Article 28(3) of the Regulation. As a result, the Service was unable to prove that the processing was carried out in accordance with the Regulation, as stipulated in Article 24(1) of the Regulation. Consequently, I issued a Warning for the violation of the aforementioned articles.

Since the Written Examinations for Registration and Ranking on the Lists of Appointable Candidates Regulations of 2017, as amended, provide for statistical processing for the purposes of a unified ranking of candidates, which requires the processing of personal data, the Service was obliged to conduct prior consultation with my Office before including the relevant provision. However, the Service did not conduct prior consultation in violation of Article 36(4) of the Regulation and Article 13(1) of Law 125(I)/2018, and for this reason, I issued a Warning to the Service.

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5.29. Complaint regarding access to the account of a beneficiary of the General Health System (GeSY) by a doctor

I examined a complaint submitted to my Office regarding access to the account of the General Health System (GeSY) of the complainant by a doctor. Specifically, as the complainant stated, she discovered access to her personal data by the doctor, on the GeSY beneficiaries' portal, without knowing the doctor, without a referral, and without her consent. In the context of the investigation, both the complainant and the doctor stated to my Office that each did not know the other and that the doctor did not examine the complainant.

I assessed the doctor's positions regarding the possible ways of obtaining the complainant's data, which were necessary for accessing the complainant's beneficiary portal on GeSY. However, the doctor could not prove that she obtained the complainant's personal data lawfully and that she had authorization to access the beneficiary portal. Therefore, the complainant's personal data was not subjected to lawful and fair processing in a transparent manner. That is, the principle of "lawfulness, fairness, and transparency" was not adhered to, as provided in Article 5(1)(a) of the Regulation. For the violation of this article, I imposed an administrative fine of one thousand five hundred euros (€1,500) on the doctor.

The administrative fine imposed on the doctor has been paid.

5.30. Cyberattack on the network of the Department of Lands and Surveys

On 13/3/2023, a Notification of Personal Data Breach was submitted to my Office on behalf of the Department of Lands and Surveys (hereinafter referred to as the "Department"), stating that on 8/3/2023, the Department was subjected to a cyberattack, which affected the Department's online portal (DLS Portal).

After a thorough investigation of the incident, it was determined that the attacker did not gain access to personal data; however, the availability of the data was affected due to the systems being taken offline for the investigation of the incident and gradual restoration. Although the attacker did not gain access to personal data, I note the following:

(a) the data controller must ensure, among other things, the availability and reliability of the processing systems and services on a continuous basis. Even temporary unavailability of the data could have impacted the data subjects due to the lack of the ability to serve them.

(b) since the attacker had gained access to the Department's servers, there was a possibility of gaining access to other systems/subnetworks that include personal data.

After reviewing the technical and organizational measures that were in place before the incident, the results of the investigation, the actions taken after the incident, and the actions planned for further strengthening of the systems, a violation of the Regulation was found due to the failure to implement appropriate security measures.

On 21/12/2023, I issued a Decision in which I issued a Reprimand to the Department.

I also instructed the Department to inform me within two months regarding:

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(a) the progress of the implementation of the additional measures to be taken and the securing of the additional equipment,

(b) the results of the new penetration test and the stage of resolution of the findings, and

(c) the timelines within which actions will be implemented to enhance the security of its systems.

In issuing the Decision, all incidents related to the present case were taken into account, particularly that:

(a) access to personal data was not obtained by the intruder,

(b) the period during which the availability of the data was affected was limited (the complete restoration of all systems occurred after one month, but several services were provided to citizens in person after approximately one week),

(c) no substantial harm appears to have been caused to the subjects.

5.31. Accuracy of data recording and transparent information to the data subject during the collection of data concerning them

On 23/11/2022, a complaint was submitted to my Office against Themis Portfolio Management Limited regarding the untimely satisfaction of a request for access. The complaint form included some initial claims regarding the unlawful transfer of data from the Bank of Cyprus Public Company Ltd to Themis Portfolio Management Limited, following the sale of credit facilities, which, after the satisfaction of the access request, became the main claims presented by the complainant for examination.

During the investigation of the complaint, it became evident that the data recorded in the systems of the two legal entities concerning the complainant was incorrect. Therefore, I deemed it important to examine the reasons why the data was recorded incorrectly and whether the information provided to the complainant regarding the transfer of their data during the sale of the credit facilities was complete. After receiving the positions of the involved parties, considering the circumstances of the case and the mitigating and aggravating factors presented to me, I decided to:

- issue a reprimand to the Bank of Cyprus Public Company Ltd for the violation of Articles 12 and 14 of the Regulation and impose an Administrative Fine of €8,000 for the breach of its obligations as arising from Article 5(1)(d) of the Regulation,
- issue a reprimand to Themis Portfolio Management Limited for the violation of Articles 5(1)(d), 12, and 14 of the Regulation and an Order to correct the data concerning the Complainant, in accordance with the applicable legislation.

The administrative fine imposed on the Bank of Cyprus has been paid.

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6. OPINIONS/INSTRUCTIONS OF THE COMMISSIONER

Based on the provisions of Article 58(3)(b) of the Regulation, I have the authority to issue, on my own initiative or at the request of others, opinions to the national parliament, the government, or other bodies and organizations, as well as to the public, on any matter related to the protection of personal data.

In 2023, I issued the following Directive, which is presented in full:

6.1. Guidelines for direct marketing

1. Introduction

Direct marketing aims to advertise and involves the processing of personal data. This promotional practice is considered, in principle, a lawful and legitimate activity provided that specific conditions are met as arising from the institutional and regulatory framework for the protection of personal data. Home address, email address, and phone number are some of the most common personal data processed during communication for the purpose of direct marketing.

The legislative framework that protects personal data during direct marketing of goods or services is based, depending on the means of communication chosen for the marketing, as will be explained below, either on the provisions of the General Data Protection Regulation (EU) 2016/679, hereinafter referred to as "the Regulation," or on the provisions of Article 106 of the Law on the Regulation of Electronic Communications and Postal Services Law 112 of 2004, as amended, hereinafter referred to as "Law 112(I)/2004."

Natural or legal persons conducting the above processing in the context of promoting their products or services are considered data controllers according to the interpretation given to this term in Article 4 of the Regulation and must comply with the provisions of the relevant legislation.

It is understood that in cases where part of the processing is delegated to a processor (an external natural or legal person who is not an employee of the Data Controller), according to the Regulation (Articles 4(8) and 28), there must be a relevant processing agreement, and the processor must comply with all obligations provided by the Regulation and act according to the instructions and directions of the data controller.

2. Direct marketing of goods or services via electronic means

In the case of direct marketing via electronic means, the Law (Law 112(I)/2004), as amended, which has transposed into national law the provisions of Directive 2002/58/EC (commonly known as the "e-Privacy Directive" regarding the protection of privacy in the electronic communications sector, applies as a more specific regulation.

Article 106 of this Law titled "Unsolicited Calls" regulates the sending of advertising messages for the purposes of direct marketing through electronic means. Direct marketing through electronic means is primarily carried out through the following:

- automated calling systems without human intervention
- mobile messaging services (SMS, MMS)
- email messaging services
- facsimile services

The general principle established by Article 106 (1) is that communication for the purposes of direct marketing through electronic means is only permitted in the case of individuals who have given their prior consent, the so-called "opt-in."

However, Article 106 (2) introduces the following essential exception:

In the case where a natural or legal person obtains from its customers their email contact details in the context of the sale of a product or service, according to the provisions of the Regulation, it may use such details for the direct marketing of its own similar products or services, provided that the customers have clearly and distinctly the opportunity to object, free of charge and easily, to this use of electronic contact details at the time of their collection, or subsequently at any time a message is sent (in case the user initially did not object to this use).

Also, by the same article, the practice of sending electronic messages for the purpose of direct marketing, which conceal or hide the identity of the sender or the person on behalf of or for the benefit of whom the message is sent, or without valid contact details to which the recipient can request the termination of this communication free of charge, is prohibited.

Specifically, senders are obliged to provide in all direct marketing messages they send the recipients of the messages with an email address (in the case of messages via email) or a toll-free number (in the case of SMS, MMS messages), so as to allow for the possibility of opting out without charge. Each message sent must include instructions explaining to the recipient how they can request the termination of the receipt of messages. For example, at the end of the message, it should state "To unsubscribe call 8XXXXXXX" or "SMS STOP send XXXX to 8XXX." The provision of the option to unsubscribe must accompany every message sent. It is also clarified that the provision of the option to unsubscribe from the list of numbers/addresses to which messages are sent (opt-out) does not in itself legitimize the sending of messages, but prior consent from the recipients must either have been obtained or they must be customers.

The above restrictions apply to subscribers who are natural persons. To safeguard the legal interests of subscribers who are not natural persons regarding electronic communications for the purpose of direct marketing, the provisions of the Law on Legal Entities (Safeguarding Legal Interests regarding Unsolicited Communications) Decree of 2005 issued by the Commissioner for Electronic Communications and Postal Regulation under Articles 106(3) and 152 of the above Law, published in the Official Gazette of the Republic on January 28, 2005, apply, according to which consent must also be obtained from legal entities.

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3. Direct commercial promotion of the sale of goods or the provision of services via postal mail and face-to-face calls

For direct commercial promotion through postal mail and/or face-to-face calls/human intervention, the provisions of the Regulation apply. In addition to the fundamental principles (Article 5) and the conditions for lawful processing (Article 6) that must be applied to all forms of processing, the recitals of paragraphs 47 and 70 of the preamble and Article 21 of the Regulation are significant for direct commercial promotion.

The legal basis for the aforementioned unsolicited communication may be:

- The consent of the data subject [Article 6(1)(a)],

- The legitimate interest pursued by the data controller [Article 6(1)(f)].

In the event that the Data Controller claims that the processing is carried out based on the legitimate interest pursued, they must conduct an assessment/balancing of their legitimate interest against the rights of the data subjects. The Data Controller could, according to recital 47 of the preamble of the Regulation, invoke such a legitimate interest when there is a relevant and appropriate relationship between the data subject and the Data Controller, such as when the data subject is an existing customer of the data controller.

The data subject has the right at any time to exercise the right to object (Article 21 of the Regulation) regarding the processing of personal data that takes place for the purpose of achieving direct commercial promotion, including profiling, if it is related to such direct commercial promotion (Article 21).

4. Clarifications applicable to all cases of unsolicited communication

a. Consent

The consent of the data subject is interpreted in all cases in the sense attributed to it by the Regulation. Therefore, it must:

- be free, explicit, and contain an explicit statement of will from the data subject themselves (and not a third party) to the data controller that they agree to have their personal data processed for a specific purpose
- be expressed through positive action and clarity
- be obtained after the data subject has been duly informed
- be revocable

b. Burden of Proof

i. The burden of proof for obtaining consent lies with the Data Controller. Individuals or companies engaged in direct marketing must record details such as the date, time, and method by which consent was obtained and maintain a relevant register so that in cases of audits or complaints, they can demonstrate that they have obtained the consent of the recipients.

ii. The burden of proof that the data subject is an existing customer or that the legal basis of legitimate interest is established lies with the Data Controller.

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c. Commercial promotion includes any form of promotion of purposes and ideas

From the European legislative framework, it is clear that the concept of direct promotion is interpreted broadly, and "commercial or advertising purposes" include purposes pursued by either commercial entities or charitable organizations or other associations or unions, e.g., of a political nature.

d. Political communication

Unsolicited political communication is now typically encountered in every electoral campaign. As previously mentioned, it is clarified that the restrictions and obligations of the legislative framework apply in this area regardless of whether political communication is characterized as commercial. More information can be found in the Guidelines of the Commissioner for Personal Data Protection titled "Sending messages and making calls of political content/promotion of candidacies" dated 14/10/2022.

e. Other clarifications

- The claim that the messages sent are merely informative and not advertising is incorrect. If the messages contain the name of a company or a product or service, they are generally considered advertising.
- Silence or inaction from the data subject is not considered consent.
- The existing commercial relationship pertains only to communication for the promotion of similar products or services of the Data Controller. For example, if a customer has purchased an electrical appliance, it is generally not justified to subsequently send them messages advertising jewelry.
- The Data Controller, when a company, and creates a customer relationship that allows communication for commercial promotion does not automatically and voluntarily extend the right to communicate with the customer to subsidiaries or parent companies or other members of a corporate

group. They must first adequately investigate whether a legitimate interest is indeed established.

- Phone numbers randomly generated through software tools constitute personal data because the holder can easily be identified; therefore, the practice of communication either through electronic means or via face-to-face calls to holders of phone numbers generated in the above manner is prohibited.

5. Administrative Sanctions and Offenses

a. Violation of Article 106 of the Law (112(I)/2004)

The Commissioner for Personal Data Protection has the authority to address potential violations of Article 106 of Law 112(I)/2004 exercising the authority granted to them under the provisions of Article 107A of the same Law and may impose the following administrative sanctions:

(a) Warning, with instructions and/or recommendations for correcting the violation or preventing a potential violation;

(b) reprimand.

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(γ) order to terminate the violation, if necessary, within a specified deadline

(δ) temporary or permanent prohibition of processing

(ε) administrative fine of up to two hundred thousand euros (€200,000)

It is clarified that the sanctions referred to in paragraphs (β), (γ), (δ), and (ε) of the above subsection are imposed following a hearing of the involved person. Furthermore, regardless of the above administrative sanctions, the Commissioner may impose a monetary fine not exceeding fifty thousand euros (€50,000) on any person who does not comply, obstructs, or hinders the completion of the examination of a complaint, report, or request, or the conduct of an inspection related to the violation of any subsection of Article 106 of Law 112(I)/2004.

β. Violation of the provisions of the Regulation

Pursuant to the provisions of Article 83 of the Regulation and Article 32(1) of Law 125(I)/2018, violations of the provisions of the Regulation concerning processing principles and the rights of data subjects incur administrative fines of up to twenty million euros (€20,000,000) or, in the case of enterprises, up to 4% of the total global annual turnover of the previous financial year, whichever is higher. At the same time, corrective measures may also be imposed, e.g., cessation of processing. It is clarified that an administrative fine imposed on a public authority or public body concerning non-profit activities is limited to two hundred thousand euros (€200,000).

Based on Law 125(I)/2018, the Commissioner has the authority to notify the Attorney General of the Republic and/or the Police of any violation of the provisions of the Regulation or Law 125(I)/2018, which may constitute a criminal offense under the provisions of Article 33 of Law 125(I)/2018. The details of the holders of the numbers, the phone numbers constitute personal data, as the holder can easily be identified.

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7. INSPECTIONS

In 2023, my Office conducted 13 on-site inspections, of which two included inspections at 90 polling stations during the first electoral process and 80 polling stations during the repeat process of the Presidential Elections, on February 5 and 12, 2023, respectively. Additionally, two inspections concerned the Schengen Information System, and one inspection was conducted at an insurance company as part of the private sector audit. Furthermore, my Office conducted 8 inspections at facilities of data controllers or processors, either spontaneously or in the context of investigating a complaint.

The above information is presented in the following table:

No.

Type of Inspections

Category of Inspected Entities

Number of Inspections

1.

On-site Inspections

Inspections at polling stations of the Presidential Elections

1st Electoral Process (February 5, 2023)

2nd Electoral Process (February 12, 2023)

90

80

2.

On-site Inspections

Institutional Inspections for the operation of the Schengen Information System

2

3.

On-site Inspections

Private Sector Audit

Inspection at an insurance company

1

4.

On-site Inspections

Inspections at facilities of data controllers or processors, spontaneously or in the context of investigating a complaint

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The inspections conducted by my Office constitute a specific assessment study of the procedures and technological measures for the protection of personal data that the inspected entity was implementing at the time of the inspection. Therefore, any incident of personal data breach and/or complaint against the inspected entity will be judged and/or assessed based on the data that will be established at the relevant time, that is, at the time the incident occurred.

Below is a general report on inspections conducted in 2023 and a specific report on inspections whose investigation was completed within 2023.

7.1. Inspections at polling stations of the Presidential Elections

On the days of the Presidential Elections, February 5 and 12, 2023, officials from my Office and I personally visited polling stations across the Republic. Specifically, inspections were conducted at 90 and 80 polling stations, respectively.

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On-site inspections were conducted to verify compliance with the relevant Announcement I issued on February 1, 2023. Therefore, it was examined whether the electoral rolls provided to the parties/candidates did not include the identity card number of the voters, the date of birth, and the full name of the father. Furthermore, it was checked that during the voting process, the identity card number of the voters was not called out, as this poses risks of disclosure to unauthorized individuals. The inspections found that the procedures/instructions included in the Announcement, as mentioned above, were adhered to.

Relevant are the Announcements in subsections 8.2., 8.3., and 8.4.

7.2. Institutional Inspections for the Operation of the Schengen Information System

Based on a supervisory plan that I submitted and was approved by the European Commission, prior to the commencement of operations of the second generation Schengen Information System (SIS II), I conducted an inspection to ascertain the readiness of the Police to fulfill its obligations concerning this system. The readiness of the Police was positively assessed, and I issued an Audit Report which I sent to the relevant supervisory bodies of the EU.

In September 2023, I conducted a second inspection to determine how the SIS operates in practice and whether appropriate technical and organizational security measures were taken during the input or output of information to or from the SIS, and whether the procedures provided by the Law on the Operation and Use of the Second Generation Schengen Information System (SIS II) in the Republic of

2022, Law No. 12(I)/2022, were being followed. The inspection was carried out through on-site visits to Larnaca Airport, the Strovolos Police Directorate, and the Ayios Dometiou checkpoint, where a demonstration of the system's operation took place, and various questions were posed and answered. The operation of the SIS was positively evaluated, and this was reflected in the second Audit Report that I issued and sent to the Police.

The present information regarding the SIS inspections is also included in subsection 10.2.

7.3. Private Sector Inspection

In 2020, with the aim of assessing the level of compliance in the private sector, my Office began conducting sectoral inspections through a questionnaire. In the years 2020 and 2021, the inspections concerned the supermarket sector, the insurance companies sector, and the private hospitals sector. These inspections were conducted to capture the level of compliance of the audited entities, to record omissions and/or gaps, and to identify the processes and processing actions that require special attention.

In this context, and following the on-site inspections conducted in previous years, in 2023 an on-site inspection was carried out at an insurance company.

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7.4. Transparency Checks and Information on Public Authorities' Websites

My Office conducted an administrative audit on the websites of Ministries, Deputy Ministries, Departments, Services, and Independent Offices of the Public Sector. The audit began around October 2022 and was completed in April 2023, however, full compliance by all audited entities was not achieved.

The objective of the audit was to assess the completeness and accuracy of the information regarding the privacy policy on the website of each audited entity, the degree of compliance with the provisions of transparency and information for data subjects in accordance with the provisions of Chapter III of the Regulation, as well as to verify the posting of the contact details of the data protection officer of the audited entity in a distinct location on the homepage of each entity.

In 2022, an audit was conducted on 28 Public Authorities. In 2023, written communication was completed with all audited entities, informing them of the relevant findings and providing recommendations and suggestions for compliance with the Regulation.

The initial findings of the audit revealed the following numerical data:

- 17 entities (61%) were assessed with a low level of compliance as they did not have a privacy policy posted on their website, nor the contact details of the data protection officer,
- 11 entities (39%) were assessed with a moderate level of compliance as they had a privacy policy posted, which, however, contained gaps, inaccuracies, and omissions, and the contact details of the data protection officers were not posted in a distinct location on their homepage.

The vast majority of the audited entities complied within 2023 and took the necessary compliance actions, namely posting a privacy policy in a prominent location on the homepage and publishing the contact details of the data protection officer in a visible area. Compliance from the remaining audited entities is expected in 2024.

7.5. Cookie File Audits

In 2021, my Office began conducting audits on various websites that use cookie files. The audits were primarily conducted on news websites, online newspapers, and magazines. In this context, around 30 audits were completed in 2023.

The administrators of the websites that were audited received letters with the findings of the audit, which they were called upon to correct. Since these audits were the first of their kind, and the websites are continuously upgraded with the use of new technologies, a significant period for compliance was granted to the website administrators, and numerous letters were sent with suggestions/clarifications regarding issues that arose during the audits.

The main issues identified during the audits were as follows:

1. Most websites did not provide information regarding the purposes of cookie usage.
2. Websites that had information about cookie usage did not obtain the explicit consent of users for the

use of cookies, or the method of obtaining consent did not meet the requirements for lawful consent (free, revocable, etc.).

3. Some cookies, such as those for measuring website traffic, were incorrectly categorized as "strictly necessary."

Following my suggestions, I found that there was compliance with the provisions of the legislation and the objectives of the audit. It should be noted that the audits were conducted within a specific timeframe, and the compliance of the websites will be re-evaluated. Relevant information is also included in subsection 8.8.

7.6. Audit of Metro Foods Trading Limited

As part of the private sector audit initiated by my Office in 2020, and after sending questionnaires to 42 supermarkets, my Office conducted an on-site audit of Metro Foods Trading Limited.

The purpose of the audit was to evaluate the procedures and measures for the protection of personal data taken by the company. However, according to the findings of the audit, there were elements that required improvement and/or revision.

Therefore, I informed the company of the actions it needed to take within a specific timeframe to ensure that the processing it undertook was in compliance with the Regulation. Among other things, the company needed to revise forms, develop procedures for the rights of data subjects, and conduct impact assessments for specific processing activities.

After evaluating the actions taken by the company, I deemed these actions satisfactory in relation to my recommendations.

7.7. Audit of C&S; American Heart Institute Ltd

As part of the private sector audit, specifically of private hospitals, after sending a questionnaire to the entire sector, I conducted an on-site audit of C&S; American Heart Institute Ltd.

The actions that the company needed to take to ensure the level of protection of the data it processes included, among others, cases of outsourcing work to processors, training of staff, and organizational security measures.

After reviewing the actions taken by the company, I found that they were in compliance with my recommendations.

7.8. Audit of MINE Management Ltd

Following the sending of a relevant questionnaire, my Office conducted an audit at the Evangelismos Private Hospital (MINE Management Ltd).

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Evaluating the evidence presented to me, both during the on-site inspection and in the questionnaire, as well as studying the documents that the company sent to my Office, I concluded that there were actions that the audited company needed to undertake. These actions concerned, among other things, the adherence to technical security measures and the assurance of the required level of security in cases where personal data was transmitted. After evaluating the new information submitted by the company, I found that the requested actions had been implemented.

7.9. Audit of Minerva Insurance Company Public Ltd

As part of the audit of insurance companies, which began in 2020 with the sending of a questionnaire from my Office to the entire insurance sector, I conducted an on-site inspection at Minerva Insurance Company Public Ltd. During the on-site inspection, points were identified that required specific actions, which were highlighted to the company in my letter. These actions included, among other things, the completeness of the security policy and the review of the company's systems. With the submission of a report by the audited company to my Office regarding the actions taken, I found that these actions were satisfactory for compliance with my recommendations.

7.10. Audit of A. Zorpas & Sons Ltd

My Office conducted an audit of A. Zorpas & Sons Ltd, with the aim of determining the level of protection of personal data being processed by the company. After the on-site inspection, due to the presence of elements that required improvement and/or revision, I informed the company of the

necessary actions. These actions, among other things, concerned the activity records maintained by the company, the impact assessments regarding data protection that it had conducted, and the procedures it followed. After a re-examination of the actions taken by the company, it was found that for these issues, compliance with my relevant recommendations was achieved.

7.11. Audit of Medochemie

My Office received complaints from employees of the pharmaceutical company Medochemie regarding the installation of cameras in the room with the drug filling machines. For this reason, my Office conducted an on-site inspection at the company's offices in Limassol. During this inspection, deficiencies, gaps, and/or omissions regarding the company's obligations as a data controller were identified and highlighted to them. Following the recommendations of my Office, the company took actions to comply with its obligations and confirmed that the Closed-Circuit Television (CCTV) operates only within the framework of the relevant European Regulation concerning the quality assurance of medicines.

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After considering the above, as well as the supporting documents provided to demonstrate its compliance, I concluded that the level of compliance was satisfactory according to the requirements of the Regulation.

7.12. Audit of PRC PUBLIC RETAIL CYPRUS LTD

My Office conducted an on-site inspection at two stores of PRC PUBLIC RETAIL CYPRUS LTD, in Paralimni and at the headquarters in Nicosia. During the on-site inspections, deficiencies, gaps, and/or omissions regarding the company's obligations, as stipulated by the Regulation, were identified. Following the recommendations of my Office to the company, it took actions to comply with its obligations. Additionally, regarding the Closed-Circuit Television (CCTV), the company confirmed that it operates only for the purpose for which it was installed, namely for the protection of persons and property, as well as the prevention of offenses within the company's stores. After considering the above and after reviewing the supporting documents submitted by the company to my Office to demonstrate its compliance, I concluded that the level of compliance was satisfactory according to the requirements of the Regulation.

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8. ANNOUNCEMENTS

The announcements I have issued during the year 2023 are presented in full.

8.1. Announcement of the Commissioner for Personal Data Protection, for the European Day for the Protection of Personal Data 2023, dated January 19, 2023

January 28 has been established by the Council of Europe as the European Day for the Protection of Personal Data.

In this context, my Office annually schedules targeted events aimed at informing and raising awareness among citizens on privacy issues.

This year, we will focus on students from various fields of study at public and private universities. I will be available to discuss topics, concerns, and questions that fall within the competencies of my Office. This initiative will begin on January 23 and will last for more than a month.

At the same time, my Office will be available to the media and other organized groups that have already approached us for the organization of corresponding awareness and information events.

8.2. Announcement of the Commissioner for Personal Data Protection, regarding the Presidential elections, dated February 1, 2023

On the day of the Presidential elections, officials from my Office and I will visit polling stations to check compliance with the following:

It is reminded that the electoral roll is made available to parties/candidates in each electoral contest for purposes of transparency and oversight of the electoral process, based on the Decision of the Council of Ministers No. 34.361 dated 1.11.1990. The electoral rolls provided to parties/candidates do not include the ID card number of voters, the date of birth, and the name of the father.

It is legal and permissible for representatives to take notes during the electoral process. During the voting, the ID card number of voters is not announced, as this poses risks of disclosure to unauthorized persons. After the elections, lists and notes should not be used for other purposes incompatible with the original purpose of data collection and must be destroyed.

8.3. Announcement of the Commissioner for Personal Data Protection, regarding the Presidential Elections 2023 (Checks and complaints), dated February 7, 2023

Following my last Announcement dated February 1, 2023, I wish to inform the public that, during the elections of February 5, 2023, nationwide compliance checks were conducted at 90 polling stations.

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From the checks, it was found that the procedures/guidelines set by my Office in the Announcement dated February 1, 2023, regarding the prohibition of announcing ID card numbers and personal data that representatives of political combinations/parties/candidates are entitled to hold within polling stations were adhered to.

Throughout the entire pre-election period, up to the moment of drafting this Announcement, 25 complaints were submitted against teams and/or supporters of candidates concerning the receipt of unwanted promotional messages via SMS and/or phone calls.

Additionally, 14 inquiries were submitted regarding the processing of personal data within the framework of the electoral process.

The complaints will be duly investigated, and we will inform you of the results at a later time.

8.4. Second announcement of the Commissioner for Personal Data Protection, regarding the Presidential Elections 2023 (Checks and complaints of the second round), dated February 15, 2023
Following my first Announcement dated February 7, 2023, I wish to inform the public that, during the elections of February 12, 2023, nationwide compliance checks were conducted at 80 polling stations. From the checks, it was found that the procedures/guidelines set by my Office in the Announcement dated February 1, 2023, regarding the prohibition of announcing ID card numbers and personal data that representatives of political combinations/parties/candidates are entitled to hold within polling stations were adhered to.

To the 25 complaints that had been submitted by the first round of elections, 52 complaints concerning the second round of elections were added. Many of the complaints relate to phone calls and/or unwanted promotional messages via SMS.

As I mentioned in the first Announcement, all complaints will be duly investigated, and we will inform you of the results at a later time.

8.5. Announcement of the Commissioner for Personal Data Protection, regarding the participation of the Office in the coordinated action of the EDPB concerning the role of Data Protection Officers (DPOs), dated March 15, 2023

On March 15, 2023, the European Data Protection Board (EDPB) launched the second coordinated action regarding the appointment and role of Data Protection Officers (DPOs).

The purpose of this initiative is to collect information on the practices followed in Member States and to assess compliance with the General Data Protection Regulation.

As part of this initiative, my Office will send a relevant questionnaire prepared by the EDPB to DPOs of public and private organizations. The responses will be evaluated and sent to the EDPB to determine the next steps, both at the national and European level.

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8.6. Announcement of the Commissioner for Personal Data Protection regarding the 31st Spring Conference of European Data Protection Authorities, dated April 10, 2023

The Hungarian Data Protection Authority is organizing the 31st Spring Conference of European Data Protection Authorities in Budapest from May 10 to 12, 2023. This Conference provides an opportunity for discussion, information sharing, and exchange of views and positions among European Data Protection Authorities on personal data protection issues.

The Commissioner for Personal Data Protection, Ms. Irini Loizidou Nicolaidou, will also participate in this Conference. It is worth noting that our Office organized the Spring Conference of European Data Protection Authorities in 2007 in Larnaca and in 2017 in Limassol.

On May 12, 2023, the Conference's proceedings will focus on the Data Protection Officer and will be open to data protection professionals. Specifically, the following topics will be presented:

- Relationship between the Data Protection Officer and the Data Protection Authority,
- Training and network of Data Protection Officers,
- Role of the Data Protection Officer in the Organization.

The proceedings of the Conference on this day will be provided free of charge and will be in a hybrid format, meaning that interested parties can attend either in person or online. Due to limited capacity, applications for in-person attendance will be considered based on the country of origin of the applicants, in order to ensure as much representation from different countries as possible.

Interested parties are invited to register for participation on the website

<https://springconference2023.hu/>, by April 27, 2023.

8.7. Announcement of the Commissioner for Personal Data Protection regarding the Data Protection Guide for Small and Medium-sized Enterprises (SMEs), dated May 4, 2023

As part of its Strategy and actions for the years 2021-2023, the European Data Protection Board has developed, through a working group that included my Office, a Data Protection Guide aimed at small and medium-sized enterprises (SMEs).

The Guide includes useful information, videos, interactive tools, and realistic examples based on the 5-year application of the GDPR, which can assist SMEs in fulfilling their obligations and ensuring compliance with the GDPR.

The Guide is available in English at the following electronic address:

<https://edpb.europa.eu/sme-data-protection-guide/home>

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8.8. Announcement of the Commissioner for Personal Data Protection regarding the results of the audits on the use of Cookies by websites, dated May 8, 2023

Following my previous Announcements regarding the audits conducted by my Office on websites concerning the use of cookies, I inform you that approximately 30 audits have been completed, primarily concerning news and other related public information websites. It is reminded that cookies are small data files stored by a website on the visitor's computer or mobile device, for which, under the legislation, user consent is required (except for those that are strictly necessary for the service provider of the information society to provide the service explicitly requested by the user). The administrators of the websites that were audited received letters with the findings of the audit, which they were called upon to rectify. Given that these specific audits were the first of their kind, and that websites are continuously upgraded with the use of new technologies, a significant timeframe for compliance was granted to the website administrators, and numerous letters were sent with suggestions/clarifications regarding issues that arose during the audits.

The main issues identified during the audits are as follows:

1. Most websites did not provide information regarding the purposes of cookie usage.
2. Websites that had information about the use of cookies did not obtain the explicit consent of users for the use of cookies, or the method of obtaining consent did not meet the requirements for valid consent (free, revocable, etc.).
3. Some cookies, such as those for measuring website traffic, were incorrectly categorized as "strictly necessary."

Following our suggestions, we have found that there has been compliance with the provisions of the legislation and the objectives of the audit. The audits were conducted within a specific timeframe, and the compliance of the websites will be re-evaluated.

In response to the frequently asked question regarding how other Supervisory Authorities address the use of cookies, I would like to mention that they have conducted and are conducting similar audits and

are taking various actions aimed at compliance with the legislation.

My Office monitors and participates in discussions of the European Data Protection Board (EDPB) groups that examine various issues related to the use of cookies, for further uniformity in the approach of EDPB members. If necessary, we will conduct additional audits on the issues under discussion, such as regarding the use of Google Analytics and Facebook connect/pixel tools as well as other new technologies.

8.9. Announcement of the Office of the Commissioner for Personal Data Protection regarding the Election of a Commissioner to the Vice-Presidency of the European Data Protection Board on the 5th anniversary of the application of the General Data Protection Regulation, dated May 25, 2023

Four years have passed since the day the GDPR came into our lives, on May 25, 2018. The GDPR contributes to the implementation of uniform and harmonized data protection rules in the...

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Member States of the European Union, in strengthening the rights of citizens and enhancing the cooperation of supervisory Authorities. It also provides benefits to businesses, which by implementing a common legislation and having contact with a single supervisory Authority, reduce their administrative costs. At the European Level, the European Data Protection Board, which is the institutional collective body of the supervisory Authorities, has issued several Guidelines and Opinions for the uniform application of the GDPR.

My Office, from May 2018 until the end of April 2022, handled 1616 complaints, of which 415 concerned unsolicited advertising messages, 305 notifications of data breach incidents, and 74 impact assessments. A total of 425 inspections were conducted, 163 Decisions were issued, and administrative fines totaling €1,378,100 were imposed. Additionally, 143 bills and legislative proposals concerning personal data issues were consulted with my Office, and a multitude of inquiries were answered in writing, of which 1357 were answered directly.

From the numbers, it can be safely concluded that citizens are informed about their rights, exercise them, and do not hesitate to file complaints as well as express concerns about whether something constitutes lawful processing of their personal data.

The Institution of the Commissioner for Personal Data Protection, which has completed 20 years of operation in our country, bears the responsibility of monitoring the implementation of the GDPR.

The Office will continue to carry out its responsibilities and duties, with dedication to its primary goal, which is to cultivate a substantial respect for privacy in Cypriot society.

8.10. Announcement of the Commissioner for Personal Data Protection regarding the publication of CVs of Officials and/or members of Councils of Public Law Legal Entities, dated May 30, 2023

Regarding publications and posts on social media concerning the above issue, I find it useful to inform the public of the following:

Every act of processing must be based on an appropriate legal basis. The publication of CVs is in accordance with the General Data Protection Regulation when provided for by specific legislation.

In the absence of specific legislation, it is up to each Official and/or Council member to assess whether the publication of their CV is appropriate.

However, I believe that the publication of CVs of individuals holding public office serves the principle of transparency.

8.11. Announcement of the Commissioner for Personal Data Protection regarding current issues related to the protection of personal data that have recently engaged the public, dated June 28, 2023

In relation to some current issues for which articles/comments are published in mass media and social networks, I find it useful to inform the public of the following:

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Some publications refer to the creation of an application that users will be able to "download" onto their devices to stay informed about services provided to Persons with Disabilities (PWD), such as locations where parking spaces are available and buildings that PWD can easily access. My Office is in contact with the company that designed the application to evaluate, among other things, how it operates, the

legal basis, and the information that will be requested from users. Even if the legal basis is consent, the security of users' data must be ensured.

Regarding the cyberattack on the Open University, my Office has received the final Notification. Subsequently, some clarifications were requested, which we have received and are evaluating. As for the cyberattacks on the University of Cyprus and the Land Registry, initial and interim Notifications have been received, which are also being evaluated. Final Notifications are pending. These incidents are still under investigation, and we are in communication with other competent Authorities conducting parallel inquiries.

I reiterate that it is the responsibility of my Office to assess the security measures that were in place before the attacks, the corrective measures implemented afterward, and how each organization dealt with its own incident.

In relation to publications concerning the mobilization of the Association of Fuel Station Owners and the adoption of certain measures to address the issue of refueling vehicles from the occupied areas, I wish to state that if any measure involves the processing of citizens' personal data, that measure must be consulted with my Office. To date, nothing has been presented to me.

Another issue that concerns the public is the digitization of certain services. In this regard, I wish to reiterate that my Office supports technological progress and development. However, the technological solutions implemented must comply with the GDPR. If citizens are forced to provide the email address of another person, e.g., to receive or pay a utility bill, this violates the GDPR.

Furthermore, citizens cannot be required to have an email address to receive a service. Moreover, some citizens do not have the appropriate skills, and some, albeit a small number, do not even have internet access at home. Therefore, in my previous announcements, I mentioned that alternative solutions must also be provided to citizens.

Regarding the issue of photo enforcement and the question of whether a private company is entitled to process citizens' data, the answer based on the GDPR is yes. Every data controller, in this case, the Director of Traffic, within the framework of their legal activities, may delegate the execution of processing operations to a processor, in this case, the contracting company. A necessary condition is the conclusion of a written Processing Assignment Agreement that binds the contracting company to take appropriate security measures to protect citizens' data. Other examples of outsourcing processing to private entities include airport security checks and the issuance of driving licenses.

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8.12. Announcement of the Commissioner for the Protection of Personal Data regarding the Relocation of the Office of the Commissioner for the Protection of Personal Data / Office of the Information Commissioner, dated June 29, 2023

The Office of the Commissioner for the Protection of Personal Data / Office of the Information Commissioner will be relocated from Monday, July 3, 2023, to the address Kypranoros 15, 1061 Nicosia. The telephone numbers, fax numbers, and email addresses remain unchanged:

1. Office of the Commissioner for the Protection of Personal Data

Telephone: +35722818456

Fax: +35722304565

E-mail: commissioner@dataprotection.gov.cy

2. Office of the Information Commissioner

Telephone: +35722309000

Fax: +35722309001

E-mail: commissioner@informationcommissioner.gov.cy

8.13. Announcement of the Commissioner for the Protection of Personal Data regarding the EU-U.S. Data Protection Framework, dated July 11, 2023

The European Commission adopted yesterday, July 10, 2023, the executive Decision for the "EU-U.S. Data Protection Framework." Under the new data protection framework, data transfers to the U.S. can

be carried out from Union countries to companies in the U.S. without the need for any other transfer tool, relevant guarantees, or supplementary measures. However, U.S. companies will be able to join this framework after committing to comply with a detailed set of obligations for privacy protection. The new framework is the third adequacy Decision of the European Commission for data transfers to the U.S. Since July 26, 2000, data transfers to the U.S. were covered by the European Commission's Safe Harbor Decision, which was invalidated by the Court of Justice of the European Union (CJEU) on October 6, 2015, following a complaint by Max Schrems. Subsequently, from July 12, 2016, the European Commission's Privacy Shield Decision came into effect, which was also invalidated on July 16, 2020, by the CJEU, following another complaint filed by Max Schrems. Yesterday's Decision was adopted after extensive consultations between the Commission and the U.S., and following a relevant Opinion from the European Data Protection Board. According to the Commission's Announcement, safeguards are provided to limit U.S. intelligence authorities' access to the data of European citizens to what is necessary and proportionate for national security protection. Additionally, enhanced oversight of U.S. intelligence activities is provided. Finally, the establishment of a Data Protection Review Court is deemed important, which will investigate and resolve complaints from Union citizens regarding U.S. national security authorities' access to their data.

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The new framework will be subject to periodic reviews by the European Commission in cooperation with representatives of the Union's Data Protection Authorities. Specifically, the first review will be conducted within a year from the entry into force of the adequacy Decision.

Executive Decision of the European Commission

https://commission.europa.eu/document/fa09cbad-dd7d-4684-ae60-be03fcb0fddf_el

Announcement of the European Commission

https://ec.europa.eu/commission/presscorner/detail/el/ip_23_3721

8.14. Announcement of the Commissioner for the Protection of Personal Data (CPDP) and the Commissioner for Communications (CC), regarding the signing of a Memorandum of Cooperation on matters related to their joint or separate responsibilities, dated July 26, 2023

On Tuesday, July 25, 2023, at 9:00 a.m., the new Memorandum of Cooperation was signed between the Commissioner for the Protection of Personal Data, Ms. Irini Loizidou Nicolaidou (CPDP), and the Commissioner for Communications, Mr. Georgios Michaelides (CC), on matters related to their joint or separate responsibilities, in accordance with existing and new legislation. The new Memorandum repeals and replaces the previous Memorandum, which was signed on May 19, 2017.

The purpose of the new Memorandum is to establish a framework of procedures and to adopt and implement appropriate mechanisms for the more efficient and effective cooperation of the two Commissioners, when receiving and/or processing:

- (a) Notifications of personal data breach incidents from providers of publicly available Electronic Communications Services, and
- (b) Incidents from operators of essential services, critical infrastructure entities, and providers of digital services leading to personal data breaches.

The signing ceremony of the Memorandum took place at the offices of the Commissioner for Communications.

8.15. Announcement of the Commissioner for the Protection of Personal Data regarding the final Decisions of the Presidential Elections 2023, dated August 1, 2023

Following my two previous Announcements on the above matter, I inform you that the investigation of the complaints submitted to my Office during the Presidential Elections 2023, which concerned telephone calls and/or unsolicited promotional SMS messages, has been completed.

I remind you that 25 complaints were submitted to my Office during the first round of elections and 52 complaints during the second round of elections.

From the aforementioned 77 complaints:

- 44 were subject to an administrative fine, totaling €41,000.

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- An administrative sanction of Warning was imposed in 6 cases.
- In 1 case, a Recommendation was made.
- 18 complaints were deemed unfounded and/or did not submit necessary documents for examination, and/or were withdrawn by the complainants.
- 4 complaints were sent for further investigation to the Police and
- 4 complaints concerned surveys/polls.

For the 44 complaints, fines were imposed as follows:

- For 37 complaints regarding calls and/or SMS messages from Mr. Nikos Christodoulides €36,000.
- For 4 complaints regarding SMS messages from Ms. Antigoni Papadopoulou €3,000.
- For 3 complaints regarding SMS messages from Ms. Tasoula Chokkou €2,000.

Finally, 48 out of the 77 complaints were also forwarded to the Elections Service.

8.16. Announcement of the Commissioner for the Protection of Personal Data regarding the Painting Competition "Protection of Personal Data in the School Unit," dated October 13, 2023

The Office of the Commissioner for the Protection of Personal Data is organizing a Painting Competition in collaboration with the Ministry of Education, Sports, and Youth, for students of the middle and high school cycle of Public and Private Secondary General and Technical and Vocational Education and Training, on the theme "Protection of Personal Data in the School Unit."

The selected works may be used as a cover for the Annual Report of the Commissioner's Office, as well as for informational promotional activities of the Commissioner's Office, including celebratory actions for the "European Day for the Protection of Personal Data." Prizes will be awarded for three winning works for each cycle separately (middle and high school cycle respectively – a total of six (6) works), with a prize value of €150 for the first winner, €100 for the second winner, and €50 for the third winner per cycle.

The evaluation of the students' works will be conducted by a Jury Committee consisting of members from the Office of the Commissioner and the Ministry of Education, Sports, and Youth.

The declaration of participation must be made through the student's school by December 15, 2023. Students who wish to participate in the Competition can obtain more information, as well as the terms of the Competition, from their school or from the following link: [Painting Competition - Protection of Personal Data in the School Unit.pdf](#)

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8.17. Announcement of the Commissioner for the Protection of Personal Data regarding the Operation of Closed-Circuit Television (CCTV) in School Units, dated November 10, 2023

Regarding recent publications in the media that refer to the pilot operation of CCTV in three schools in Limassol, I wish to inform any interested party that the process of prior consultation of the submitted Data Protection Impact Assessment by the Ministry of Education, Sports, and Youth with my Office has not yet been completed, and therefore no positive opinion has been issued by my Office for this purpose.

Significant issues, such as the status of the data controller and access to image data, require clarifications and must be resolved by the competent Ministry.

Therefore, before the finalization of the above, any potential operation of CCTV, even in a pilot application, is not recommended and does not comply with the principle of legality under the GDPR framework.

8.18. Announcement of the Commissioner for the Protection of Personal Data regarding the Speech of the Vice-President of the European Data Protection Board - Commissioner for the Protection of Personal Data at the 7th Annual Privacy Symposium in Brussels, dated November 17, 2023

On November 14, 2023, the Vice-President of the European Data Protection Board (EDPB) - Commissioner for the Protection of Personal Data, Ms. Irini Loizidou Nicolaidou, represented the EDPB at the 7th Annual Privacy Symposium in Brussels, organized by the Brussels Privacy Hub of Vrije Universiteit Brussel and the non-profit organization Future of Privacy Forum, in Brussels. This year's title of the Symposium was "Understanding the European Architecture of Data Strategy." As part of the Symposium, the Vice-President delivered a speech titled "The Role of the EDPB in

Relation to the Digital Markets Act and the Digital Services Act." In her speech, the Vice-President elaborated on the actions of the EDPB aimed at aligning the implementation of these Acts with the General Data Protection Regulation (GDPR), and expressed the EDPB's willingness to assist in the implementation of the new digital regulatory framework of the Union.

8.19. Announcement of the Commissioner for the Protection of Personal Data regarding cyberattacks, dated November 27, 2023

In relation to the cyberattack on the Open University, on November 22, 2023, I issued the Final Decision imposing an Administrative Fine of forty-five thousand (€45,000) euros on the Open University.

Regarding the Cyberattack on the Land Registry, I have received the final positions of the Land Registry on the prima facie Decision, while the incident at the University of Cyprus is still under investigation in collaboration with other Authorities/services.

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Decision: Violation of Personal Data at the Open University of Cyprus Network

On March 30, 2023, a Notification of Personal Data Breach was submitted to my Office on behalf of the Open University of Cyprus (hereinafter referred to as the "University"). A group of "hackers" (hereinafter referred to as the "intruder") declared via the social networking platform Twitter that they were responsible for the attack and a deadline was given to the University for the payment of ransom for the return/non-disclosure of the files that had been leaked from the attack. When the deadline for the payment of the ransom had passed, the stolen data was published by the intruder and made available on the dark web.

After a full investigation of the incident, it was found that the leaked data concerns students, graduates, and other subjects (contracting parties of the University) that were temporarily stored on an affected server and were used for processing tasks by the employees.

Eleven complaints have been submitted to my Office from data subjects alleging that their personal data has been leaked due to the incident under examination, which were taken into account during the investigation of the incident.

The University also sent me a list of actions it will take to enhance the security of its systems. These actions will be implemented gradually based on a program that has been developed, starting from now, with a completion date set for 2026, depending on the criticality, cost, and prerequisites for their implementation.

After a legal and technical examination of all the above, it was found that there was a violation of the General Data Protection Regulation (EU) 2016/679 due to the failure to implement appropriate security measures and a breach of the principle of "accountability."

Taking into account all the facts of the case, the technical and organizational measures taken by the University prior to the attack, and the mitigating factors mentioned by the University, as well as the fact that the University is part of the broader public sector, an Administrative Fine of forty-five thousand (€45,000) euros was imposed on the University.

An Order was also given to the University, within six months:

(a) to appoint a security officer, even temporarily/deputy, who will oversee the implementation of the measures that the University intends to take,

(b) to inform me about the progress of the implementation of the measures of which it informed me that it intends to take.

8.20. Announcement of the Commissioner for the Protection of Personal Data, for the Painting Competition "Protection of Personal Data in the School Unit," dated December 29, 2023

The Office of the Commissioner for the Protection of Personal Data announces that the participation statement for the Painting Competition themed "Protection of Personal Data in the School Unit" is extended until January 15, 2024.

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Students who wish to participate in the Competition can obtain more information, as well as the terms of the Competition, from their school or from the Office's website.

9. CONSULTATIONS

9.1. Government Information Warehouse (GIW)

The Government Information Warehouse (GIW) of the Department of Information Services is a tool that provides a secure environment for the exchange of information between public Authorities. It operates based on a License I issued in 2016 and remains in effect.

In 2023, my Office handled 26 requests for information exchange, the majority of which were approved under conditions and requirements.

9.2. Combination of Public Authority Systems

In 2023, 18 impact assessments were submitted to my Office for consultation based on Article 10 of Law 125(I)/2018, for the creation of new or renewal of existing combinations of information systems of Public Authorities. These combinations allow for the exchange of information, based on terms and conditions I have set, between the following Public Authorities:

1. Welfare Benefits Management Service (WBMS)

Cyprus Electricity Authority (CEA)

2. Cyprus Agricultural Payments Organization (CAPO)

Department of Agriculture

3. Cyprus Agricultural Payments Organization (CAPO)

Social Insurance Services (SIS)

4. Department of Social Integration of Persons with Disabilities (DSIPD)

Social Insurance Services (SIS)

5. Cyprus University of Technology (CUT)

Cyprus Agricultural Payments Organization (CAPO)

6. Cyprus Electricity Authority (CEA)

Cyprus Multiple Sclerosis Association (CMSA)

7. General Staff of the National Guard (GSNG)

Cyprus Police

8. Ministry of Energy, Commerce and Industry

1. Cyprus Electricity Authority (CEA)

2. Ministry of Health

9. Ministry of Finance - Grants and Benefits Service

Cyprus Agricultural Payments Organization (CAPO)

10. Cyprus University of Technology (CUT)

Welfare Benefits Management Service (WBMS)

11. Department of Taxation

Cyprus Agricultural Payments Organization (CAPO)

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12.

Ministry of Social Welfare -

Benefits Management Service (BMS)

Department of Social Integration of Persons with Disabilities (DSIPD)

13.

Ministry of Finance - Grants and Benefits Service

Department of Social Insurance (DSI)

14.

Cyprus Agricultural Payments Organization (CAPO)

Ministry of Interior (MOI)

15.

Department of Fisheries and Marine Research

Social Insurance Services (SIS)

16.

Cyprus Agricultural Payments Organization (CAPO)
Social Insurance Services (SIS)

17.

Sewerage Council of Limassol-Amathus (SCLA)
Water Supply Council of Limassol (WSCL)

18.

Registrar of Companies and Intellectual Property
Department of Population and Migration Records

9.3. Previous Consultation under Article 36(1) of the Regulation

In 2023, 36 impact assessments were submitted to my Office for prior consultation, pursuant to Article 36 of the Regulation.

1.

State Health Services Organization (SHSO)
Transition to Microsoft 365 service

2.

Ministry of Interior / Asylum Service
Installation of Entry-Exit System with fingerprint at the Reception Center for Asylum Seekers (RCA)
"LAKES", in the community of Mennogeia, Larnaca

3.

Ministry of Education, Sports and Youth
Student Registration Confirmation Service for Primary, Secondary, and Technical Education - for the school year 2023-2024

4.

Secretariat of the Council of Ministers
Information System for the Creation of "Electronic Submission of Declaration / Management of Assets of Publicly Exposed Persons"

5.

General Accounting Office
Housing Plan

6.

Municipality of Agios Athanasios
Building Facilities

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7.

Forensic Service
Installation of Closed-Circuit Television

8.

Insavior
Insavior App

9.

Ministry of Health
New implementation process for the population program for breast cancer detection

10.

Expertum LTD
Identification and Mitigation of Data Protection Risks

11.

Ministry of Health
Capacity Planning in the Health Sector (Capacity Planning II)

12.

Department of Information Services

gov.cy - Holistic Change Project of the Republic of Cyprus' online presence

13.

National Authority for Electronic Health

Operation of the National Contact Point (NCP) for Electronic Health

14.

Ministry of Health

Management and Maintenance of the Digital Public Health Surveillance Platform Cyprus Innovative Public Health ICT System (CIPHIS)

15.

Cyprus Sports Organization

New Fan Card System

16.

Cyprus Police

Implementation of the Law on the Protection of Persons Reporting Violations of Union and National Law, Law 6(I)/2022 - Impact Assessment "Whistleblowers"

17.

Ministry of Agriculture, Rural Development and Environment / Department of Forests

Issuance and management of Licenses for the Use of State Forest Land using the Software Package "Edams-Licenses & Permits"

18.

Ministry of Health

Creation and Operation of population programs of the Population Screening Programs Unit

19.

Ministry of Education, Sports and Youth

Collection of data on children with serious health problems

20.

ABLEBOOK LTD

Creation of an electronic application that will provide information about services and locations that are easily accessible to persons with disabilities and other vulnerable groups

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21.

Ministry of Health

Population screening programs unit for the population program for colorectal cancer detection

22.

Ministry of Energy, Commerce and Industry

Operation of Closed-Circuit Television in the central building

23.

Ministry of Energy, Commerce and Industry

Operation of Closed-Circuit Television in the building of the Energy and Hydrocarbons Service

24.

Money & Me

Creation of a new system for insurance services

25.

Game and Wildlife Service

Application "Artemis Cy"

26.

Ministry of Energy, Commerce and Industry (Company Facilitation Unit)

Electronic application for the inclusion of an entity in the Register of Companies with Foreign Interests and/or other facilitation

27.

State Health Services Organization (SHSO)

Patient feedback system

28.

Ministry of Health

Population screening programs unit for the population program for prostate cancer detection

29.

Department of Road Transport

Submission of application for conversion of foreign driving license to Cypriot driving license

30.

Deputy Ministry of Research, Innovation and Digital Policy

Application "Voice of the Citizen"

31.

Department of Fisheries and Marine Research

Unified information system for further improvement of productivity and efficiency in fishing activity matters

32.

Judicial Service

Implementation of the Electronic Administration System "eJustice"

33.

Statistical Service

Household Budget Survey

34.

Ministry of Energy, Commerce and Industry

Operation of the digital platform "e-kalathi"

35.

Ministry of Energy, Commerce and Industry

Creation of the platform "DOSS"

36.

Ministry of Finance and Deputy Ministry of Research, Innovation and Digital Policy

Participation in the National Solidarity Fund Scheme

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9.4. Prior Consultation pursuant to Article 36(4) of the Regulation

In 2023, my Office actively participated in and/or monitored the progress of a total of 62 Consultations on Draft Laws/Proposals for Laws, which were discussed before the Parliamentary Committees. The aforementioned Draft Laws/Proposals for Laws are as follows:

- National Consultation on the Media Freedom Act
- Directive DAC 8
- Regulations of 2023 on the Transparency of the Public Decision-Making Process and Related Matters
- Law of 2023 on the Establishment of Special Measures for the Reduction of Atmospheric Pollutants and Greenhouse Gases Emitted by Road Transport
- Law of 2023 on Credit Managers and Credit Buyers and Related Matters
- Proposal for: a) a directive of the European Parliament and of the Council amending Directive (EU) 2015/413 facilitating cross-border exchange of information on road-safety-related traffic offences and for b) a directive of the European Parliament and of the Council on execution of driving disqualifications with a Union-wide effect
- Law of 2023 on the Population Registry (Amending)
- Law of 2023 on the European Investigation Order in Criminal Matters (Amending) (No. 2)
- Legislative package of the European Commission for the safeguarding of European Democracy - Defence of Democracy Package
- Law on the Protection and Management of Wild Birds and Game
- Agenda of the C.E. Monitoring of Development Plans and Control of Public Expenditures
- Need for the installation of Closed-Circuit Television (CCTV) in school units
- Law of 2023 on the Operation and Use in the Republic of the Second Generation Schengen

Information System (SIS II)

- Amendment of the Law of 2023 on Joint Investigation Teams
 - Law of 2023 on the Certification of the Authenticity of Signatures, replacing the Law on 'Certifying Officials'
 - Implementing Agreement with the Government of the United States of America and the Republic of Cyprus under the Agreement between the Government of the United States of America and the Government of the Republic of Cyprus on Enhancing Cooperation in Preventing and Combating Serious Crime
 - Law of 2023 on the Police (Amending)
 - The Police (General) (Amending) Regulations of 2022
 - Law of 2023 on Lawyers (Amending)
 - Regulations of 2020 on the General Health System (Other Health Professionals) and (Nurses and Midwives), KDP 366/2020 and KDP 365/2020
 - Law of 2022 on the Protection of Consumers (Amending) (No. 3) (Related to D/N 39/2020, D/N 12/2021, and D/N 23/2022)
 - Law of 2022 on the Comparability of Fees, Changing Payment Account, and Access to Payment Accounts (Amending)
 - Law of 2022 on the Protection of Persons Reporting Violations of Union and National Law, Law No. 6(I)/2022
 - Law of 2019 on Electronic Health
 - Regulations of 2022 on the Operation of Public Primary Education Schools
 - Law of 2023 on Immovable Property (Possession, Registration, and Valuation) (Amending)
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- The Law on the Operation and Use in the Republic of the Schengen Information System (SIS) in the field of Police Cooperation in criminal matters, in the field of border controls, and for the return of illegally residing third-country nationals, Law of 2022
 - The Regulations on Places of Detention for Children of 2023
 - The Law on Motor Vehicles (Third Party Liability Insurance) from 2000 to 2021
 - The Law on the Regulation of the Framework for Teleworking of 2023
 - The Law on Non-Consensual Use of Personal Images of Erotic and/or Sexual Content of 2022
 - The Law on Advisors or Other Collaborators of Designated Officials of the Republic (Criteria for Selection for the Provision of Services) and Related Matters of 2023
 - The Law on Advisors-Collaborators of Government Members of 2023
 - The Law on Traffic Offenses (Use of Photo-Detection Devices and Other Related Matters) Amending Law of 2023
 - EU – Proposal for a Regulation of the European Parliament and of the Council on a Framework for Financial Data Access and Amending Regulations (EU) 1093/2010, (EU) 1094/2010, (EU) 1095/2010 and (EU) 2022/2554
 - The Law on the Security of Networks and Information Systems of 2020 (N.89(I)/2020)
 - The Law on Administrative Cooperation in the Field of Taxation (Amending) of 2023
 - Proposal for a Directive on Work on Digital Platforms
 - The Law on the President, Ministers, and Members of Parliament of the Republic of Cyprus (Declaration and Control of Assets) (Amending) (No.2) of 2021
 - The Law on Insurance and Reinsurance Operations and Other Related Matters
 - The Law on the Implementation of Regulation (EU) 2018/1240 of the European Parliament and of the Council, of 12 September 2018, establishing a European Travel Information and Authorization System (ETIAS), Law of 2022
 - The Law on Waste (Installation of Global Positioning Device in Vehicles Collecting - Transporting Waste on a Professional Basis), Decree of 2023
 - The Law on Companies (Amending) (No.2) of 2023
 - The Law on General and Limited Partnerships and Trade Names (Amending) of 2023
 - The Law on European Economic Interest Groups (EEIG) (Implementing Provisions) Amending Law

of 2023

- The Law on Certain Publicly Exposed Persons and Certain Officials of the Republic of Cyprus (Declaration and Control of Assets) of 2023
- The Law on Municipalities (Amending) (No.3) of 2023
- Proposal for a Directive on Combating Corruption, replacing Framework Decision No. 2003/568/JHA of the Council and the Convention on Combating Bribery of Officials of the European Communities or of the Member States of the European Union and amending Directive (EU) 2017/1371 of the European Parliament and of the Council (document COM9(2023)234)
- The Law on the Establishment of a Health Monitoring Unit
- The Law on Value Added Tax (Amending) (No.4) of 2023
- The Law on the Certification and Collection of Taxes (Amending) of 2023
- The Law on the Management of Commonly Owned Buildings and Related Matters of 2023
- The Law on the Sale of Real Estate (Specific Performance) (Amending) of 2023
- The Law on the Transfer and Mortgaging of Real Estate (Amending) (No.8) of 2023
- The Law on Commonly Owned Buildings and Quasi-Commonly Owned Buildings (Management) of 2019
- The Law on Immovable Property (Possession, Registration, and Valuation) (Amending) (No.2) of 2022
- The Law on the Transfer and Mortgaging of Real Estate (Amending) (No.8) of 2023

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- The Law on Immovable Property (Possession, Registration, and Valuation) (Amending) (No.3) of 2022
- The Law on Mutual Assistance for the Collection of Claims Related to Taxes, Duties, and Other Measures (Amending) of 2023
- The Law on the Protection of Persons Reporting Violations of Union and National Law (Amending) of 2023
- Public Consultation - Regulations for Video Sharing Platforms
- Agreement between the Ministry of Health of the Republic of Cyprus and the Ministry of Health of the Hellenic Republic in the field of cross-organ transplantation of kidneys

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10. INTERNATIONAL ACTIVITIES

10.1. European Data Protection Board

The European Data Protection Board (EDPB) was established pursuant to Article 68 of the Regulation and is an institutional body of the European Union with legal personality and the ability to adopt legally binding decisions. The aim of the EDPB is to ensure the consistent application of the Regulation throughout the European Economic Area, as well as to promote cooperation among the Supervisory Authorities that comprise it.

The EDPB consists of the Head of the Supervisory Authority of each Member State and the European Data Protection Supervisor. It is understood that if there is more than one Data Protection Supervisory Authority in a Member State, a common representative is designated in accordance with the law of that Member State.

In 2023, the EDPB held 15 plenary sessions, of which 5 were in-person sessions in Brussels, 9 sessions were held remotely, and one hybrid session in which EDPB members could participate either in person in Brussels or remotely. It is noted that my Office actively participated in all EDPB sessions.

10.1.1. Leadership of the European Data Protection Board

The President and the two Vice-Presidents of the EDPB are elected by secret ballot of the EDPB members for a five-year term. Due to the expiration of the term of the President and one Vice-President of the EDPB on May 25, 2023, elections were held for the vacant positions.

The EDPB members elected Ms. Anu Talus, the Commissioner of Finland, as President of the EDPB, and elected me as Vice-President of the EDPB.

My election as Vice-President of the EDPB demonstrates that despite its small size, our country can

serve European bodies from elected positions.

No elections were held for the other Vice-President position of the EDPB, which is held by the Commissioner of the Netherlands, Mr. Aleid Wolfsen, as his term expires in 2024.

In 2023, in my capacity as Vice-President of the EDPB, I chaired one plenary session of the EDPB and five sessions of the Strategic Advisory expert subgroup. The Strategic Advisory subgroup meets at a high level, as it is called to discuss and provide guidance on strategically significant issues concerning the EDPB. Additionally, this subgroup resolves questions and determines the course on critical issues that cannot be resolved within the framework of the work of other subgroups and special groups of the EDPB.

Also, as Vice-President of the EDPB, with the assistance of the EDPB Secretariat, I handled 20 requests for access to EDPB documents, pursuant to Regulation (EC) 1049/2001 of the European Parliament and of the Council, of May 30, 2001, regarding public access to documents of the European Parliament, the Council, and the Commission. The purpose of Regulation 1049/2001 is to establish the principles, conditions, and limitations, for reasons of public or private interest, governing the right of access to documents of the European Parliament, the Council, and the Commission. Furthermore, this Regulation establishes rules to ensure the easiest possible exercise of this right of access and promotes good administrative practice regarding access to documents.

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In addition to the above, on November 14, 2023, I represented the EDPB at the 7th Annual Privacy Symposium in Brussels. This Symposium, titled "Understanding the European Architecture of Data Strategy," was organized by the Brussels Privacy Hub of Vrije Universiteit Brussel and the non-profit organization Future of Privacy Forum. At the Symposium, I delivered a speech titled "The Role of the EDPB in Relation to the Digital Markets Act and the Digital Services Act." In this speech, I elaborated on the actions of the EDPB aimed at aligning the implementation of the Digital Markets Act and the Digital Services Act with the Regulation.

10.1.2. EDPB Documents Issued in 2023

The initial and preliminary drafting of the official documents of the EDPB is a task that falls upon the various expert sub-groups and special teams of the EDPB, which consist of members from the Supervisory Authorities of the EU/EEA member states. The issuance of final documents is the responsibility of the EDPB Plenary.

In the course of its work, the EDPB issued 2 guidelines that were put out for public consultation and 9 guidelines in their final form, that is, after a public consultation had taken place. Additionally, it issued 1 recommendation, 3 binding decisions, and 37 opinions under Article 64 of the Regulation.

Furthermore, it issued 3 opinions jointly with the European Data Protection Supervisor and 1 opinion regarding a draft implementing decision of the Commission concerning an adequacy decision. Beyond these, the EDPB drafted several other official documents.

Below are lists of the main documents issued by the EDPB. It is noted that the dates presented in parentheses in the following lists indicate the adoption date of each document.

Guidelines issued by the EDPB in 2023 and put out for public consultation:

- Guidelines 01/2023 on Article 37 Law Enforcement Directive (September 19, 2023)
- Guidelines 02/2023 on Technical Scope of Art. 5(3) of ePrivacy Directive (November 14, 2023)

Guidelines issued by the EDPB in 2023 after public consultation:

- Guidelines 03/2021 on the application of Article 65(1)(a) GDPR (May 24, 2023)
- Guidelines 05/2021 on the Interplay between the application of Article 3 and the provisions on international transfers as per Chapter V of the GDPR (February 14, 2023)
- Guidelines 01/2022 on data subject rights - Right of access (March 28, 2023)
- Guidelines 03/2022 on deceptive design patterns in social media platform interfaces: how to recognize and avoid them (February 14, 2023)
- Guidelines 04/2022 on the calculation of administrative fines under the GDPR (May 24, 2023)
- Guidelines 05/2022 on the use of facial recognition technology in the area of law enforcement (April 26, 2023)

- Guidelines 07/2022 on certification as a tool for transfers (February 14, 2023)

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- Guidelines 08/2022 on identifying a controller or processor's lead supervisory authority (March 28, 2023)
- Guidelines 09/2022 on personal data breach notification under GDPR (March 28, 2023)

Recommendations issued by the EDPB in the year 2023 following public consultation:

- Recommendations 01/2022 on the Application for Approval and on the elements and principles to be found in Controller Binding Corporate Rules (Art. 47 GDPR) (June 20, 2023)

Binding Decisions issued by the EDPB in the year 2023:

- Urgent Binding Decision 01/2023 requested by the Norwegian SA for the ordering of final measures regarding Meta Platforms Ireland Ltd (Art. 66(2) GDPR) (October 27, 2023)
- Binding Decision 1/2023 on the dispute submitted by the Irish SA on data transfers by Meta Platforms Ireland Limited for its Facebook service (Art. 65 GDPR) (April 13, 2023)
- Binding Decision 2/2023 on the dispute submitted by the Irish SA regarding TikTok Technology Limited (Art. 65 GDPR) (August 2, 2023)

Opinions issued by the EDPB in the year 2023 concerning the approval of accreditation requirements for a code of conduct monitoring body:

- Opinion 1/2023 on the draft decision of the competent supervisory authority of Croatia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR (February 3, 2023)
- Opinion 02/2023 on the draft decision of the competent supervisory authority of Latvia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR (February 3, 2023)
- Opinion 03/2023 on the draft decision of the competent supervisory authority of Romania regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR (February 3, 2023)
- Opinion 11/2023 on the draft decision of the competent supervisory authority of Sweden regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR (July 11, 2023)

Opinions issued by the EDPB in the year 2023 concerning draft requirements for the accreditation of a certification body:

- Opinion 4/2023 on the draft decision of the competent supervisory authority of Malta regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR) (February 3, 2023)
- Opinion 12/2023 on the draft decision of the competent supervisory authority of Cyprus regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR) (July 11, 2023)
- Opinion 13/2023 on the draft decision of the competent supervisory authority of Croatia regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR) (July 11, 2023)

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- Opinion 37/2023 on the draft decision of the competent supervisory authority of Luxembourg regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR) (December 21, 2023)
- Opinion 38/2023 on the draft decision of the competent supervisory authority of Slovenia regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR) (December 21, 2023)

Opinions issued by the EDPB in the year 2023 concerning binding corporate rules:

- Opinion 6/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Royal Greenland Group (March 23, 2023)

- Opinion 7/2023 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of Autodesk Group (May 5, 2023)
- Opinion 8/2023 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of Autodesk Group (May 5, 2023)
- Opinion 9/2023 on the draft decision of the Italian Supervisory Authority regarding the Controller Binding Corporate Rules of Vertiv (May 17, 2023)
- Opinion 10/2023 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the PROSEGUR Group (June 30, 2023)
- Opinion 14/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Vestas Wind Systems Group (July 27, 2023)
- Opinion 16/2023 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Informatica Group (September 28, 2023)
- Opinion 17/2023 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the Informatica Group (September 28, 2023)
- Opinion 18/2023 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of the Collibra Group (November 7, 2023)
- Opinion 19/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the American Express Global Business Travel Group (November 16, 2023)
- Opinion 20/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Comcast Corporation Group (November 16, 2023)
- Opinion 21/2023 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of the UPS Group (November 16, 2023)
- Opinion 22/2023 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules for employee data of the UPS Group (November 16, 2023)
- Opinion 23/2023 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules for customer data of the UPS Group (November 16, 2023)
- Opinion 24/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Nestlé Group (November 16, 2023)
- Opinion 25/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the SHV Holding N.V. Group (November 16, 2023)
- Opinion 26/2023 on the draft decision of the Romanian Supervisory Authority regarding the Processor Binding Corporate Rules of the OSF Global Services Group (October 16, 2023)
- Opinion 27/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Tessi Group (November 28, 2023)
- Opinion 28/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Servier Group (November 28, 2023)

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- Opinion 29/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Sodexo Group (November 28, 2023)
- Opinion 30/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Sodexo Group (November 28, 2023)
- Opinion 31/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Thalès Group (November 28, 2023)
- Opinion 32/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Thalès Group (November 28, 2023)
- Opinion 33/2023 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Controller Binding Corporate Rules of the Cerner Group (December 13, 2023)
- Opinion 34/2023 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Processor Binding Corporate Rules of the Cerner Group (December 13, 2023)
- Opinion 35/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Carlsberg Group (December 13, 2023)
- Opinion 36/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller

Binding Corporate Rules of the Booking.com Group (December 28, 2023)

Opinions issued by the EDPB in 2023 regarding certification criteria:

- Opinion 15/2023 on the draft decision of the Dutch Supervisory Authority regarding the Brand Compliance certification criteria (September 19, 2023)

Consultations on adequacy legislation and draft decisions

- EDPB - EDPS Joint Opinion 01/2023 on the Proposal for a Regulation of the European Parliament and of the Council laying down additional procedural rules relating to the enforcement of Regulation (EU) 2016/679 (September 19, 2023)
- Joint EDPB - EDPS contribution to the public consultation on the draft template relating to the description of consumer profiling techniques (Art. 15 DMA) (September 20, 2023)
- EDPB - EDPS Joint Opinion 02/2023 on the Proposal for a Regulation of the European Parliament and of the Council on the establishment of the digital euro (October 17, 2023)
- Opinion 5/2023 on the European Commission Draft Implementing Decision on the adequate protection of personal data under the EU-US Data Privacy Framework (February 28, 2023)

Other documents:

- Data Protection Guide for Small Business
- Coordinated Enforcement Action, use of cloud-based services by the public sector
- Information note on data transfers under the GDPR to the United States after the adoption of the adequacy decision on July 10, 2023
- Statement 1/2023 on the first review of the functioning of the adequacy decision for Japan
- EDPB Document on the procedure for the adoption of the EDPB opinions regarding national criteria for certification and European Data Protection Seals
- EDPB Work Programme 2023-2024
- Report of the work undertaken by the Cookie Banner Taskforce
- Report of the work undertaken by the supervisory authorities within the 101 Task Force
- Template Complaint form and Template Acknowledgement of receipt.

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10.1.3. Participation of my Office in EDPB expert subgroups

The main activities of the EDPB are initially conducted in expert subgroups and special teams of the EDPB, which include officials from the supervisory authorities of the EU/EEA member states.

My Office actively participates in the expert subgroups and special teams of the EDPB, whose task is to discuss current issues related to personal data protection and to draft the documents issued by the EDPB. The various expert subgroups focus on specific areas of data protection and assist the EDPB in fulfilling its duties.

In addition to my participation in the sessions of the EDPB Plenary, officials from my Office participated in the meetings of the expert subgroups and special teams of the EDPB. They also actively contributed to the preparation of the documents issued by the EDPB.

Below is a list of the expert subgroups and their respective responsibilities and assigned topics.

Expert Subgroup

Responsibilities – Topics

Borders, Travel & Law Enforcement (BTLE) Expert Subgroup

- Law Enforcement Directive
- Cross-border requests for e-evidence (including guidance on Art. 48 GDPR in cooperation with the ITS ESG)
- Adequacy decisions under the LED and, with regard to access to transferred data by law enforcement and national intelligence authorities in third countries, under the GDPR
- Passenger Name Records (PNR)
- Border controls

Compliance, e-Government and Health (CEH) Expert Subgroup

- Codes of conduct, certification and accreditation

- DPIA and Data Protection by Design and by Default (in cooperation with the Technology ESG)
- Compliance with public law and eGovernment
- eHealth
- Processing of personal data for scientific research purposes
- Data Governance Act, Data Act

Cooperation (COOP) Expert Subgroup

- General focus on cooperation and consistency mechanism under the GDPR
- Procedural questions concerning Article 56 GDPR and Chapter VII (Section 1 and 2) GDPR
- Cooperation cases where there is no establishment in the EU
- International mutual assistance and other cooperation tools to enforce the GDPR outside the EU (Art. 50 GDPR) (in cooperation with the ITS ESG)

Coordinators (COORD) Expert Subgroup

- General coordination between the Expert Subgroup Coordinators
- Coordination on the EDPB Work Programme
- Ensuring harmonised working methods between subgroups

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Enforcement (ENF)

Expert Subgroup

- Mapping/analysing the need for additional clarifications or guidance, based on practical experiences with the application of Chapters VI, VII and VIII GDPR
- Mapping/analysing possible updates of existing Cooperation subgroup tools
- Monitoring of investigation activities
- Practical questions on investigations
- Guidance on the practical application of Chapter VII GDPR including exchanges on concrete cases
- Guidance on the application of Chapter VIII GDPR (in cooperation with the Fining Taskforce)
- EDPB binding decisions
- Developing and proposing an EDPB enforcement strategy

Financial Matters (FMESG)

Expert Subgroup

- Application of data protection principles in the financial sector e.g. taxation, fight against financial crime, digital currency, payment services, credits, insurances, digital identity, etc.
- On a case-by-case basis, providing inputs to international or European financial institutions, authorities or organisations (e.g. ECB, ESMA, EBA, EIOPA, FATF, etc.)

International Transfers (ITS)

Expert Subgroup

- Chapter V GDPR (International transfer tools and policy issues), more specifically:
 - o European Commission Adequacy decisions
 - o Administrative arrangements between public authorities and bodies
 - o Codes of conduct and certification as transfer tools (in cooperation with the CEH ESG)
 - o BCRs and contractual clauses for transfers of personal data

IT Users

Expert Subgroup

- Developing and testing IT tools used by the EDPB with a practical focus:
 - o Collecting feedback on the IT system from users
 - o Adapting the systems and manuals
 - o Discussing other business needs including tele- and videoconference system

Key Provisions (KEYP)

Expert Subgroup

- Core concepts and principles of the GDPR, including Chapter I (e.g. scope, definitions like LSA and large-scale processing), Chapter II (main principles), Chapter III (e.g. rights of individuals,

transparency), Chapter IV (e.g. DPO – in cooperation with CEH ESG, ENF ESG and TECH ESG) and Chapter IX

Social Media (SOCM)

Expert Subgroup

- Analysing social media services, conceived as online platforms that focus on enabling the development of networks and communities of users, among which information and content is shared and whereby additional functions provided by social media services include targeting, personalisation, application integration, social plug-ins, user authentication, analytics and publishing
- Analysing established and emerging functions offered by social media, including the underlying processing activities and corresponding risks for the rights and freedoms of individuals
- Developing guidance, recommendations and best practices in relation to both the offer and use of social media functions, in particular for economic or political reasons
- Digital Services Act

Strategic Advisory (SAESG)

Expert Subgroup

- Strategic questions affecting the whole EDPB (including the discussion on the work plans of the ESGs)
- Clarification of questions that could not be resolved in the ESGs
- Work on contributions to the evaluation of the GDPR

Technology (TECH)

Expert Subgroup

- Technology, innovation, information security, confidentiality of communication in general
- ePrivacy, encryption
- data breach notifications
- data protection impact assessments (in cooperation with the CEH ESG where appropriate)
- data protection by design and by default (in cooperation with the CEH ESG where appropriate)
- Emerging technologies, innovation and other challenges related to privacy: reflecting on data protection risks and opportunities of future technological developments
- AI Act

The following table presents the expert subgroups of the EDPB, along with their responsibilities and the topics each expert subgroup deals with.

Expert Subgroup

Responsibilities – Topics

Fining Taskforce

- Development of guidelines on the harmonisation of the calculation of fines
- Following the finalisation of the guidelines on the harmonisation of the calculation of fines, monitoring and further harmonisation of the imposition of administrative fines, e.g. solving remaining issues not addressed in detail in the guidelines

101 Complaints Taskforce

- Look into the 101 identical complaints lodged with EEA DPAs against several controllers regarding their use of Google / Facebook services which involve the transfer of personal data, and prepare a work plan and common approach to deal with the complaints

Cookie Banner Taskforce

- Foster cooperation between authorities for the management of complaints concerning cookie banners lodged in different Member states

Taskforce on the interplay between data protection, competition and consumer protection law

- Clarifying the links and building on synergies between the regulatory frameworks of data protection, competition, and consumer protection law, including also the Digital Markets Act, in order to provide expertise and resources to support dialogue

(C&C; taskforce)

between SAs and other regulatory bodies and prepare common positions

Taskforce on international engagement

-

Strengthen exchanges between EDPB members as regards the participation in multilateral fora in the field of data protection and privacy (for instance, Council of Europe, Global Privacy Assembly, G7 Data Protection Authorities Roundtable, OECD, Spring Conference)

Taskforce on ChatGPT

-

Foster cooperation and exchange information on possible enforcement actions conducted by data protection authorities on ChatGPT

10.1.4. Coordinated action of the EDPB regarding the use of cloud computing services in the public sector

In 2022, my Office participated in the first coordinated action of the EDPB, which concerned the use of cloud computing services in the public sector. The coordinated action aimed at:

-

promoting compliance with the Regulation, of cloud-based products and services, both by the bodies and institutions of the EU, as well as by the public sector of each Member State,

-

creating a deeper understanding and enabling targeted monitoring at the EU level,

-

promoting pioneering practices through coordinated guidance and action, thus ensuring adequate protection of personal data.

As part of the action, my Office sent the relevant questionnaire, which was prepared by the EDPB, to the Ministry of Research, Innovation and Digital Policy. It is noted that the Ministry is, among other things, responsible for electronic governance in the public service. The responses received, after being initially evaluated by my Office, were subsequently sent to the EDPB, in order to extract aggregated results.

In January 2023, the EDPB published on its website the Report for this action, which includes aggregated findings based on the responses received from the Supervisory Authorities participating in the action.

Specifically, the Report analyzes the following challenges:

-

lack of conducting Data Protection Impact Assessments (DPIAs) for the relevant processing,

-

roles and responsibilities that are not properly defined, resulting in difficulties in complying with the respective obligations of the Regulation, both for the provider and for the public authorities,

-

difficulty for public authorities to determine the purposes and means of processing personal data during the contract and to fulfill the obligations under the Regulation, due to the existing power imbalance,

-

most public authorities appear to have limited control and cannot effectively oppose the use of subprocessors or changes to subprocessors, without risking a potentially critical loss of service,

- when the information available to public authorities, in their capacity as data controllers, and to the Supervisory Authority is not sufficiently clear, it may be difficult to accurately assess which categories of data are shared, in which locations they are shared, and for what purposes,
- risk of access by governments of third countries when using providers that are located outside the Union and store data in the EEA,
- lack of knowledge regarding the processing of diagnostic/telemetry data by providers, failure to conduct assessments prior to the commencement of use, and lack of clarity and precision in contracts regarding which data may be collected,
- failure to conduct targeted audits, in general, by public authorities concerning the activities of providers.

The Report presents a series of pioneering practices and points of caution for public authorities using cloud services. These elements receive particular attention and are utilized by the Supervisory Authorities when auditing the relevant processing activities conducted within their territory, whether these are audits that were ongoing during the coordinated action or audits that were conducted or will be conducted after the publication of the Report.

10.1.5. Coordinated Action of the EDPB on the Role of Data Protection Officers

In 2023, my Office participated in the coordinated action of the EDPB, which concerned the appointment and role of Data Protection Officers (DPOs). The purpose of this initiative was to collect information on the practices followed in the Member States regarding Data Protection Officers and to assess compliance with the Regulation, both at national and European levels.

Consequently, following the relevant announcement I issued on March 15, 2023 (see subsection 8.5), my Office sent a questionnaire to the Data Protection Officers of public and private organizations. This questionnaire was common and was sent by the counterpart Supervisory Authorities, members of the EDPB, to organizations within their territory.

My Office received a total of 316 responses. Specifically, 43 responses were received from public authorities and 273 responses from private sector organizations. The responses received were initially assessed by my Office and subsequently communicated to the EDPB, so that statistical results and conclusions could be drawn at the European level.

As of the end of 2023, no official results have been announced for this action.

10.1.6. Data Protection Guide for Small and Medium-sized Enterprises

As part of its Strategy and actions for the years 2021 - 2023, and in order to assist small and medium-sized enterprises in complying with the Regulation, the EDPB developed, through a working group that included my Office, a Data Protection Guide aimed at small and medium-sized enterprises. This guide was published in May 2023, in English, at the electronic address

<https://edpb.europa.eu/sme-data-protection-guide/home>.

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From the experience of five years of implementing the Regulation, the Guide includes useful information, videos, interactive tools, as well as realistic examples that can help small and medium-sized enterprises fulfill their obligations and ensure their compliance with the Regulation.

The Guide elaborates in depth on the following sections:

- what the benefits of data protection are for you,
- key elements of data protection,
- lawful processing of personal data,
- data controller or processor,
- respect the rights of individuals,
- comply with the Regulation,
- secure personal data,
- data protection officer,
- data breaches,
- measures that individuals can take against you,
- data transfers.

In addition to the above, the Guide includes a special section with answers to frequently asked questions received by the Supervisory Authorities. Furthermore, through the Guide, informational material created by the Supervisory Authorities of the GDPR is made available.

In 2024, the publication of the Guide in all official languages of the EU is expected. The responsibility for the editing of the translation of the Guide into the Greek language lies jointly and in close cooperation between my Office and the Supervisory Authority of Greece.

10.2. Supervision of national large-scale information systems

Various large-scale information systems operate within the European Union, allowing the competent authorities of the member states to exchange information for the effective execution of their duties and responsibilities. These systems are supervised, at a central level, by the European Data Protection Supervisor and, at a national level, by the Data Protection Supervisory Authorities. For the effective cooperation of the European Supervisor with the national Supervisory Authorities, there are established Coordinated Supervisory Teams (CSTs), in which my Office participates, either as a member or as an observer.

The role of my Office, as the competent Supervisory Authority for the national systems described below, is to ensure that the competent Authorities of the Republic process personal data in accordance with the relevant European and national legislation and that the rights of citizens are exercised in accordance with these legislations. Interested parties can exercise their rights of access, rectification, erasure, and restriction of data concerning them before the relevant competent Authorities of Cyprus. The exercise of these rights may be subject to restrictions provided by the relevant Union or national legislations or that may be permitted by the Commissioner.

EUROPOL

EUROPOL is a system that allows the exchange of information between the Law Enforcement Authorities of the member states, with the aim of their mutual cooperation for the prevention and combating of

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serious forms of crime that affect two or more Member States, terrorism, and forms of crime that harm common interests covered by Union policy. The competent authority in Cyprus is the national EUROPOL unit of the Police. My Office participates as a member in the Cooperation Board of EUROPOL, established under Article 45 of Regulation (EU) 2016/794 of the European Parliament and of the Council, of May 11, 2016, on the European Union Agency for Law Enforcement Cooperation (Europol) and repealing and replacing Council Decisions 2009/371/JHA, 2009/934/JHA, 2009/935/JHA, 2009/936/JHA, and 2009/968/JHA.

EUROJUST

EUROJUST is a system that allows for the exchange of information between judicial and prosecutorial authorities of the Member States, with the aim of enhancing coordination and cooperation among national authorities for the investigation and prosecution of serious crimes that have implications for two or more Member States or require prosecution on common grounds, based on operations conducted and information provided by the authorities of the Member States, EUROPOL, the European Public Prosecutor's Office, and OLAF. The competent authorities in Cyprus are the Legal Service and the relevant Courts. As Commissioner, I am a member of the Joint Supervisory Body (JSB) of EUROJUST. In November 2018, the new Regulation governing the operation of EUROJUST came into force, which was implemented in December 2019.

EURODAC

EURODAC is a system that allows for the exchange of information between the Asylum Services of the Member States, for the purpose of determining the Member State responsible for examining the application for international protection submitted by a third-country national, and for the comparison of fingerprint data of asylum applicants with the data stored in the EU central system, for law enforcement purposes. The competent authorities in Cyprus are the Asylum Service and the Police. My Office is a member of the Coordinated Supervision Group of EURODAC.

SIS II

The second generation Schengen Information System (SIS II) allows for the exchange of information between competent authorities of the Member States for immigration purposes and effective border control, as well as for law enforcement purposes. It contains information on third-country nationals, wanted persons with a European Arrest Warrant, missing persons, persons monitored by the Police or who have been banned from entering the Schengen area, stolen vehicles, and stolen or lost travel documents, such as passports and identity cards. My Office participates in the meetings of the Coordinated Supervision Group of SIS II as an observer.

In 2022, the Law on the Operation and Use of the Second Generation Schengen Information System (SIS II) in the Republic came into force, Law No. 12(I)/2022, on which my Office submitted comments during the formal consultation process.

SIS has been operational in the Republic since July 25, 2023, following a relevant Decision of the Council of the European Union. Based on a supervisory plan that I submitted and was approved by the European

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Before the operation of the SIS commenced, I conducted an audit to ascertain the readiness of the Police to fulfill its obligations regarding this system. The readiness of the Police was positively assessed, and I issued an Audit Report which I sent to the relevant supervisory bodies of the EU. In September 2023, I conducted a second audit to determine how the SIS operates in practice and whether appropriate technical and organizational security measures were taken during the input or output of information to or from the SIS, and whether the procedures stipulated by the Law on the Operation and Use of the Second Generation Schengen Information System (SIS II) in the Republic, Law No. 12(I)/2022, were being followed. The audit was conducted through on-site visits to Larnaca Airport, the Strovolos Police Directorate, and the Agios Domettios checkpoint, where a demonstration of the system's operation took place, and various questions were posed and answered. The operation of the SIS was positively evaluated, and this was reflected in the second Audit Report that I issued and sent to the Police. This information regarding the audits of the SIS is also included in subsection 7.2.

VIS

The European Visa Information System (VIS) allows for the exchange of information between the competent authorities of the member states for the purpose of issuing visas to third-country nationals. However, Cyprus's national VIS is used only for managing visa applications submitted to the Embassies and Consulates of the Republic and, exceptionally, at the points of entry. The competent authority for the VIS is the Ministry of Foreign Affairs. The national VIS is not connected to the central VIS, and the Ministry of Foreign Affairs does not have the capability to exchange information with the corresponding authorities of other member states. My Office participates in the meetings of the VIS Coordinated Supervision Group as an observer.

CIS

The Customs Information System (CIS) allows for the exchange of information between the Customs Authorities of the member states for the purposes of preventing, verifying, and prosecuting criminal offenses related to Community Law on customs and agriculture, as well as for mutual assistance and cooperation among these authorities to ensure the proper application of customs and agricultural regulations. In Cyprus, the competent authority for the CIS is the Customs Department.

IMI

The Internal Market Information System (IMI) enables competent authorities of a member state implementing Community legislation on Internal Market issues to identify the corresponding competent authorities of other member states and exchange information through standardized queries within their competencies for the effective implementation of Community legislation. The IMI serves a number of Community Acts, such as the Directive on the Recognition of Professional Qualifications, the Services Directive, the Directive on the Posting of Workers, the Regulation on Cross-Border Transport of Cash, the Directive on Patients' Rights, cross-border complaint resolution through the "SOLVIT" network, and the Directive on Electronic Commerce.

In Cyprus, the national coordinator for the IMI is the Ministry of Energy, Commerce, and Industry. I hold, as Commissioner, the status of a member of the IMI Coordinated Supervision Group.

11. VARIOUS ACTIVITIES OF THE OFFICE

11.1. Presentations, greetings, speeches, lectures by the Commissioner in the year 2023

In 2023, there was increased participation in events aimed at informing/raising awareness among the public as well as organized entities in the private and public sectors regarding the provisions of the Regulation.

No.

Event

1. Meetings/discussions of the Commissioner with students from public and private universities, aimed at informing and raising awareness among citizens on privacy issues, as part of the actions for European Data Protection Day on 28/1/2023. This action began on 23/1/2023 and lasted for more than a month.
2. Presentation by the Commissioner to the Federation of Parent Associations of Primary Schools in Nicosia, as part of the actions for European Data Protection Day on 28/1/2023, on the topic: "Legal Framework for the Protection of Personal Data," on 25/1/2023.
3. Presentation by the Commissioner at UCLAN University as part of the actions for European Data Protection Day on 28/1/2023, on the topic: "Introduction to Data Protection Legislation," on 1/2/2023.
4. Presentation by the Commissioner on the topic: "The Rights of Mentally Ill Persons within the Legal Framework for the Protection of Personal Data," on 18/3/2023.
5. Speech by the Commissioner at the REDA (Regulation and Enforcement in the Digital Age) Conference, in Nicosia, on 5/5/2023.
6. Participation of the Commissioner in the 31st Spring Session of the European Data Protection Authorities (Conference of European Data Protection Authorities - Spring Conference), organized by the Hungarian Data Protection Authority, on 10-12/5/2023.
7. Presentation by the Commissioner to Real Estate Appraisers, on the topic: "Protection of Personal Data and Real Estate Appraisers," on 19/5/2023.
8. Speech by the Commissioner at the conference "Women in Cybersecurity: Challenges, Experiences, and Plans for the Future," organized by the Commissioner of Communications, on 1/6/2023.
9. Presentation by the Commissioner to the House of Representatives, for the Program: Internship at the House of Representatives, on the topic: "Introduction to the Legal Framework for the Protection of Personal Data," on 17/7/2023.
10. Presentation by the Commissioner to the Department of Public Administration and Personnel, on the topic: "Legal Framework for the Protection of Personal Data," on 29/9/2023.
11. Presentation by the Commissioner at the Ministry of Foreign Affairs, for the Training Program for Diplomatic Attachés, on the topic: "Protection of Personal Data," on 19/10/2023.

12.

Commissioner's presentation at the information event of the Association of Journalists and the Committee on Journalistic Ethics at the Journalistic Foundation, on the topic "Journalistic Management of Personal Data," on 24/10/2023.

13.

Commissioner's speech, as Vice President of the European Data Protection Board, at the 7th Annual Privacy Symposium in Brussels, on the topic: "The role of the EDPB in relation to the Digital Markets Act and the Digital Services Act," on 14/11/2023.

14.

Commissioner's presentation at the Human Resource Development Authority, on the topic: "Legal Framework for the Protection of Personal Data" on 5/12/2023.

12. STATISTICAL DATA

12.1. Complaints

12.1.1. Unsolicited advertising messages (spam)

For the sending of advertising messages aimed at direct commercial promotion via electronic means, including email, SMS, and fax, the provisions of Article 106 of the Law on the Regulation of Electronic Communications and Postal Services of 2004 (Law 112(I)/2004), as amended, apply, according to which prior consent from the recipients of the messages is required. The Law allows the sending of messages to customers provided that they are given the opportunity to object to receiving the messages easily and at no cost.

There is a specific complaint submission form Type C (for unsolicited advertising messages (Spam)) posted on my Office's website, which can also be obtained from the stores of CYTA, EPIC (formerly MTN), and the Citizen Service Centers, and which the public can fill out and send for the investigation of their complaint.

For advertising/promotional calls made in person (with human intervention), the provisions of the Regulation apply.

Advertising messages also include messages of a political nature (campaign promotion).

The type of messages for which my Office received the most complaints regarding unsolicited advertising messages (Spam) are messages to mobile phones (SMS), which advertised various stores/restaurants.

In 2023, 140 complaints regarding unsolicited advertising messages were submitted.

The following Graph shows the comparative number of complaints over the last 4 years concerning complaints about the sending of unsolicited advertising messages:

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The following tables present the categories of complaints and the results of the investigation:

12.1.2. Number of complaints by category submitted

Category of Data Controller	Number	Percentage (%)
Processing Principles (lawfulness, data minimization, ...)	20	4.46
Exercise of Rights (Articles 12, 15, 16, 17, 18, 20, 21)	73	16.29
Infrastructure Security / Security Measures	15	3.35
Data Subject Notification	2	0.45
Key Concepts	2	0.45
Lawful Processing	196	43.75
Promotional Messages / Direct commercial promotion:	140	31.25

Advertising messages (SMS, email, fax)

57

12.72

Promotional Political Messages

78

17.41

Promotion of products/services (via mail or call)

3

0.67

Messages from Subscription Services

2

0.45

Total

448

100

153

12.1.3. Category of the complaint

Category of Data Controller

Number

Percentage (%)

Public Administration / Local Government / Legal Entities of Public Law / Independent Authorities

23

5.14

Health / Research / Pharmaceutical Companies

17

3.79

Media (print and electronic)

9

2.01

Education / Research

7

1.56

Social Media

7

1.56

Licensed Credit Institutions (LCIs)

7

1.56

Electronic Communications Providers

5

1.12

Law Enforcement Authorities / Police

5

1.12

Private Sector

4

0.89

Insurance Companies

3

0.67

Other category of Data Controller

361

80.58

Total

448

100

154

12.2. Decisions

In 2023, I issued 63 Decisions following the examination of complaints, conducting inspections, and ex officio investigations, as follows:

No.

Subject

Outcome

1.

Complaint regarding the receipt of unsolicited advertising message from SGM Professional Secretariat Services Ltd

Warning

2.

Complaint regarding the receipt of unsolicited advertising message from an individual

Warning

3.

Complaint against the newspaper "Politis" for publishing names and photographs of police investigators on duty at Larnaca Airport

€7,000

4.

Complaint regarding the operation of Closed Circuit Television (CCTV) at A&A; Hotels Shops

Compliance Order

5.

Complaint regarding the receipt of promotional message from the office of the Metropolitan of Paphos

Warning

6.

Complaint regarding the receipt of unsolicited advertising message from Cyause Audit Services Ltd

Warning

7.

Complaint regarding the receipt of unsolicited calls from Epic Ltd

€3,250

8.

Complaint against the director of a Legal Entity of Public Law

No violation found

9.

Complaint regarding the receipt of unsolicited advertising message from D&E; Natiotis Ltd

Warning

10.

Complaint regarding the receipt of unsolicited advertising email from Aupenac Wine Cellar

Warning

11.

Complaint regarding the receipt of unsolicited advertising message from a doctor

Warning and Compliance Order

12.

Complaint regarding the non-satisfaction of the right of access by the Consumer Protection Service
Compliance Order

13.

Complaint regarding the receipt of unsolicited advertising message from the pharmacy of Kleio
Chatzigianni

Warning

14.

Complaint regarding the operation of Closed Circuit Television (CCTV) at the Council of Registration of
Hairdressers and Barbers of Cyprus

Compliance Order

155

15.

Complaint regarding the disclosure of personal data online by an individual

Warning

16.

Complaint regarding the receipt of unsolicited advertising messages from A&K; Cash & Carry
Supermarket Limited

Warning

17.

Complaint regarding the violation of personal data by the Paphos School Board

Warning

18.

Complaint regarding the sharing of personal data (email addresses) by Bazaraki BZRK Ltd

Warning

19.

Complaint regarding the sharing of personal data (email addresses) by Limassol Agora

Warning

20.

Complaint regarding the publication of personal data online by an individual

Warning

21.

Complaint regarding the receipt of unsolicited advertising messages from VK Global Business
Solutions & Consulting Ltd

Warning

22.

Complaint regarding the audiovisual recording of seminar excerpts by a participant

Reprimand

23.

Complaint regarding the lack of information regarding the processing of personal data by Drivers Rent
a Car Ltd

Reprimand

24.

Complaint regarding the failure to satisfy the right of access by FXBFI Broker Financial Invest Ltd

Reprimand

25.

Complaint regarding the receipt of telemarketing calls

Satisfaction of request

26.

Complaint regarding the publication and processing of personal data by Breikot Management Ltd

€3,000

27.

Complaint regarding the receipt of unsolicited advertising messages from CPbros Ltd

Warning

28.

Complaint regarding the receipt of unsolicited advertising emails from Mediacube Worldwide Ltd

€3,500

29.

Complaint regarding the receipt of unsolicited advertising messages from an individual

Warning

30.

Complaint regarding the receipt of unsolicited promotional calls from the Progressive Student Movement

Warning

31.

Complaint regarding the receipt of unsolicited promotional messages from the political office of Achilleas Dimitriadis

Warning

32.

Complaint regarding the receipt of unsolicited promotional calls from EDON

Warning

156

33.

Complaint regarding the failure to satisfy the right of access by the International School of Paphos

Warning

34.

Complaint regarding the receipt of unsolicited advertising messages from University of Cyprus Press

Warning

35.

Complaint regarding the receipt of unsolicited advertising messages from Domino's Pizza

Warning

36.

Complaint regarding the receipt of unsolicited advertising messages from A.J. Mercury Solutions Ltd

Reprimand

37.

Complaint regarding the receipt of unsolicited promotional calls from the election campaign of Mr.

Andreas Mavrogiannis

Warning

38.

Complaint regarding the failure to satisfy the right of access by KPAX Marketing Online Ltd

Reprimand

39.

Complaint regarding the receipt of unsolicited advertising messages from Direct Way Promo Limited

Warning and Compliance Order

40.

Complaint regarding the receipt of unsolicited advertising messages from A&G; Kleima Ltd

Warning

41.

Complaint regarding the receipt of unsolicited advertising messages from Vassos Eliades Ltd

Warning

42.

Complaint regarding the receipt of unsolicited promotional calls and messages from Ms. Tasoula Tsokkou

€2,000

43.

Complaint regarding the receipt of unsolicited promotional calls and messages from presidential candidate Mr. Nikos Christodoulides

€36,000

44.

Complaint regarding the receipt of unsolicited promotional calls and messages from Ms. Antigoni Papadopoulou

€3,000

45.

Complaint regarding the receipt of unsolicited advertising messages from MA and L Constantinou Trading

Warning

46.

Ex officio investigation regarding the disclosure of personal data by the Ministry of Interior

€8,000

47.

Complaint regarding the receipt of unsolicited advertising messages from Elvetico Diagnostic Centre
Warning and Compliance Order

48.

Complaint regarding the receipt of unsolicited advertising messages from Florante Boutique
Warning

49.

Complaint regarding the failure to satisfy the right of access by the International School of Paphos
Reprimand

50.

Complaint regarding the failure to satisfy the right of deletion by Freedom Finance Europe Ltd
Reprimand

157

51.

Complaint regarding the disclosure of personal data to a third party by Gordian Servicing Limited
Reprimand

52.

Complaint regarding the receipt of unsolicited advertising messages from an individual
Warning

53.

Complaint regarding the receipt of unsolicited advertising messages from Scenario Creative Services Limited

Warning

54.

Complaint regarding the failure to satisfy the right of access by Technius Ltd
Reprimand

55.

Complaint regarding the receipt of unsolicited promotional calls from EMC Giorgallos Homecare Systems Ltd

Warning

56.

Complaint regarding the receipt of unsolicited advertising messages from ELV Management Ltd
Warning

57.

Complaint regarding the collection of excessive data by the Department of Environment
Order

58.

Complaint regarding access to a beneficiary's file by a doctor

Reprimand

59.

Complaint regarding the processing of personal data using statistical methods by the Examination Service

Reprimand

60.

Complaint regarding access to a beneficiary's file by a doctor

€1,500

61.

Complaint regarding the receipt of unsolicited advertising messages from eSafe Solutions Ltd

Reprimand

62.

Complaint regarding the failure to satisfy the right of access by Themis Portfolio Management Limited

Reprimand and Compliance Order

Total

€67,250

158

I also issued 4 Decisions following the investigation of incidents of Notification of personal data breaches, as follows:

A/N

Subject

Administrative Sanction

1.

Notification of data breach by the Nicosia Sewerage Council (NSC)

Reprimand

2.

Notification of data breach by the Open University of Cyprus

€45,000 and Order

3.

Notification of data breach by the Department of Lands and Surveys

Reprimand and Order

4.

Notification of data breach by the Bank of Cyprus

€8,000

Total

€53,000

12.3. Opinions / Guidelines

A/N

Subject

1.

Guidelines for direct commercial promotion, August 2023

159

12.4. Inspections

A/N

Type of Inspections

Category of Controlled Entities

Number of Inspections

1.

On-site Inspections

Inspections at polling stations for Presidential Elections

1st Election Process (February 5, 2023)

2nd Election Process (February 12, 2023)

90

80

2.

On-site Inspections

Institutional Inspections for the operation of the Schengen Information System

2

3.

On-site Inspections

Private Sector Inspection

Inspection at an insurance company

1

4.

On-site Inspections

Inspections at facilities of data controllers or processors, ex officio or within the framework of investigating a complaint

8

12.5. Announcements

A/N

Subject

1.

Announcement by the Commissioner for Personal Data Protection, for the European Day for the Protection of Personal Data 2023, dated January 19, 2023

2.

Announcement by the Commissioner for Personal Data Protection, regarding the Presidential elections, dated February 1, 2023

3.

Announcement by the Commissioner for Personal Data Protection, regarding the Presidential Elections 2023 (Inspections and complaints), dated February 7, 2023

4.

Second announcement by the Commissioner for Personal Data Protection, regarding the Presidential Elections 2023 (Inspections and complaints of the second round), dated February 15, 2023

5.

Announcement by the Commissioner for Personal Data Protection, regarding the Office's participation in the coordinated action of the EDPS concerning the role of Data Protection Officers (DPOs), dated March 15, 2023

6.

Announcement by the Commissioner for Personal Data Protection, regarding the 31st Spring Session of the European Data Protection Authorities, dated April 10, 2023

7.

Announcement by the Commissioner for Personal Data Protection, regarding the Data Protection Guide for Small and Medium-sized Enterprises (SMEs), dated May 4, 2023

8.

Announcement by the Commissioner for Personal Data Protection, regarding the results of inspections for the use of Cookies by websites, dated May 8, 2023

160

9.

Announcement by the Office of the Commissioner for Personal Data Protection, regarding the Election

of a Commissioner to the Vice-Presidency of the European Data Protection Board on the 5th anniversary of the implementation of the General Data Protection Regulation, dated May 25, 2023
10.

Announcement by the Commissioner for Personal Data Protection, regarding the publication of biographies of Officials and/or members of the Boards of Public Law Legal Entities, dated May 30, 2023
11.

Announcement by the Commissioner for Personal Data Protection, regarding current issues related to the protection of personal data that have concerned the public recently, dated June 28, 2023
12.

Announcement by the Commissioner for Personal Data Protection, regarding the relocation of the Office of the Commissioner for Personal Data Protection/Office of the Information Commissioner, dated June 29, 2023
13.

Announcement by the Commissioner for Personal Data Protection, regarding the EU-U.S. Data Protection Framework, dated July 11, 2023
14.

Announcement by the Commissioner for Personal Data Protection (CPDP) and the Commissioner of Communications (CC), regarding the signing of a Memorandum of Cooperation on matters related to their joint or separate responsibilities, dated July 26, 2023
15.

Announcement by the Commissioner for Personal Data Protection, regarding the final Decisions of the Presidential Elections 2023, dated August 1, 2023
16.

Announcement by the Commissioner for Personal Data Protection, regarding the Painting Competition "Protection of Personal Data in the School Unit," dated October 13, 2023
17.

Announcement by the Commissioner for Personal Data Protection, regarding the Operation of Closed-Circuit Television (CCTV) in School Units, dated November 10, 2023
18.

Announcement by the Commissioner for Personal Data Protection, regarding the Speech of the Vice-President of the European Data Protection Board - Commissioner for Personal Data Protection at the 7th Annual Privacy Symposium in Brussels, dated November 17, 2023
19.

Announcement by the Commissioner for Personal Data Protection, regarding cyberattacks, dated November 27, 2023
20.

Announcement by the Commissioner for Personal Data Protection, regarding the Painting Competition "Protection of Personal Data in the School Unit," dated December 29, 2023

161

12.6. Notifications of personal data breach incidents by month in the year 2023

Month

Number

January

6

February

6

March

12

April

11

May	
10	
June	
5	
July	
4	
August	
7	
September	
6	
October	
17	
November	
16	
December	
10	
Total	
110	

The cover of the Annual Report is the work of student Irini Archontou from the Lyceum of Idalion, which was awarded the First Prize in the Student Competition on the theme "Protection of Personal Data in the School Unit" (high school level), organized by the Office of the Commissioner for Personal Data Protection in collaboration with the Ministry of Education, Sports and Youth, during the school year 2023 - 2024.